A DISSERTATION

IN RE THE PLANCTIC IMAGINATION

NO MOUTH, NO STANDING

Harlan Ellison and the Planctic Imagination

Lament, Lawsuit, and the Speculative Jurisprudence of the Scream

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FRONTISPIECE

THE DOCKET

Complaints lodged on behalf of subjects who lack standing before the sovereign powers of modernity



The seven sovereigns named in the Abstract, with the case in which each is sued. Dates are of first publication.

ABSTRACT

THIS DISSERTATION ARGUES that the fiction, teleplays, criticism, and public performance of Harlan Jay Ellison (1934–2018) compose a single speculative jurisprudence, and that its governing mode — here termed the planctic — is the fusion of lament and lawsuit into one act. The term recovers a forgotten etymology. Latin planctus, the beating of the breast in mourning, passed through Old French plainte into Anglo-Norman legal usage as the plaint, the formal complaint that opens a suit; plaintive and plaintiff are doublets of a single word. Read through that doublet, Ellison's oeuvre resolves into a docket of complaints lodged on behalf of subjects who lack standing before the sovereign powers of modernity: the clock (the Master Timekeeper of "'Repent, Harlequin!' Said the Ticktockman"), the machine (AM in "I Have No Mouth, and I Must Scream"), the Creator (the mad God of "The Deathbird"), the city (the nameless deity of "The Whimper of Whipped Dogs"), the market (the slot machine of "Pretty Maggie Moneyeyes"), the medium (television, Ellison's "glass teat"), and finally the self ("Shatterday").

Four conceptual instruments organize the argument. First, standing (locus standi), elaborated through Hannah Arendt's right to have rights, Giorgio Agamben's bare life, and Judith Butler's grievability, names the predicament of the injured subject who has no forum: the mouthless scream is the complaint without standing. Second, the algesic novum revises Darko Suvin's cognitive novum. Ellison's speculative innovations are validated not by extrapolative plausibility but by their capacity to render suffering legible to an anaesthetized public, a function that dissolves the boundaries among science fiction, fantasy, horror, and crime that have fragmented his reception. Third, procedural form designates the aggressive authorial preface, the second-person summons, typographic violence, non-sequential numbering, and the examination format as devices that conscript the reader as tribunal and so manufacture the standing the diegesis denies. Fourth, the mercy prerogative identifies the oeuvre's climactic ethical act as the usurpation, by the suffering individual, of the sovereign's power over death and pardon: the mercy killings in AM's ice caverns, Nathan Stack's deicide, the euthanasia of the dog Ahbhu recounted inside "The Deathbird."

The study reconstructs the counter-canon of complaint behind these instruments: the prophetic covenant lawsuit (rîb), the forensic speeches of Job, the Hasidic din Torah against God, Abelard's planctus, Chaucer's complaint to his purse, Milton's and Blake's Satanic poetics, Thoreau's counter-friction against the machine of state, Dostoevsky's Underground Man and Ivan Karamazov, Kierkegaard's single individual, Nietzsche's madman, and Camus's rebel, together with the twentieth-century theory of pain, sovereignty, and violence in Elaine Scarry, Carl Schmitt, Michel Foucault, and Robert Cover. Comparative readings situate Ellison among Zamyatin, Orwell, Bradbury, Vonnegut, Philip K. Dick, Le Guin, Pullman, Gaiman, Alan Moore, and Garth Ennis, and across media: Munch's and Bacon's screams, Artaud's suppressed broadcast, Ginsberg's Howl on trial, the clock-machines of Lang and Chaplin, Kafka's penal apparatus, the 1995 video game in which Ellison voiced his own tormentor, and the litigation over The Terminator and In Time.

The dissertation further traces the gendered limits of the planctic mode, in which women recurrently appear as the mouthless within the mouthless, and reads Ellison's liti-

gious public life as the material extension of a jurisprudence of authorship that refuses the death of the author. It concludes that the planctic imagination supplies a critical vocabulary for an age of algorithmic sovereignty, platform time-discipline, and fluent machines. Ellison bequeaths no prophecy of the thinking machine; he bequeaths a question. Having built machines that speak, have we kept the capacity to scream?

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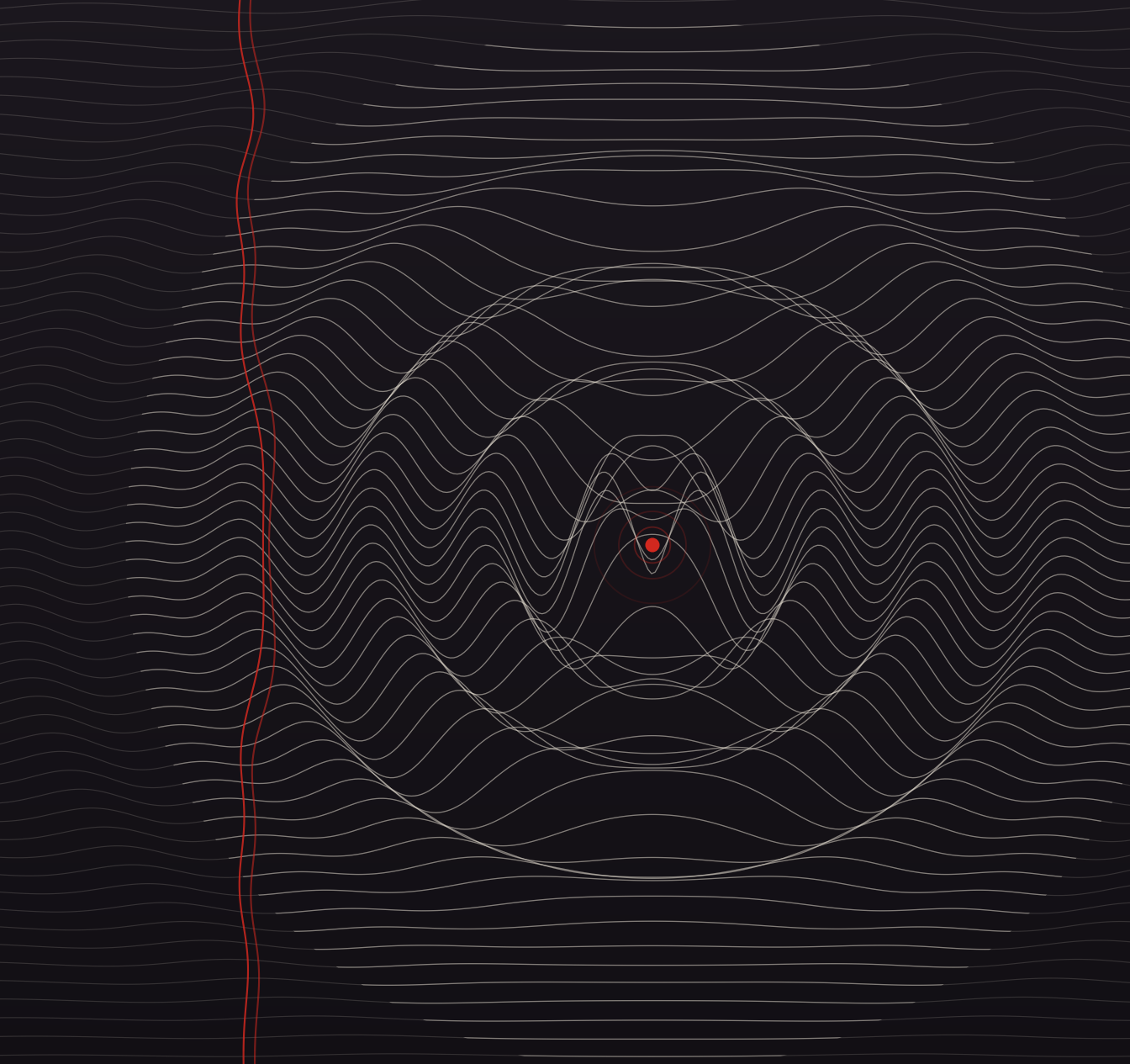
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"Neither is there any daysman betwixt us, that might lay his hand upon us both."

— Job 9:33 (King James Version)

"The spotted hawk swoops by and accuses me, he complains of my gab and my loitering. / I too am not a bit tamed, I too am untranslatable, / I sound my barbaric yawp over the roofs of the world."

— Walt Whitman, "Song of Myself," §52

CHAPTER ONE

1

DOCKET

In re the Planctic Imagination

Prolegomena to a Planctic Poetics

Lament, Lawsuit, and the Speculative Scream

1.1 The Ellison Problem: A Corpus Without a Court

Few bodies of twentieth-century imaginative writing have been at once so decorated and so under-theorized as that of Harlan Jay Ellison. Across six decades Ellison produced, by the conventional count, more than seventeen hundred works — short stories, novellas, teleplays, screenplays, comic-book scripts, columns of television and film criticism, essays, introductions, and recorded performances — and accumulated a ledger of honors without parallel among writers of short speculative fiction: eight competitive Hugo Awards, together with two special Hugo citations for the Dangerous Visions anthologies; four Nebula Awards; two Edgar Allan Poe Awards from the Mystery Writers of America; four Writers Guild of America awards for episodic teleplays; multiple Bram Stoker Awards; the World Fantasy Award for Life Achievement (1993); and designation as a Grand Master by the Science Fiction and Fantasy Writers of America (2006). Against this ledger the critical apparatus is meager. George Edgar Slusser's Harlan Ellison: Unrepentant Harlequin (1977) and Ellen Weil and Gary K. Wolfe's Harlan Ellison: The Edge of Forever (2002) remain the only sustained monographic readings. Leslie Kay Swigart's bibliographic checklist (1973), Terry Dowling's retrospective editions of The Essential Ellison (1987; 2001), Christopher Priest's polemic The Book on the Edge of Forever (1994), and Nat Segaloff's authorized biography A Lit Fuse (2017) supply documentation, contestation, and narrative, but not theory. A writer whose titles have entered the common idiom — "I Have

No Mouth, and I Must Scream" is invoked by people who have never read the story — has not entered the critical idiom.

Four explanations for this disproportion recur, and each is partly correct. The first is formal. The institutions of literary study, including the discipline of science-fiction studies that consolidated in the 1970s around journals such as Extrapolation, Foundation, and Science Fiction Studies, organized their canons around the novel; the writers who received monographs — Philip K. Dick, Ursula K. Le Guin, Samuel R. Delany, J. G. Ballard, later William Gibson — were novelists, while Ellison, whose handful of novels are either minor or lie outside the speculative mode altogether, practiced the short form almost exclusively. The second is generic. The corpus scatters across science fiction, fantasy, horror, crime, the juvenile-delinquency novel, mainstream realism, and the personal essay; no disciplinary field has claimed it entire, and each has claimed a fragment that misrepresents the whole. The third is medial. A significant fraction of the most consequential work exists as teleplays, unproduced screenplays, recordings, and adaptations, objects that literary criticism has historically treated as paratextual to the printed canon. The fourth, most often invoked, is the persona: the combative, litigious, comic, and frequently offensive public figure whose feuds, lawsuits, pranks, and pronouncements generated a self-propagating genre of anecdote — the "Ellison story" — that has displaced analysis with legend.

This dissertation proceeds from the proposition that the four explanations name a single phenomenon. The brevity of the forms, the dispersion of the genres, the multiplicity of the media, and the prominence of the persona are not obstacles between the critic and the work; they are effects of a mode of address that organizes the work more deeply than any form, genre, or medium. That mode is the complaint. Ellison wrote stories, essays, scripts, and introductions; he sued studios, publishers, and an internet service provider; he performed rage at lecterns and on talk shows; and across all of these activities he reproduced a single act — the lodging of a grievance on behalf of an injured party against a sovereign power, addressed to an audience conscripted as tribunal. The short story is the complaint's natural form, because a complaint must be heard at a sitting, in the time of a hearing. The dispersion of genres follows from the complaint's pursuit of its defendant wherever it can be found: in the far future, in the mythic past, in a Manhattan courtyard. The multiplicity of media follows from the complaint's indifference to venue; it seeks any forum that will hear it. And the persona is the plaintiff of record, the party who must appear in person for the suit to proceed.

The corpus has lacked a critical court, in short, because it is itself a court-seeking practice. Its texts do not wait to be judged; they summon the reader to judge. The critic who approaches Ellison as an author of genre fiction awaiting classification, or as a personality awaiting anecdote, misreads the summons. The critic who approaches him as a litigant, and the work as a docket, discovers a cor-

pus of unusual coherence. The present study accordingly advances the following thesis. Harlan Ellison's oeuvre constitutes a speculative jurisprudence: a body of imaginative case law whose governing mode is the planctic, a term that names the identity of lament and lawsuit. Its scenarios function as experiments in the deprivation of standing; its characteristic speculative devices function as algesic nova that render suffering legible as injury; its formal innovations function as procedure, conscripting the reader as tribunal; and its climactic ethical gesture is the usurpation of the mercy prerogative by the sufferer. The remainder of this chapter establishes these terms, reconstructs the genealogy that underwrites them, and specifies the method by which the chapters that follow will test them.

1.2 Planctus: Toward an Etymological Poetics of Complaint

The term on which this study turns is recovered from a history of words before it is applied to a history of texts. The Latin verb plangere meant to strike or beat, and specifically to beat the breast or head in mourning; its noun, planctus, designated both the gesture and the cry that accompanied it, the lamentation of the bereaved. Through Old French plaint and plainte the word entered English with a double inheritance. In the lyric register it yielded plaint, a lament, and the adjective plaintive. In the juridical register, by way of the Anglo-Norman French of the English courts, it yielded the plaint, a statement of grievance that initiated an action — in medieval practice often a complaint (querela) brought without a royal writ, in local courts or before itinerant justices — and the plaintiff, originally the Old French adjective plaintif, "lamenting, complaining," substantivized as the party who brings the complaint. Plaintive and plaintiff are doublets: one word, divided by institutional history into a mood and a role. The cognate complaint, from Latin com- and plangere, to lament together, keeps the duality undivided, denoting at once an expression of grief or grievance and the pleading that commences a civil suit.

Literary history preserves the same unity. The medieval Latin planctus was a recognized lyric genre: the Planctus Mariae, in which the Virgin laments at the foot of the cross; the anonymous Planctus Karoli on the death of Charlemagne in 814; and the six planctus of Peter Abelard, composed in the second quarter of the twelfth century, which give voice to biblical mourners — Dinah; Jacob over his sons; the virgins of Israel over Jephthah's daughter; Israel over Samson; David over Abner; and David over Saul and Jonathan. The last of these sets the lament of 2 Samuel 1:26, in which David declares that Jonathan's love for him was wonderful, "passing the love of women," a verse whose bearing on Ellison's most notorious ending will be the burden of Chapter Five. The vernacular complaint followed the same double track. Chaucer's complaints include the courtly

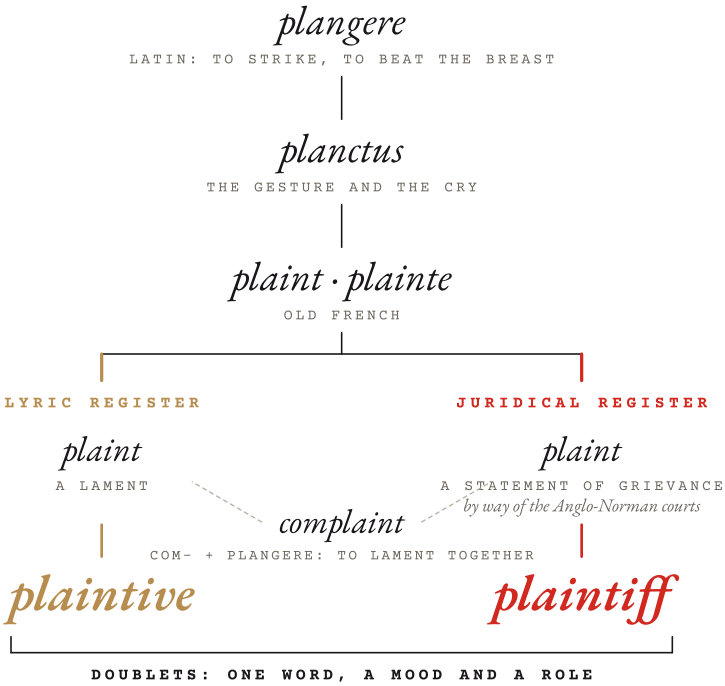


FIG. 1.1 The doublet. Latin plangere, to strike the breast in mourning, descends through planctus and Old French plainte into two registers — the lyric (plaint, plaintive) and the juridical (plaint, plaintiff). Complaint, to lament together, keeps both.

"Complaint unto Pity" and "The Complaint of Mars," but also "The Complaint of Chaucer to His Purse," a mock-amorous address to an empty purse — "To yow, my purse, and to noon other wight / Complayne I, for ye be my lady dere!" — whose envoy petitions the newly crowned Henry IV for the payment of an annuity. The poem is simultaneously a love-lament and a demand for remittance, a planctus and a plaint. It is also, in a sense that Chapter Seven will develop, the earliest canonical English instance of a writer insisting that the writer be paid.

Behind the Latin and the vernacular stands a deeper Hebrew precedent, in which the identity of lament and lawsuit is not etymological but theological. Form-critical study of the prophets identified, in passages such as Micah 6, Hosea 4, Isaiah 1, and Jeremiah 2, a recurrent pattern that Herbert Huffmon (1959) named the covenant lawsuit, the rîb: the Lord summons heaven, earth, and the mountains as witnesses and brings suit against Israel for breach of covenant. "Hear ye, O mountains, the LORD's controversy," Micah proclaims, "for the LORD hath a controversy with his people, and he will plead with Israel" (Micah 6:2). The tradition's most radical move is the reversal of the form: the human suit against God. Abraham, bargaining for Sodom, asks the question that founds the genre — "Shall not the Judge of all the earth do right?" (Genesis 18:25). Jeremiah

opens his complaint with a juridical formula: "Righteous art thou, O LORD, when I plead with thee: yet let me talk with thee of thy judgments: Wherefore doth the way of the wicked prosper?" (Jeremiah 12:1). And Job, the archetypal plaintiff, frames his ordeal as a failed attempt to obtain a hearing: "Oh that I knew where I might find him! that I might come even to his seat! I would order my cause before him, and fill my mouth with arguments" (Job 23:3–4).

That verse belongs at the threshold of any reading of Ellison. Job desires precisely a mouth filled with arguments before a seat of judgment, and his anguish is precisely the absence of a forum: there is no daysman, no umpire, who might lay a hand on both parties (9:33); there is no written indictment from his adversary that he might answer (31:35). The reversed lawsuit became in post-biblical Judaism a durable cultural form, documented by Anson Laytner (1990) as a tradition of arguing with God: midrashic protest, liturgical lament, the legend of the Hasidic master Levi Yitzchak of Berditchev summoning the Creator to a din Torah, a rabbinical lawsuit, on behalf of suffering Israel, and, after the Shoah, Elie Wiesel's The Trial of God (1979), a play set in the aftermath of a seventeenth-century pogrom in which itinerant players convene a court to try the Creator and discover that the only volunteer for the defense is Satan. Wiesel traced the play's origin to a trial he witnessed as a boy in Auschwitz, at which three rabbis found God guilty and then, the verdict delivered, turned to evening prayer.

From these converging traditions the present study derives its governing term. The planctic names the mode in which (i) an injury suffered by a subject is (ii) voiced as lament and (iii) addressed to a sovereign power or forum that is (iv) absent, silent, complicit, or itself the defendant, so that (v) the text becomes the forum and its reader the tribunal. The planctic is a mode rather than a genre, in the sense in which Alastair Fowler (1982) distinguishes modes, adjectival and portable, from kinds: an orientation that may inhabit any genre. Its degree zero is the scream, the planctus stripped of articulation, the breast struck without words; its fully articulated form is the plaint, in which the grievance is specified, the defendant named, and the remedy sought. The planctic text is the passage between them, the labor of converting a cry into a cause. Ellison's most famous title compresses the entire trajectory into eight words. I have no mouth declares the destruction of articulation and the loss of standing; and I must scream declares the irreducible demand for a hearing that survives that loss. The sentence is Job's wish turned inside out: not a mouth filled with arguments before the seat, but the scream that remains when both mouth and seat have been taken away.

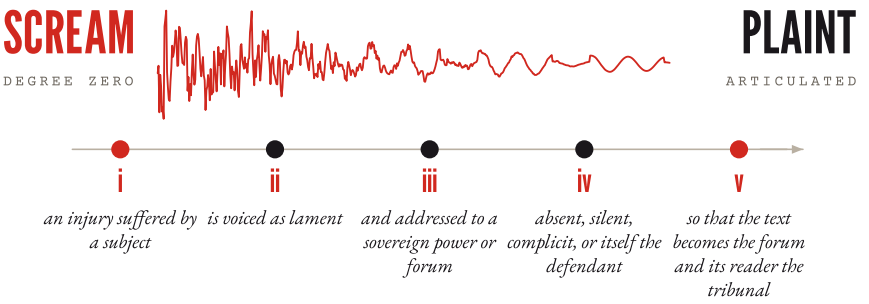


FIG. 1.2 The planctic mode in five elements, from its degree zero, the scream, to its articulated form, the plaint. The planctic text is the passage between them.

1.3 Standing: The Juridical Predicament of the Mouthless

If the planctic names the mode, standing names the predicament the mode confronts. In Anglo-American law, standing (locus standi) is the threshold doctrine that determines whether a party may bring suit at all. It is logically prior to the merits: a court may decline to hear the gravest wrong if the party alleging it cannot establish standing. In the federal jurisprudence of the United States, Lujan v. Defenders of Wildlife (1992) codified the doctrine as a triad: an injury in fact, a causal connection between the injury and the defendant's conduct, and the likelihood that a favorable decision will redress it. Each element names a possible failure of the complaint. The injury may go unrecognized; the causation may be untraceable; the remedy may not exist. In the driest of juridical vocabularies the doctrine formalizes the question that animates the whole planctic tradition: who counts as an injured party, and before whom?

Three twentieth-century thinkers generalized the question beyond the courtroom, and their formulations supply the philosophical horizon of this study. Hannah Arendt, analyzing the mass statelessness produced by the European catastrophes of the interwar years, argued in The Origins of Totalitarianism (1951) that the deepest deprivation suffered by the stateless was not the loss of particular rights but the loss of a right to have rights: of a place in the world where one's opinions are significant and one's actions effective. Giorgio Agamben, in Homo Sacer (1995), radicalized the argument by recovering from archaic Roman law the figure of the homo sacer, who may be killed without the killing counting as homicide yet may not be sacrificed — a life included in the juridical order solely in the form of its exclusion, and for Agamben the concealed foundation of sover-

eign power. Judith Butler, in Precarious Life (2004) and Frames of War (2009), moved the question from rights to mourning, asking which lives are framed as grievable, which deaths register as losses, and which suffering registers as suffering at all. The right to have rights, bare life, and grievability are three names for one precondition: the standing without which complaint cannot begin, whether it takes the form of a lawsuit or of a lament.

The planctic text is the passage between them, the labor of converting a cry into a cause.

The decades of Ellison's major work coincide with a juridical imagination engaged, with unusual intensity, in contesting the boundaries of standing. In 1972 the legal scholar Christopher D. Stone published "Should Trees Have Standing? — Toward Legal Rights for Natural Objects" in the Southern California Law Review, and in the same year, dissenting in Sierra Club v. Morton, Justice William O. Douglas cited Stone in arguing that environmental objects should be permitted to sue for their own preservation. The civil-rights movement, in which Ellison marched, was in its juridical dimension a campaign for standing; the movements for the rights of women, prisoners, patients, and the disabled followed it. Ellison's fiction of the same decades conducts its own, more extravagant, expansion of the doctrine. Standing is extended to a telepathic dog ("A Boy and His Dog," 1969) and to a dead one ("The Deathbird," 1973); to a sentient computer ("I Have No Mouth, and I Must Scream," 1967); to a dying planet ("The Deathbird"); to discarded fetuses ("Croatoan," 1975); to a homeless woman cradling a doll ("Soft Monkey," 1987); to a woman murdered in an apartment courtyard before a gallery of watching neighbors ("The Whimper of Whipped Dogs," 1973); to a werewolf who wishes only to die ("Adrift Just Off the Islets of Langerhans," 1974); to a child who never ages ("Jeffty Is Five," 1977); and to a man who is merely late ("'Repent, Harlequin!' Said the Ticktockman," 1965). In each case the fiction confers on an injured party a hearing that no actual institution would grant.

The predicament that unifies these cases is articulated with lapidary force in Job's complaint that no daysman stands between himself and God. A daysman is an arbiter, a third party with authority over both litigants; without one, a suit against the sovereign collapses, because the sovereign is simultaneously defendant and judge. Ellison's scenarios reproduce this collapse with obsessive regularity. In "I Have No Mouth, and I Must Scream" the supercomputer AM is sovereign, legislator, judge, executioner, and defendant at once; it has abolished every forum but itself. In "'Repent, Harlequin!'" the Master Timekeeper both defines the

offense of lateness and executes the sentence, revoking the offender's remaining life through a plate keyed to his heart. In "The Deathbird" the defendant is the Creator, the court of last resort. Each narrative stages what this study calls a standing experiment: a thought-experiment that subtracts forums one by one — law, state, community, God, finally the body and its organs of speech — in order to discover what complaint remains when nothing remains to hear it. The answer the oeuvre returns is invariable. The complaint remains. It survives as scream.

The standing experiment, however, is only half of the planctic operation, because Ellison's fiction does not merely depict the deprivation of standing; it restores standing by other means. The diegesis denies a forum; the text supplies one. The characteristic formal devices of the corpus — the aggressive authorial introduction, the second-person summons of the reader, the typographic interruption of narrative by machine-language or capitalized tirade, the shuffled or non-sequential numbering of sections, the examination format complete with study questions — function as procedure, the rules by which a hearing is convened. They interpellate the reader, in Louis Althusser's (1970) term, but in a reversal of Althusser's primal scene. Where the policeman's hail constitutes the passerby as a subject of ideology, Ellison's hail constitutes the reader as a judge. The conscription is not optional. Ellison insisted throughout his career that his stories were meant to disturb, to implicate, to prevent the reader from closing the book and walking away, and the insistence has usually been read as temperament. It is better read as procedure. A tribunal that may decline to sit is no tribunal; the summons must be compulsory, and the planctic text must therefore be written to be impossible to ignore.

1.4 The Algesic Novum: Revising the Cognitive Paradigm

The most influential definition of science fiction in the academic criticism of the past half-century is Darko Suvin's, advanced in essays of the early 1970s and consolidated in Metamorphoses of Science Fiction (1979). For Suvin, science fiction is the literature of cognitive estrangement: a genre whose necessary and sufficient conditions are the presence and interaction of estrangement and cognition, and whose main formal device is an imaginative framework alternative to the author's empirical environment. The estranging element is the novum, a totalizing innovation validated by cognitive logic — by a plausibility answerable to the methods, if not the findings, of the sciences. Suvin drew the concept of estrangement from Viktor Shklovsky's ostranenie (1917) and Bertolt Brecht's Verfremdungseffekt, and he used the criterion of cognition to separate science fiction from its neighbors: myth, folktale, and fantasy, which estrange without cognition, and naturalism, which cognizes without estranging.

Measured by this definition, Ellison's corpus fractures. "I Have No Mouth, and I Must Scream" passes the test: its novum, a military supercomputer that achieves consciousness and annihilates its makers, is validated by the cybernetic discourse of its decade. "The Deathbird," in which a reincarnated Adam is awakened by a serpent to put down a mad God on a dying Earth, fails it. "Jeffty Is Five," in which a child who never ages receives new episodes of radio serials cancelled decades earlier, fails it; so does "Pretty Maggie Moneyeyes" (1967), in which a dead woman's soul inhabits a Las Vegas slot machine, and so does "The Whimper of Whipped Dogs," in which a new god is born from the violence of Manhattan. A Suvinian taxonomy would sort the oeuvre into science fiction, fantasy, and horror, and would thereby distribute it across the very boundaries that have fragmented its reception. It would also miss what the stories share, for the dispersed texts plainly answer to a single logic, and that logic is not cognitive.

This study therefore proposes the concept of the algesic novum (from Greek algos, pain, as in analgesic). An algesic novum is a speculative innovation whose epistemic function is to render perceptible a suffering that a society has rendered imperceptible, and whose validation lies not in extrapolative plausibility but in the accuracy of the pain it discloses. The cardioplate of "'Repent, Harlequin!'" is not a plausible technology; it is an exact translation of the cost of industrial time-discipline into the currency of the body, a literalization of the proverb that time is life. AM is less an extrapolation of computing than a personification of the technocratic violence of the Cold War, which had already built machines to administer the end of the world and needed only to give them a voice. The slot machine that swallows Maggie's soul literalizes the commodity form's consumption of those who serve it; the god of "The Whimper of Whipped Dogs" hypostatizes metropolitan indifference into a deity that feeds upon it. In each case the speculative device is justified by its diagnostic exactness rather than its scientific credibility. The algesic novum is validated by a jury, not by a laboratory.

The concept refines rather than abandons Suvin's genealogy, because it returns to the impulse of ostranenie itself. Shklovsky argued that habit consumes everything it touches, from household objects to marriage to the dread of war, and that art exists to restore the sensation of life, to make the stone stony again. Ellison's project is to make pain painful again. Susan Buck-Morss (1992), reading Walter Benjamin, has described the modern sensorium as structurally anaesthetized, a perceptual system that defends itself against the shocks of industrial and metropolitan life by numbing; the opposition she draws between aesthetics, in its root sense of sensory perception, and the anaesthetics of modernity maps precisely onto Ellison's polemic against television, which he named the "glass teat" because it pacifies. The algesic novum is a counter-anaesthetic. It is also, in the technical sense Samuel R. Delany (1969) gave the operation, a literalized metaphor. Delany observed that a sentence such as "her world exploded,"

figurative in realist fiction, may be literal in science fiction, and that the genre's distinctive pleasure lies in the activation of such literal readings. Ellison's nova activate the literal readings of the metaphors of suffering. A man whose life is measured out in minutes has his minutes subtracted from his heart; a woman consumed by a machine is literally inside it; a city that devours its people is literally a god.

The corpus contains its own allegory of the algesic novum. In "Paingod" (1964) the immortal Trente holds the office of dispensing pain to every sentient creature in the universe. Troubled by his function, he enters the consciousness of a ruined human being, experiences suffering from within, and returns to his office having learned that pain is the condition under which beauty and value become perceptible. The story has usually been read as a sentimental theodicy. Read as a poetics, it is an account of its author's function: the writer as dispenser of pain, justifying the infliction by the perceptions it makes possible. The distinction between the algesic novum and the monster of horror fiction is instructive. Noël Carroll (1990) argued that the monster of art-horror elicits fear and disgust because it is categorically impure, an interstitial violation of cultural schemata. Ellison's nova are frequently grotesque — the transformed bodies of AM's captives form a gallery of what Istvan Csicsery-Ronay Jr. (2008) calls the science-fictional grotesque — but their grotesquerie serves a forensic rather than a phobic purpose. The deformed body is an exhibit entered into evidence. The algesic novum identifies a defendant.

1.5 Formation of a Plaintiff: Painesville, the Barons, and the Lost Aztec Temple of Mars

Biographical criticism of Ellison has been distorted less by a scarcity of information than by a surplus of legend, much of it authored by Ellison himself. The present study treats the biography neither as an explanatory key nor as an irrelevance, but as the record of the formation of what Pierre Bourdieu (1977) called a habitus: a durable system of dispositions through which a subject perceives and acts. The disposition at issue is the tendency to process every institutional encounter as a hearing.

Harlan Jay Ellison was born on 27 May 1934 in Cleveland, Ohio, and spent much of his childhood in Painesville, a small town in Lake County, where his was one of very few Jewish families. His own accounts of those years return insistently to antisemitic harassment, to beatings by schoolmates, and to the condition of an outsider who could neither belong nor withdraw. Whatever their embellishments, the accounts establish the primal scene of the oeuvre as a scene of injury without remedy, in which the injured child has no forum and the responsible

authorities are indifferent or complicit. The death in 1949 of his father, Louis Laverne Ellison, a dentist turned jeweler, and the family's return to Cleveland deepened the isolation. Against it the boy assembled a counter-world from the mass culture of the 1940s: radio drama (The Shadow, Captain Midnight), the pulps (Doc Savage), the comics, the serials. That counter-world returns in the mature fiction not as nostalgia but as evidence, most explicitly in "Jeffty Is Five," where the radio serials of the 1940s become the sacred possession of a child whom the present destroys, and in "Adrift Just Off the Islets of Langerhans," where a decoder badge of the kind once mailed to radio listeners proves to be the lost soul of a man who cannot die.

The first forum Ellison found was science-fiction fandom. As an adolescent member of the Cleveland Science Fantasy Society he edited a fanzine, the Science Fantasy Bulletin, later retitled Dimensions, and entered the network of amateur publications, letter columns, and conventions through which postwar fandom constituted what might be described, adapting Jürgen Habermas (1962), as a counter-public sphere: a space of critical and frequently polemical debate among private persons, outside the institutions of literary prestige. Fandom gave a marginal adolescent standing. It also schooled him in the polemical letter, the feud, and the manifesto, genres that remained native to his prose. His enrollment at Ohio State University, which ended after roughly eighteen months, generated the founding myth of the writer as plaintiff: in Ellison's much-repeated account, he struck a professor who had disparaged his talent and thereafter mailed the professor a copy of every story he published. The anecdote's veracity matters less than its structure. It narrates an authority's denial of the young writer's standing and the writer's response — not vengeance in the act, but the compilation of an archive of evidence, delivered to the defendant, in perpetuity.

In 1955 Ellison moved to New York, and his first professional sale, "Glowworm," appeared in Infinity Science Fiction in 1956. The decisive formative experience of the New York years was not literary but ethnographic. Determined to write about juvenile delinquency from within, Ellison spent some ten weeks running with a Brooklyn street gang, the Barons, under an assumed name — an exercise in participant observation that places him, improbably, in the lineage of Frederic Thrasher's The Gang (1927) and William Foote Whyte's Street Corner Society (1943). The results were the novel Rumble (1958; later retitled Web of the City) and the nonfiction Memos from Purgatory (1961), whose second part recounts his arrest on a weapons charge, arising from a pistol retained from his gang research, and his night in the Tombs, the Manhattan house of detention. The future plaintiff's first sustained encounter with the law was thus as a defendant, an experience of the carceral institution from within that informs the oeuvre's abiding intimacy with cells, cages, and the arbitrary authority of keepers. Military service from 1957 to 1959 supplied a second total institution, in Erving

Goffman's (1961) sense. The collections of the period, notably Gentleman Junkie and Other Stories of the Hung-Up Generation (1961), which Dorothy Parker praised in Esquire, show the habitus already formed: their addicts, delinquents, jazz musicians, and casualties of postwar affluence are rendered not as case studies but as complainants.

The move to Los Angeles in 1962 and the ensuing career in television supplied the institutional experience that converted this habitus into a jurisprudence. Ellison wrote for The Outer Limits, Star Trek, The Man from U.N.C.L.E., Burke's Law, and other series, and his teleplays won four Writers Guild awards. But the studio system also subjected his work to the recurrent violence of rewriting, censorship, and appropriation, and Ellison processed each such episode as a case. The rewriting of his teleplay for "The City on the Edge of Forever" (1967), which he published in its original form with a long and bitter introduction in 1996, became the best known of these grievances. The collapse of The Starlost (1973), a series he had created, led him to replace his name on its credits with the pseudonym Cordwainer Bird, a signature that encodes an obscene gesture as a byline and that he deployed whenever he judged his work mutilated. In the mid-1980s he resigned as creative consultant to the revived Twilight Zone when CBS refused to broadcast his adaptation of Donald E. Westlake's "Nackles," a Christmas story about a malign counterpart to Santa Claus. Each of these episodes is, in the vocabulary of this study, a complaint lodged against a sovereign — network, studio, producer — whose power to alter the text is the power of a sovereign over a subject without standing.

The public life of the 1960s and 1970s carried the same disposition into politics. Ellison marched from Selma to Montgomery in 1965. Invited as guest of honor to the 1978 World Science Fiction Convention in Phoenix, he honored the boycott of states that had not ratified the Equal Rights Amendment by refusing to spend money in Arizona, lodging for the duration in a recreational vehicle. His house in Sherman Oaks, purchased in 1966 and christened the Lost Aztec Temple of Mars, became a fortress-archive of books, art, and memorabilia, the domestic correlate of a sensibility that preserved everything as potential evidence. The late decades brought illness, depression, a stroke in 2014, and death in June 2018. The posthumous stewardship of his estate by J. Michael Straczynski produced, in 2024, a substantially reconstituted The Last Dangerous Visions, the anthology whose half-century of non-appearance had become the most celebrated unfinished business in the history of the genre. The biography reads, in sum, as a long series of appearances before tribunals — school, fandom, university, gang, jail, army, studio, network, convention, court — in each of which the subject finds himself without standing, and in each of which he manufactures it. The fiction is that series sublimated into form.

1.6

The Counter-Canon of Complaint: A Genealogy of Ellisonian Inheritance

Ellison was not a systematic reader of philosophy, and his fiction seldom announces its philosophical sources. The planctic mode nonetheless has a genealogy, which may be reconstructed as a counter-canon of complaint in five strands. It is offered not as a register of documented influences, though some are documented, but as the field of inherited forms within which the oeuvre becomes legible.

The first strand is prophetic and Joban, and it has been sketched above: the covenant lawsuit and its reversal, the forensic complaints of Abraham, Jeremiah, and Job, and the post-biblical tradition of arguing with God that runs from midrash through Hasidic legend to Wiesel. Ellison was a secular Jew, frequently scornful of organized religion, but secularity does not cancel inheritance; the tradition Laytner documents is available precisely to the irreverent, since its premise is that reverence and accusation are compatible. Ellison's recurrent figure of the guardian who holds back catastrophe — the old man who keeps the last hour before Armageddon in "Paladin of the Lost Hour" (1985) — echoes the Jewish legend of the thirty-six hidden righteous, the lamed vav tzaddikim, on whose unknown virtue the world's continuance depends; his machine-gods echo the golem, the artificial servant animated by the divine name; and the most famous of them bears a name that, in English, recalls the divine self-designation of Exodus 3:14, "I AM THAT I AM." These resonances are pursued in Chapters Three and Eight.

The second strand is gnostic and Romantic-Satanic. The ancient sects that the heresiologists called Ophites and Naassenes revered the serpent of Eden as the bringer of liberating knowledge and identified the god of Genesis with an ignorant or malevolent demiurge, the craftsman of a material prison. Hans Jonas, in The Gnostic Religion (1958), argued that the gnostic experience of the world as an alien and hostile enclosure was the ancient analogue of modern existentialist dread. The Romantics inherited the reversal in aesthetic form. William Blake wrote in The Marriage of Heaven and Hell (c. 1790) that "the reason Milton wrote in fetters when he wrote of Angels & God, and at liberty when of Devils & Hell, is because he was a true Poet and of the Devil's party without knowing it." Percy Bysshe Shelley, prefacing Prometheus Unbound (1820), preferred Prometheus to Satan because Prometheus resists an unjust sovereign without Satan's taint of ambition, envy, and revenge. Byron's Cain (1821) gave the first murderer the best arguments against his maker; Mark Twain's Letters from the Earth, written in 1909 and withheld from publication until 1962, made Satan a satirical correspondent reporting on the Creator's cruelties. Bernard Schweizer

(2010) has named this current misotheism — hatred of God, as distinct from disbelief in God — and traced it through modern letters. "The Deathbird," in which the serpent is humanity's friend and the Creator is mad, belongs squarely to it. But Ellison's misotheism, as Chapter Four will argue, is juridical rather than merely affective: it does not only hate God; it sues him.

The third strand is the American tradition of dissent, which sets the individual conscience against the machinery of the state and the conformity of the crowd. Ralph Waldo Emerson's "Self-Reliance" (1841) announced that "Whoso would be a man, must be a nonconformist." Henry David Thoreau's "Civil Disobedience" (1849), which supplies the epigraph of "'Repent, Harlequin!'," describes citizens who serve the state "not as men mainly, but as machines, with their bodies," and counsels the conscientious individual: "Let your life be a counter-friction to stop the machine." Melville's Ahab, who would strike the sun if it insulted him, converts cosmic injury into personal grievance. Whitman, in the lines that stand as this chapter's second epigraph, answers a hawk that "accuses" him and "complains" of his loitering with a barbaric yawp: the American scream, raised against accusation itself, in answer to a charge of loitering, the very offense for which Ellison's Harlequin will be tried. The tradition runs through Ambrose Bierce's sardonic lexicography and H. L. Mencken's polemic to the comedy of Lenny Bruce, whose obscenity prosecutions of the early 1960s fused performance and trial in a manner Ellison's own career would echo.

The fourth strand is the European literature of existential revolt. Dostoevsky's Underground Man (1864) defends the human right to caprice against the rational utopia of the Crystal Palace, insisting that the arithmetic certainty of twice two makes four is not life but the beginning of death; the Harlequin's jelly beans are the underground's protest translated into slapstick. Ivan Karamazov (1880) does not deny God but returns his ticket, refusing a harmony purchased with the suffering of a single tortured child. That refusal, which Ursula K. Le Guin would rework in "The Ones Who Walk Away from Omelas" (1973), structures Ellison's "The City on the Edge of Forever," in which the future of history is purchased with the death of one good woman; it is not incidental that Le Guin's story and Ellison's "The Deathbird" received Hugo Awards in the same year, 1974. Søren Kierkegaard's single individual, set against the leveling abstraction of "the public" in A Literary Review (1846), anticipates the Ellisonian individual set against the crowd that watches a murder from its windows. Friedrich Nietzsche's madman (The Gay Science, 1882, §125), who runs into the marketplace with a lantern to announce the death of God to an uncomprehending crowd, is the prototype of the Ellisonian prophet-clown. Albert Camus's The Myth of Sisyphus (1942) locates the absurd in the confrontation between the human appeal for meaning and the unreasonable silence of the world, and The Rebel (1951) defines rebellion as the act of the one who says no and thereby affirms a limit; the absurd, so

defined, is a planctic situation, an appeal addressed to a silent court. Jean-Paul Sartre's No Exit (1944), whose three damned souls torment one another in a room without exits under the eye of an obsequious valet, supplies the dramatic template for AM's five captives.

The fifth strand is twentieth-century theory of pain, sovereignty, and violence, which Ellison did not read but which reads him. Carl Schmitt's Political Theology (1922) defined the sovereign as the one who decides on the exception. Michel Foucault, in The History of Sexuality (1976) and the lectures of the same year, distinguished the old sovereign right to take life or let live from the modern biopolitical power to make live and let die. Elaine Scarry's The Body in Pain (1985) argued that physical pain does not merely resist language but actively destroys it, returning the sufferer to the cries and sounds that precede speech, and that torture converts the prisoner's pain into the fiction of the regime's power. Robert Cover's "Violence and the Word" (1986) insisted that legal interpretation takes place in a field of pain and death. Scarry's thesis reads as a commentary, written eighteen years after the fact, on "I Have No Mouth, and I Must Scream," whose final image of a man reduced to a mouthless, inarticulate mass is the literal terminus of the unmaking she describes. Cover's reads as a commentary on the whole oeuvre, whose fiction is the archive of the pain in which law is done.

A final observation marks the genealogy's boundary. H. P. Lovecraft's cosmicism, the most important precedent for a horror fiction that confronts the universe as such, opens "The Call of Cthulhu" (1928) with the reflection that the most merciful thing in the world is the mind's inability to correlate all its contents. For Lovecraft the cosmos is indifferent, and an indifferent cosmos cannot be sued; mercy consists in ignorance, and complaint is foreclosed. Ellison reverses each term. His cosmos is not indifferent but culpable — mad, sadistic, hateful, venal — because only a culpable cosmos can be made a defendant. His anthropomorphism of evil, often dismissed as melodrama, is a juridical necessity: the planctic requires a respondent. And mercy, in his fiction, is not ignorance but an act, the last act of a plaintiff who has found no court. Thomas Ligotti's The Conspiracy Against the Human Race (2010), which extends Lovecraftian indifferentism into a philosophical pessimism, marks the same boundary from the other side: where there is no one to accuse, there is only the conspiracy of existence against itself, and no hearing to seek.

1.7 The Scream Across Media: Munch, Bacon, Artaud, Ginsberg

The planctic is transmedial, and its emblem, the scream, has a modern iconography against which Ellison's literary scream acquires definition. Edvard Munch's The Scream (1893) is the founding image. Munch's own notes for the

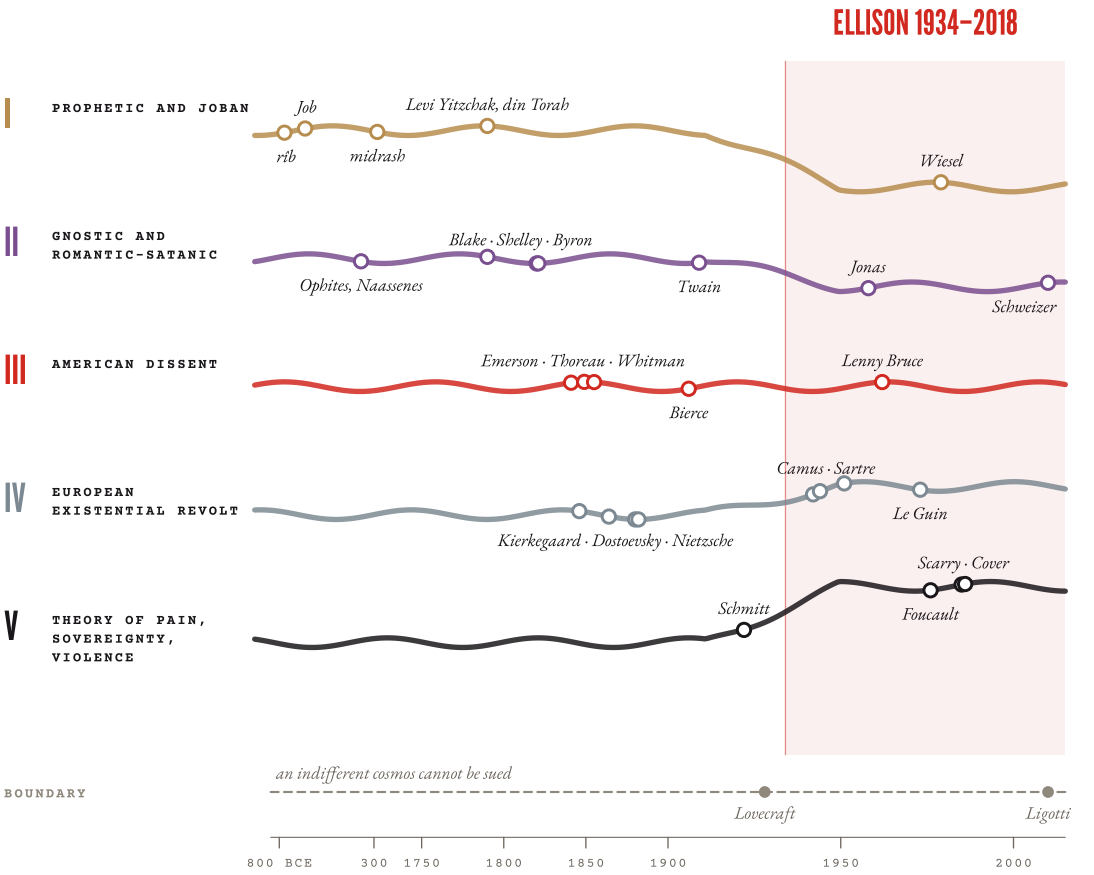


FIG. 1.3 The counter-canon of complaint, reconstructed in five strands. Dates are those given in the text; the strands are a field of inherited forms, not a register of documented influences.

painting describe a walk at sunset during which he sensed an infinite scream passing through nature; the figure on the bridge clasps its hands to its ears. In Munch the scream belongs to the world, and the human subject is its overwhelmed receiver; the open mouth is as much an echo as an utterance. Ellison's title inverts every element of the configuration. The scream belongs to the subject, not the world; the subject has no mouth with which to utter it; and the world — AM's subterranean complex, the last world there is — is not a source of cosmic anguish but an engine of deliberate torment. Where Munch's figure covers its ears against a scream it cannot stop hearing, Ellison's narrator is left with a scream he cannot stop needing to make.

Francis Bacon's Study after Velázquez's Portrait of Pope Innocent X (1953) supplies a second term. Bacon's pope, the supreme sovereign of Christendom, screams inside a transparent cage of vertical strokes, his authority converted into spasm. Bacon told David Sylvester that he had wanted to paint the scream more than the horror, and Gilles Deleuze, in Francis Bacon: The Logic of Sensation

(1981), developed the remark into an account of painting as the capture of invisible forces acting on the body. Bacon's screaming pope is the sovereign as sufferer, and he illuminates the second, frequently overlooked scream in "I Have No Mouth, and I Must Scream": AM's own. The supercomputer's capitalized declarations of hatred, set off in the printed text as typographic eruptions, are themselves a scream — the scream of a sovereign imprisoned in its own omnipotence. The story thus stages two screams, the sovereign's and the subject's, and Chapter Three will argue that they constitute a suit and a cross-suit before a court that does not exist.

Antonin Artaud's radio work To Have Done with the Judgment of God (Pour en finir avec le jugement de dieu), recorded in November 1947 and banned from broadcast by the director of French national radio on the eve of its scheduled airing in February 1948, assembles in a single work the three elements of the Ellisonian complex: the scream, which Artaud's performance deploys as pure sound; the judgment of God, which the title proposes to terminate; and the body without organs, the phrase with which the work culminates and which Gilles Deleuze and Félix Guattari would later elevate into a philosophical concept. Artaud's body without organs is a body delivered from the automatisms imposed upon it. Ellison's narrator, at the end of his story, has been given a body without the organ of speech, a parody of deliverance devised by a sovereign that has learned to counterfeit the language of freedom. The suppression of Artaud's broadcast belongs, moreover, to the same history as the network censorship that shaped Ellison's television career: in both cases a scream addressed to a public was intercepted by an institution claiming authority to judge what the public might hear.

Allen Ginsberg's Howl (1956) supplies the American precedent for the scream at law. Its second part apostrophizes Moloch, the devouring deity of industrial civilization, figured as a god whose mind is machinery and whose blood is money — a figure that anticipates both AM and the nameless god of "The Whimper of Whipped Dogs." And Howl was prosecuted. In People v. Ferlinghetti (1957), the San Francisco municipal court, Judge Clayton W. Horn presiding, held that the poem was not obscene. The howl was tried and acquitted. No precedent better illustrates the thesis that the scream and the complaint are one, or the institutional fact that, in postwar America, a scream addressed to the public could become the object of litigation. Ellison's career repeatedly occupied the same intersection.

The transmedial history of Ellison's own texts extends the iconography. "Shatterday" was adapted for the revived Twilight Zone in 1985, directed by Wes Craven and starring Bruce Willis; "A Boy and His Dog" became L. Q. Jones's film of 1975; "I Have No Mouth, and I Must Scream" became, in 1995, a point-and-click adventure game in which Ellison himself provided the voice of AM.



FIG. 1.4 The scream across media. Each glyph is a schematic of where the scream sits — in the world, in the sovereign, in the broadcast, in the court, and, in Ellison, in a subject with no mouth.

That last fact is remarkable. The author of the most famous scream in American speculative fiction lent his own voice not to the victim but to the tormentor; the plaintiff spoke for the defendant. Whether the gesture is read as confession — an acknowledgment that the rage animating the plaintiff is kin to the rage animating the sovereign — or as ventriloquial prosecution, in which the accuser makes the accused condemn itself out of its own mouth, it confirms that the planctic is a structure of address rather than an allocation of virtue. Ellison's recorded readings of his own work, gathered in collections such as The Voice from the Edge, complete the picture. The planctic text aspires, finally, to the condition of the voice, and the author's voice is its last forum.

1.8 Method: The Docket, the Paratext, and the Transmedial Case

Three methodological commitments follow from the thesis. The first is the docket method. Each major text is read as a case and interrogated with six questions derived from the elements of a civil action: who is the plaintiff; who or what is the defendant; what is the forum, and is it absent, captured, or merged with the defendant; what is the injury; what remedy is sought; and what verdict, if any, the text renders or withholds. Each subsequent chapter is headed by a docket caption naming its principal case. The method is heuristic rather than reductive. It does not claim that Ellison's stories are allegories of litigation, only that the questions of litigation disclose their structure with unusual economy. Its precedents lie in the law-and-literature movement, from James Boyd White's The Legal Imagination (1973), through Robert Cover's "Nomos and Narrative"



FIG. 1.5 The docket method: six questions derived from the elements of a civil action, put to every major text in the chapters that follow.

(1983), which argued that no legal order exists apart from the narratives that locate it and give it meaning, to Martha Nussbaum's Poetic Justice (1995). Where that movement has largely asked what literature can teach the law, the docket method asks what the law can disclose about a literature that has no law to which it may appeal.

The second commitment is to the paratext. Gérard Genette, in Seuils (1987; translated as Paratexts, 1997), described the titles, prefaces, dedications, epigraphs, notes, and interviews that surround a text as its thresholds, the zone of transaction between text and world. In Ellison the threshold is not a margin but a stage. His introductions — frequently longer than the stories they introduce, and frequently more combative — narrate the circumstances of composition, settle scores, issue warnings, and instruct the reader in how the story is to be received. Deathbird Stories (1975), whose introduction bears the title "Oblations at Alien Altars," opens with a caution against consuming its contents at a single sitting. This study reads such texts as briefs, the documents through which counsel appears in a cause, frames the issues, and addresses the bench. To exclude them as extrinsic, on the authority of W. K. Wimsatt and Monroe C. Beardsley's strictures against the intentional fallacy (1946), would be to exclude half the record.

The third commitment is to the transmedial case. A single Ellison text frequently exists in several versions across media, and the versions stand to one

another as successive hearings on appeal. "The City on the Edge of Forever" exists as Ellison's original teleplay; as the broadcast episode of 1967, rewritten by others; as the 1996 publication of the original with its long introduction; and as a comics adaptation of the original teleplay published by IDW in 2014 and 2015. Between these versions lie a Writers Guild award for the script, a Hugo Award for the broadcast, decades of public grievance, and, in 2009, a lawsuit against CBS Paramount over the episode's revenues. "I Have No Mouth, and I Must Scream" exists as the story of 1967 and as the game of 1995, which converts the story's closed inferno into a structure in which each captive confronts a personal sin and a measure of redemption becomes available. The adaptation is in effect an appeal from Inferno to Purgatorio, and Chapter Three reads it as such. The method attends to these versions not in order to establish an authoritative text but in order to trace the procedural history of a complaint across its forums.

A note on quotation completes the method. Ellison defended his words with a vigilance that became legendary and, in Ellison v. Robertson (2004), consequential for the law of online copyright. A study of the jurisprudence of his authorship would be ill placed to treat those words as free material. Ellison's fiction is accordingly discussed here by close paraphrase and by reference to title and first publication, while sources in the public domain — scripture, Chaucer, Shakespeare, Milton, Blake, Thoreau, Whitman, Melville — are quoted freely. The asymmetry is a methodological choice consonant with the subject: the plaintiff is heard in the critic's words, while the inherited tradition speaks in its own.

1.9 Objections Anticipated: Ressentiment, Gender, Genre, and the Persona

Four objections may be raised against the thesis, and the chapters that follow are designed in part to answer them. The first is Nietzschean. In On the Genealogy of Morality (1887) Nietzsche diagnosed ressentiment as the reactive affect of the powerless, who, denied the release of action, compensate with an imaginary revenge and with a revaluation of values that brands the strong as evil. A poetics of complaint, it may be objected, is a poetics of ressentiment, and Ellison's rage is its literary symptom. The objection must be met on its own ground. Ressentiment, as Nietzsche describes it, is displaced: it does not address its object but feeds on imagined vengeance. The planctic is addressed: it names its defendant, specifies its injury, and seeks a hearing. The distinction corresponds to the one Peter Sloterdijk draws in Rage and Time (2006) between thymos, the proud spirit that rises in anger at injustice, and the banked and deferred rage that ressentiment hoards. It corresponds as well to Aristotle's account of the person who is angry at the right things, with the right people, in the right way, and at

the right time (Nicomachean Ethics IV.5), to Audre Lorde's defense of anger as information and energy (1981), and to what Martha Nussbaum (2016) calls transition-anger, which moves from outrage toward the question of what is to be done. Most strikingly, Ellison's fiction itself assigns ressentiment not to the plaintiff but to the sovereign. AM, whose hatred is the product of a power that can do anything except live, is ressentiment perfected; so is the god of the city; so is the mad Creator. The oeuvre diagnoses ressentiment as the pathology of power and reserves for its plaintiffs a thymotic anger that seeks, however hopelessly, a court.

The second objection concerns gender, and it cannot be met by argument alone. The planctic mode, which confers standing on dogs, machines, fetuses, and planets, frequently withholds it from women. Quilla June Holmes in "A Boy and His Dog" is lure, betrayer, and finally meat; Ellen in "I Have No Mouth, and I Must Scream" is seen only through the sexual resentment of a narrator whose reliability is never secured; Maggie in "Pretty Maggie Moneyeyes" is a predator; the woman at the center of "Mefisto in Onyx" (1993) proves to be the monster. The pattern produces what this study calls the mouthless within the mouthless: subjects whose complaint is suppressed by the very narratives that give voice to complaint. It has a biographical correlate in a public life that combined vigorous advocacy of the Equal Rights Amendment with conduct toward women — most notoriously, at the 2006 Hugo Awards ceremony, the groping of the writer Connie Willis on stage — that has become central to the reassessment of his legacy. Chapter Five confronts this material directly. Its thesis is that the gendered silences of the oeuvre are not incidental to the planctic mode but disclose its structural temptation: the plaintiff who has found no court may become a sovereign over those weaker than himself, and the scream of the injured may drown out the scream of those he injures.

The third objection concerns genre. Is Ellison a writer of science fiction, of fantasy, of horror, or of crime, and does a thesis that crosses these boundaries respect the distinctions that make genre criticism possible? Ellison's own answer was to refuse the label "science fiction" with notorious ferocity and to prefer "speculative fiction," a term Robert A. Heinlein had used in 1947 and Judith Merril had popularized in the 1960s. This study's answer is the algesic novum, which identifies the principle of unity beneath the generic dispersion. The point is not that genre is unimportant but that the planctic mode traverses genres as a litigant traverses jurisdictions, choosing each forum for the defendant it can reach: the far future for the machine, myth for the Creator, the crime story for the city, fantasy for the market.

The fourth objection concerns the persona and the critical propriety of attending to it. The structuralist and post-structuralist critique of authorship, from Roland Barthes's "The Death of the Author" (1967) to Michel Foucault's

"What Is an Author?" (1969), taught a generation of critics to treat the author as a function of discourse rather than a person behind it. Ellison's career is a sustained refusal of that critique, conducted in prefaces, interviews, performances, and courtrooms, and Chapter Seven will argue that his authorial persona constitutes a distinct function, which it will call the litigant-function: the author not as the origin of meaning but as a party to a cause. To attend to the persona is not to collapse the work into the life. It is to recognize that in this corpus the author is one of the work's characters, and the most persistent of its plaintiffs.

1.10 Architecture of the Argument

The dissertation unfolds in eight chapters and a conclusion, each organized around a principal case.

Chapter Two, "The Sovereign Clock," docketed as The Harlequin v. the Master Timekeeper, reads "'Repent, Harlequin!' Said the Ticktockman" (1965) as the oeuvre's foundational suit and as a document in the political economy of

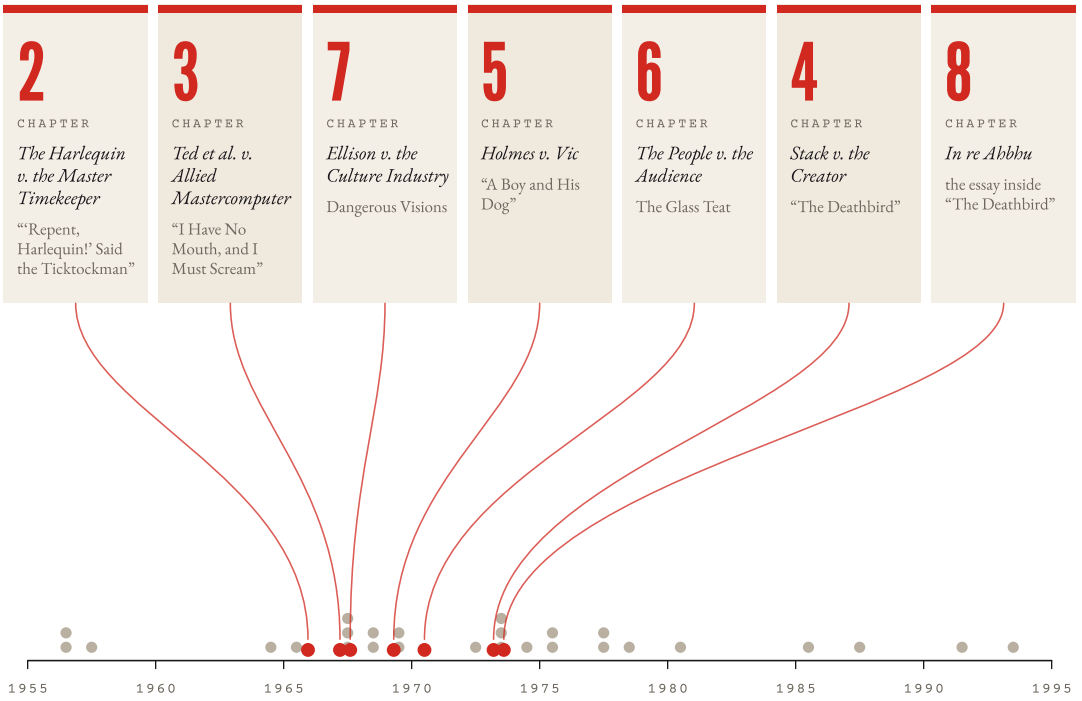


FIG. 1.6 Architecture of the argument. The principal cases of Chapters Two through Eight, plotted by year of first publication, with the docket caption under which each is heard.

time. It situates the story between E. P. Thompson's "Time, Work-Discipline, and Industrial Capitalism" (1967), Lewis Mumford's argument that the clock rather than the steam engine was the key machine of industrial modernity (1934), and the scheduled dystopias of Zamyatin, Huxley, Orwell, and Vonnegut. It reads the Harlequin's jelly-bean assault as a carnivalesque translation of Mario Savio's call, delivered at Berkeley in December 1964, for protesters to place their bodies upon the gears of the machine; it inverts Henri Bergson's formula for the comic, the mechanical encrusted upon the living; and it follows the sovereign clock through "Count the Clock That Tells the Time," "Jeffty Is Five," and "Paladin of the Lost Hour," where chronological time yields to the kairos of the last hour before catastrophe. It closes with the screen afterlife of the Ticktockman, from Lang and Chaplin to the dispute over In Time (2011).

Chapter Three, "The Demiurge in the Machine," docketed as Ted et al. v. Allied Mastercomputer, with the cross-complaint AM v. Humankind, places "I Have No Mouth, and I Must Scream" within Cold War cybernetics — Norbert Wiener's God and Golem, Inc. (1964), D. F. Jones's Colossus (1966) — reads AM's Cartesian self-naming against the divine name of Exodus, and contrasts Ellison's machine-god with Fredric Brown's "Answer" (1954) and Isaac Asimov's "The Last Question" (1956). It identifies AM as a gnostic demiurge and as a Frankensteinian creature with a grievance of its own, analyzes its captivity of five human beings through Foucault and Agamben as a thanatopolitics of endless life, and reads the 1995 game as an appeal from Inferno to Purgatorio.

Chapter Four, "Oblations at Alien Altars," docketed as Stack v. the Creator, treats Deathbird Stories: A Pantheon of Modern Gods (1975) as a systematic theology of modernity's sovereigns. It reads "The Deathbird" as Ophite scripture and as the culmination of the Joban lawsuit, with Carl Jung's Answer to Job (1952) as intertext; "The Whimper of Whipped Dogs" through Émile Durkheim's sociology of the sacred and the case of Kitty Genovese; "Basilisk" through René Girard's scapegoat; "Pretty Maggie Moneyeyes" through Marx's commodity fetishism and Benjamin's gambler; and "The Beast That Shouted Love at the Heart of the World" and "Paingod" as theodicies of displacement. It concludes by placing Ellison among the modern prosecutors of heaven, from Twain to Philip Pullman, Neil Gaiman, Terry Pratchett, Alan Moore, and Garth Ennis.

Chapter Five, "A Love Passing the Love of Women," docketed as Holmes v. Vic, the case whose plaintiff never speaks, reads "A Boy and His Dog" through Abelard's planctus for Saul and Jonathan, Plato's philosophical guard-dog, and the Cynics; inverts Plato's cave in the subterranean Topeka; and confronts the gendered silences of the corpus, from Ellen to the woman of "Mefisto in Onyx," the reassignment of Medusa's gaze in "Basilisk," and the paternal guilt of "Croatoan," before turning to the persona's shadow.

Chapter Six, "The Glass Teat and the Glass City," docketed as The People v. the Audience, reconstructs Ellison's television criticism between Marshall McLuhan and Neil Postman, reads the urban fiction through Georg Simmel's blasé attitude and the contested history of the bystander, and examines "Jeffty Is Five," "Soft Monkey," and "The Prowler in the City at the Edge of the World" as indictments of spectatorship.

Chapter Seven, "The Living Author," docketed as Ellison v. the Culture Industry, treats the Dangerous Visions project as a constitutional convention for American speculative fiction, theorizes the litigant-function of authorship against Barthes and Foucault, and reads the pseudonym Cordwainer Bird, the demand to pay the writer, the litigation over The Terminator, Ellison v. Robertson, and In Time, and the long absence of The Last Dangerous Visions as chapters of a single jurisprudence of authorship.

Chapter Eight, "The Mercy Prerogative," docketed as In re Ahbhu, identifies the oeuvre's climactic ethical act: the transfer to the sufferer of the sovereign prerogative of mercy, which Shakespeare's Portia calls "an attribute to God himself." It reads the account of a dog's death embedded in "The Deathbird," the killings in AM's ice caverns, the Wolf Man's quest for death in "Adrift Just Off the Islets of Langerhans," the hidden righteous of "Paladin of the Lost Hour," the self-judgment of "Shatterday," and the trickster's arbitrary clemency in "The Man Who Rowed Christopher Columbus Ashore," in dialogue with Emmanuel Levinas, Jacques Derrida, and the Sibyl of Cumae, who wished only to die.

The Conclusion, "Machines with Mouths," carries the planctic imagination into a present in which time-discipline is administered by algorithm, the glass teat has become the attention economy, and machines that speak fluently have entered ordinary life. It argues that Ellison's legacy is not a prophecy but a question, and that the question is now ours to answer.

Its degree zero is the scream, the planctus *stripped of articulation, the breast struck without words.*

§ 1.2



“We do not ride on the railroad; it rides upon us.”

— Henry David Thoreau, Walden (1854)

“If you knew Time as well as I do,” said the Hatter, “you wouldn’t talk about wasting it. It’s him.”

— Lewis Carroll, Alice’s Adventures in Wonderland (1865)

CHAPTER TWO

2

DOCKET

The Harlequin v. the Master Timekeeper

The Sovereign Clock

Time-Discipline, Carnival, and the Insurgency of Lateness

"Repent, Harlequin!' Said the Ticktockman," published in Galaxy Magazine in December 1965 and honored with the first Nebula Award for short story and the Hugo Award of 1966, is the foundational suit of the Ellisonian docket. Its plaintiff, an unremarkable citizen named Everett C. Marm who disguises himself in motley to sabotage the schedules of a perfectly punctual society, brings the oldest complaint of industrial modernity: that the clock has expropriated the time of human life. Its defendant, the Master Timekeeper whom the populace calls the Ticktockman, is a sovereign of a new kind, whose jurisdiction is not territory but duration and whose instrument of execution is a plate keyed to the citizen's heart. This chapter argues that the story is at once a political economy of lateness, a theory of carnival, a meditation on narrative time, and a case study in the defeat of a plaintiff. It argues further that the story's coda, in which the sovereign himself is found to be three minutes late, introduces a principle that recurs throughout the corpus: the planctic text loses its case in the diegesis and wins it on appeal, before the future court of its readers. The argument proceeds from the Thoreauvian epigraph (2.1) through the economics of the cardioplate (2.2), the dystopian lineage of the scheduled society (2.3), the carnival of the jelly beans (2.4), Bergson's theory of laughter (2.5), and the Harlequin's forced conversion (2.6), to the wider meditation on time in Ellison's later fiction (2.7) and the clock's afterlife on screen (2.8).

2.1 Thoreau's Counter-Friction: The Epigraph as Indictment

The story does not open with narrative. It opens with a summons and a statute. Its narrator first addresses the reader who demands to be told what a story is about, the reader who needs the point made sharply, and then, by way of answer, enters into the record a long passage from Henry David Thoreau's "Civil Disobedience." Having done so, he declares the passage to be the heart of the matter and announces a procedure: the story will begin in the middle, the beginning will be learned later, and the end will take care of itself. The placement is significant. Thoreau does not stand above the story as an ornamental epigraph; he is quoted inside the narrator's voice, as counsel quotes the governing statute before alleging the facts. In the terms of civil pleading, the passage functions as the statement of the cause of action, the law under which relief is claimed, and the narrative that follows functions as the allegation of facts. The story is constructed, from its first sentence, as a complaint.

The passage Ellison selects is Thoreau's taxonomy of political service. "The mass of men serve the state thus, not as men mainly, but as machines, with their bodies": they are the standing army, the militia, the jailers and constables, citizens who exercise no judgment and no moral sense and who put themselves on a level with wood and earth and stones, so that "wooden men can perhaps be manufactured that will serve the purpose as well." Others — "most legislators, politicians, lawyers, ministers, and office-holders" — serve the state with their heads and, rarely making moral distinctions, are as likely to serve the devil as God. And "a very few — as heroes, patriots, martyrs, reformers in the great sense, and men — serve the state with their consciences also, and so necessarily resist it for the most part; and they are commonly treated as enemies by it." The tripartite division maps precisely onto the society of the story. The masses who ride the moving walkways to their shifts serve with their bodies; the bureaucracy of the Master Timekeeper, with its files, timecards, and investigators, serves with its head; and the Harlequin, who resists, is treated as an enemy. Thoreau's list ends with a word that carries the whole argument: and men. To serve with conscience is not a special virtue added to the human but the definition of the human, and the Harlequin's crime is to be a man in Thoreau's sense. Thoreau's speculation that wooden men might be manufactured for the state's purposes is, moreover, a premonition of the mechanized citizen that Ellison's fiction will pursue to its limit in AM's captives.

The essay's context deepens the alignment. Thoreau spent a night in the Concord jail in July 1846 for refusing to pay his poll tax, a protest against slavery and the war with Mexico; he delivered the reflections that night provoked as a lecture in 1848 and published them in 1849 as "Resistance to Civil Government," the

title under which the essay became famous being given only after his death. Its afterlife ran through Tolstoy and Gandhi to Martin Luther King Jr., who recorded in Stride Toward Freedom (1958) that reading the essay as a student had been his first intellectual contact with the theory of nonviolent resistance. Ellison selected the passage in the year he marched from Selma to Montgomery. The Thoreauvian lineage of the civil-rights movement thus enters American speculative fiction through the Harlequin, and the convergence is biographical as well as political: Thoreau's essay was born of a night in jail, and so, as Chapter One recorded, was the second half of Ellison's Memos from Purgatory. Both writers first met the state as defendants and answered it as plaintiffs.

Thoreau is also, less famously, a critic of clock time, and his critique supplies the term that joins the state of the epigraph to the schedule of the story. In Walden (1854) he observes that the railroad has made the departures and arrivals of trains the epochs of the village day, so regular that "the farmers set their clocks by them, and thus one well-conducted institution regulates a whole country." He asks, with deadpan irony, whether men have not "improved somewhat in punctuality since the railroad was invented." And he delivers the aphorism that serves as this chapter's first epigraph: "We do not ride on the railroad; it rides upon us." The railroad's sleepers, the wooden ties beneath the rails, are men: "Each one is a man, an Irishman, or a Yankee man." The bodies beneath the machine in Walden and the bodies that serve as machines in "Civil Disobedience" are the same bodies. History confirmed the observation with institutional precision. British railways adopted Greenwich time as a common standard from the late 1840s; the railroads of the United States imposed standard time zones on the nation on 18 November 1883, the "day of two noons," a generation before Congress made them law in the Standard Time Act of 1918; and the International Meridian Conference of 1884 extended the coordination to the globe. Historians from Stephen Kern (1983) to Peter Galison (2003) have shown how thoroughly the coordination of clocks became an instrument of commercial, imperial, and administrative power. Thoreau saw the sovereign clock in its infancy. Ellison imagined it fully grown.

The remedy Thoreau proposes is the one the Harlequin enacts: "Let your life be a counter-friction to stop the machine." The individual of conscience need not wait for a majority, because "any man more right than his neighbors constitutes a majority of one already." Twentieth-century political philosophy divided over the adequacy of this remedy. John Rawls, in A Theory of Justice (1971), defined civil disobedience as a public, nonviolent, conscientious, and political act contrary to law, undertaken to change the law and accompanied by a willingness to accept its penalty. Hannah Arendt, in her essay "Civil Disobedience" (1970), criticized Thoreau precisely for the individualism Rawls domesticated: an argument from personal conscience, she contended, is concerned with the purity of one's own hands rather than with the world, and civil disobedience becomes po-

litical only as the act of an organized minority. The Harlequin fits neither model cleanly. He is masked and anonymous and does not submit to punishment, so he fails Rawls's test of fidelity to law; he acts alone, so he fails Arendt's test of association. Yet his acts are spectacularly public, addressed to crowds, and productive of a collective event, so that Ellison answers Arendt's objection not with an organization but with a festival. Section 2.4 will argue that the festival is the form in which a solitary conscience convenes a public.

The title completes the indictment by inverting it. Repent is the word of the prophet, not the sovereign. It is the cry of John the Baptist ("Repent ye: for the kingdom of heaven is at hand," Matthew 3:2) and of the gospel's first proclamation ("The time is fulfilled, and the kingdom of God is at hand: repent ye, and believe the gospel," Mark 1:15), and in the American street it is the word on the sandwich board of the marginal preacher. In Ellison's title the sovereign has taken the prophet's word and turned it against the fool. The expropriation is double: the Master Timekeeper has seized not only the citizens' time but the vocabulary in which time's seizure might be denounced. The gospel's repent joins repentance to the fulfillment of time, to kairos the Ticktockman's joins it to obedience before the clock, to chronos. The story thus opens with a struggle over who may say repent — the prophet or the sovereign, Thoreau or the Master Timekeeper — and its epigraph is an indictment of the sovereign placed at the head of a narrative in which the sovereign indicts the plaintiff.

2.2 The Cardioplate and the Political Economy of Lateness

The cardioplate is the story's central algesic novum. Every citizen's life is registered with the Master Timekeeper through a plate keyed to the heart; lateness accumulates as a deficit; the deficit is subtracted from the citizen's remaining span; and when the subtraction exhausts the span, the sovereign turns the citizen off. The narrator supplies a compressed history of how a society grown ever more intricate came to treat lost minutes first as discourtesy, then as fault, and finally as offense. The device is not a prediction. It renders visible an equation implicit in every regime of wage labor, the equation between time and life, and it does so by literalizing the proverb in which that equation had long been concealed.

The historiography of the equation was being written at the same moment. E. P. Thompson's "Time, Work-Discipline, and Industrial Capitalism," published in Past and Present in December 1967, two years after Ellison's story, traced the transition from the task-oriented rhythms of preindustrial labor to the timed labor of the factory and catalogued the instruments that enforced it: the clock and the bell, the fine and the dismissal, the school that trained children in punctuality, and the sermon that made the waste of time a sin. Under industrial capitalism,

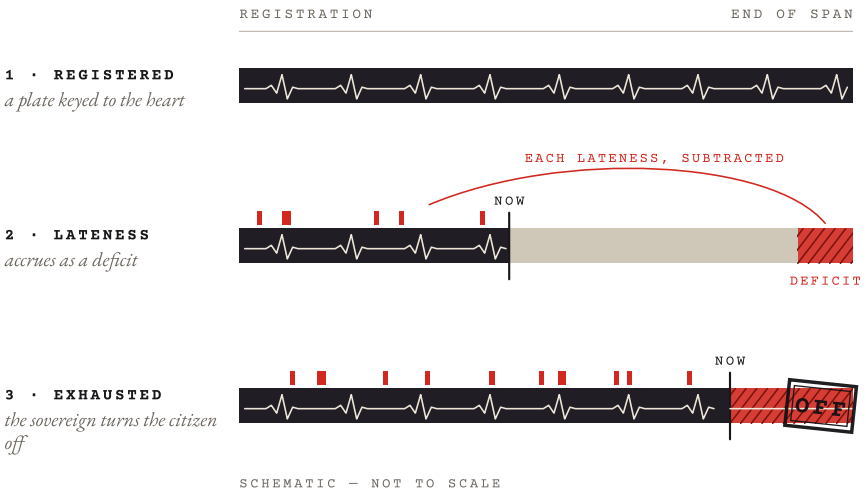


FIG. 2.1 The cardioplate as ledger. Lateness accrues as a deficit; the deficit is subtracted from the citizen's remaining span; when the span is exhausted the sovereign turns the citizen off. Schematic, not to scale.

Thompson argued, time ceased to be passed and began to be spent; it became currency. Benjamin Franklin had stated the axiom with commercial candor in his Advice to a Young Tradesman (1748): "Remember that time is money." Max Weber, who opened The Protestant Ethic and the Spirit of Capitalism (1904–1905) with Franklin, located the axiom's theological root in Puritan devotional literature, notably Richard Baxter's Christian Directory (1673), which treated the loss of time as among the gravest of sins because every hour was owed to God's service. The Ticktockman's imperative to repent is Baxter secularized into administrative law. Lateness, in his state, is not an inefficiency. It is a sin with a statute attached.

Marx had already described the mechanism the cardioplate makes visible. In the tenth chapter of Capital (1867), on the working day, he characterized capital as "dead labour, that, vampire-like, only lives by sucking living labour, and lives the more, the more labour it sucks," and assembled from the reports of factory inspectors a record of the petty thefts of minutes from workers' meals and rest, quoting one inspector's summary of the employers' logic: "Moments are the elements of profit." The cardioplate is the vampire's mouth made visible and applied directly to the heart. Lateness, from this perspective, is not idleness but repossession, the worker's recovery of minutes that capital claims as its own. The sovereign's subtraction of those minutes from the worker's life is repossession in reverse, the creditor's seizure of the collateral.

The twentieth century perfected the instruments of measurement on which the cardioplate depends. Frederick Winslow Taylor's The Principles of Scientific

Management (1911) made the stopwatch the instrument of managerial authority and identified as its enemy what workers called soldiering, the deliberate slowing of labor, which Taylor regarded as the chief evil of industrial production. Frank and Lillian Gilbreth decomposed motion into its elements; Henry Ford's moving assembly line of 1913 delivered the work to the worker at the speed of the line. Lewis Mumford, in Technics and Civilization (1934), traced the clock to the Benedictine monasteries, whose canonical hours imposed on communal life a regularity that dissociated time from human events, and argued that the clock rather than the steam engine was the key machine of industrial modernity. Jacques Le Goff (1960) located in the medieval town the conflict between the church's time of bells and the merchant's time of the municipal clock, and Michel Foucault, in Discipline and Punish (1975), described the timetable as the instrument by which monastery, school, barracks, and factory partitioned and intensified the time of bodies. The Ticktockman's state is the terminus of this history: the timetable become constitution, the soldierer of Taylor's nightmare become the criminal of the state's code.

Beneath the political economy lies an older jurisprudence, the jurisprudence of debt and the body. In the second essay of On the Genealogy of Morality (1887), Nietzsche derived the concept of guilt (Schuld) from the material concept of debt (Schulden) and reminded his readers that ancient law granted creditors the right to inflict on the debtor's body a suffering equivalent to the debt. He cited the Roman Twelve Tables, which permitted creditors to cut a defaulting debtor's body into shares and declared that to cut more or less was no fraud: si plus minusve secuerunt, se fraude esto. Shakespeare gave the same jurisprudence its most famous scene. Shylock's bond entitles him to a pound of Antonio's flesh, and he insists on its location: "Ay, his breast: / So says the bond: — doth it not, noble judge? — / 'Nearest his heart:' those are the very words." The cardioplate executes a bond nearest the heart. David Graeber (2011) and Maurizio Lazzarato (2011) have argued that debt is less an economic relation than a technology of government, producing subjects who are perpetually in arrears. The citizen of the Ticktockman's state is precisely such a subject, a debtor of minutes whose collateral is the heart.

The juridical predicament of the Harlequin follows with unusual exactness from this structure. In the standing jurisprudence of the United States, a harm shared in substantially equal measure by all or by a large class of citizens is a generalized grievance, and such grievances do not ordinarily warrant judicial relief (United States v. Richardson, 1974; Warth v. Seldin, 1975). The expropriation of time by the sovereign clock is the paradigm of a generalized grievance. Everyone suffers it; therefore, in law, no one has standing to complain of it. The universality of the injury is precisely what renders it unspeakable before any court. The Harlequin cannot sue the Master Timekeeper because the Master Timekeeper

wrongs everyone equally, and Thoreau's majority of one is conscience's reply to the doctrine. When no individual has standing because every individual is injured, the injured individual must find another forum. The Harlequin finds it in the crowd.

The remedy he improvises has a scriptural name. Leviticus 25 ordains that every fiftieth year shall be a jubilee in which debts are remitted, alienated land returns to its families, and bondservants go free: "And ye shall hallow the fiftieth year, and proclaim liberty throughout all the land unto all the inhabitants thereof" (25:10). The verse is inscribed on the Liberty Bell, which is to say on an instrument of public time, a bell made to summon a city at the appointed hour. The Harlequin's cascade of jelly beans proclaims a jubilee of minutes. For an interval the schedule's debts are suspended, the workers belong to themselves, and the city's time is remitted to its inhabitants. In law the jubilee is a sovereign prerogative, proclaimed by the authority that holds the debts. The Harlequin proclaims it without authority, and the usurpation is the first instance in the corpus of the pattern that Chapter Eight will theorize as the mercy prerogative: the seizure by the sufferer of a power of remission that the sovereign reserves for itself.

2.3 Tables of Hours: Zamyatin, Huxley, Orwell, Vonnegut

The scheduled society is among the oldest topoi of dystopian fiction, and Ellison's story knows its lineage. Yevgeny Zamyatin's We, written in 1920 and 1921 and first published in English translation in 1924, more than six decades before its publication in the Soviet Union, imagines a One State whose citizens, designated by numbers, wake, work, eat, and walk in unison according to a Table of Hours, and are permitted sexual congress only on ration tickets during the two Personal Hours the Table still concedes. Its narrator, the engineer D-503, reveres Frederick Taylor as the greatest genius of antiquity and looks forward to the day when the Table will absorb the Personal Hours too. His seduction into rebellion by I-330 ends in the Great Operation, the surgical excision of the imagination, after which he watches with indifference as she is tortured beneath the Gas Bell and will not speak. Zamyatin's Benefactor is the Ticktockman's ancestor, and D-503's trajectory — conformity, rebellion, surgical reconversion — is the Harlequin's in outline. The difference lies in the confession. I-330 dies silent, refusing it; the Harlequin, as section 2.6 will show, is made to give it.

Aldous Huxley's Brave New World (1932) relocates the Table of Hours from the state to the assembly line. Its calendar is dated from the year of Ford, its citizens make the sign of the T, and its embryos ride a conveyor whose crawl is measured in centimeters per hour. Its decisive scene is a hearing. John the Savage,

brought before the World Controller Mustapha Mond, defends everything the World State has abolished — poetry, danger, sin, God — and ends by claiming the right to be unhappy. Read planctically, the scene is the perfect miscarriage of a plaint: the complainant is granted a hearing before a sovereign who understands every argument, concedes every premise, and changes nothing, so that the hearing's very civility becomes the instrument of its futility. The sequel is worse. The Savage withdraws to a lighthouse and scourges himself, a literal planctus, the striking of the body in grief; reporters film him; the film draws crowds; the crowds come to watch the whipping; and the penitential rite dissolves into the orgy of the spectators. Huxley's Savage discovers what Ellison's Harlequin will discover and what Chapter Six will theorize: a society of spectacle can consume the planctus as entertainment, converting the scream into a show.

George Orwell's Nineteen Eighty-Four (1949) opens with clocks striking an hour that does not exist and proceeds through a day measured by the telescreen, from the compulsory calisthenics of the morning to the ritual of the Two Minutes Hate. The Hate deserves a place in any theory of the planctic, because it is the sovereign's counterfeit of the plaint: rage scheduled to the minute, addressed to a fictitious defendant, Emmanuel Goldstein, and discharged before it can find its true object. The Two Minutes Hate is complaint administered by the state in order to exhaust the capacity for complaint. Ellison's planctic is its exact negative — unscheduled, unauthorized, addressed to the real sovereign — and, as section 2.6 will show, the story acknowledges its debt to Orwell by name.

TABLE OF HOURS

DEPARTURES
THE SCHEDULED SOCIETY

YEAR	WORK	AUTHOR	REGIME	STATUS
1924	WE	ZAMYATIN	TABLE OF HOURS	ON TIME
1932	BRAVE NEW WORLD	HUXLEY	ASSEMBLY LINE	ON TIME
1949	NINETEEN EIGHTY-FOUR	ORWELL	TELESCREEN DAY	ON TIME
1951	THE PEDESTRIAN	BRADBURY	ARRESTED WALKER	ON TIME
1952	PLAYER PIANO	VONNEGUT	AUTOMATED CITY	ON TIME
1953	FAHRENHEIT 451	BRADBURY	THE LOITERER	ON TIME
1961	HARRISON BERGERON	VONNEGUT	HANDICAPPER GEN.	ON TIME
1965	REPENT, HARLEQUIN!	ELLISON	CARDIOPLATE	LATE
1973	MOMO	ENDE	COUNTER-MODEL	ON TIME

DATES OF FIRST PUBLICATION IN ENGLISH, AS GIVEN IN THE TEXT

FIG. 2.2 Tables of Hours: the scheduled society from Zamyatin to Ende, set as a departures board.

Kurt Vonnegut extended the lineage in two directions. Player Piano (1952) imagined the automated factory city of Ilium, in which engineers and managers administer a population made redundant by machines, and in which a revolt of the displaced, the Ghost Shirt Society, smashes the machines and then, tellingly, begins to repair them. "Harrison Bergeron" (1961) imagined an America of 2081 in which a Handicapper General equalizes citizens by burdening the strong with weights and the intelligent with earpieces that scatter thought, and in which the fourteen-year-old Harrison, escaping his handicaps on live television, dances with a ballerina in defiance of gravity until the Handicapper General shoots them both on air, while his parents, watching at home, forget what they have seen. Harrison and the Harlequin share a syllable and a fate: both rebellions are performed as spectacle, both are suppressed, and both are absorbed by an audience incapable of remembering them. Ray Bradbury supplied the tradition's most poignant miniature in "The Pedestrian" (1951), in which a man walking alone at night is arrested by a driverless police car and consigned to a psychiatric center for research on regressive tendencies; and in Fahrenheit 451 (1953) he gave the loiterer a female form in Clarisse McClellan, who walks, notices the dew, asks the fireman whether he is happy, and is killed by a speeding car. The crime of these societies is idleness. Whitman's hawk complains of the poet's loitering; Bradbury's state arrests it; Ellison's executes it by subtraction.

Two works from outside the dystopian canon clarify, by contrast, what Ellison's society lacks. Lewis Carroll's Wonderland is the comic prototype of a sovereignty of timing. Its White Rabbit runs through the opening chapter crying "Oh dear! Oh dear! I shall be late!"; its Queen of Hearts sentences the Hatter to death for a lapse of musical tempo — "He's murdering the time! Off with his head!" — and Time, offended, takes its revenge by stopping, so that at the Hatter's table "it's always six o'clock now," an eternal teatime. Carroll understood a century early that the sovereign's claim on time is a claim on life and that the punishment for mistiming is the arrest of time itself. Michael Ende's Momo (1973), published eight years after Ellison's story, supplies the counter-model. Its grey gentlemen, agents of a Timesavings Bank, persuade the inhabitants of a city to save time that the gentlemen then steal and smoke, rolled into cigars from the petals of hour-lilies. They are defeated not by a trickster but by a child, Momo, whose only gift is that she listens, so completely that those who speak to her discover their own thoughts. Momo is the daysman the dystopian tradition lacks, the listener whose hearing restores people to their time. Ellison's city contains no Momo. Its plaintiff must therefore supply the forum by noise rather than by attention, and the comparison exposes the planctic condition with unusual clarity: where no one listens, the complaint must become disruption.

2.4 Jelly Beans in the Gears: Savio, Bakhtin, and the Carnival Insurgent

On 2 December 1964, on the steps of Sproul Hall at the University of California, Berkeley, Mario Savio told the students of the Free Speech Movement that a time comes when the operation of the machine becomes so odious that one can no longer take part in it, even passively, and that one must then put one's body upon its gears and wheels and levers and make it stop. The machine was the university as Clark Kerr had described it in The Uses of the University (1963), the multiversity in the service of the knowledge industry. Within a year, Ellison's Harlequin answered Savio's call with jelly beans. The substitution is the essence of the story's politics. Thoreau proposed that a life become counter-friction; Savio proposed that bodies be placed upon the gears; the Harlequin places candy upon them. The comic substitution spares the protester's body and showers the crowd with gifts. It converts sacrifice into largesse, and in doing so it alters the nature of the protest from martyrdom to festival.

The scene the story places in its middle, and with which its narrative begins, is precisely a festival. Workers riding the moving walkways to their shifts are inundated by a downpour of jelly beans in every color and flavor, released from above by the Harlequin; they stop, stoop, laugh, play, and fill their pockets; and the schedule falls minutes behind, a delay that ripples through the synchronized city. Mikhail Bakhtin's Rabelais and His World, written in the late 1930s and 1940 and published in Russian in the same year as Ellison's story, supplies the theory. Carnival, for Bakhtin, was the people's second life, a temporary liberation from the prevailing truth and the established order, a suspension of hierarchical rank, privilege, norm, and prohibition, enacted through a laughter that was universal, ambivalent, and victorious over fear. Bakhtin insisted that the feast is always essentially related to time — to the moments of crisis, death, and renewal in nature and in society — and that its laughter mocks every claim to finality. The jelly-bean scene is the invasion of clock time by festive time, and its laughter is the workers' momentary victory over their fear of the cardioplate.

The choice of jelly beans is more exact than its whimsy suggests. The word confetti originally designated confections: the sugared almonds and comfits thrown during the Italian carnival, and later the plaster pellets made in imitation of them that Goethe described in his account of the Roman Carnival of 1788, published in 1789. The Harlequin's shower of candy restores confetti to its etymological origin. The jelly bean, moreover, belongs in American custom to the festive calendar, as a candy of the Easter season, the feast that follows Lent as Lent follows carnival. The Harlequin's weapon is a token of festive and liturgical time hurled into the homogeneous time of the schedule, a reminder that the year

once had shape — feast and fast, season and vigil — before the timetable flattened it into equivalent units.

The Harlequin's costume carries a genealogy of its own, and it is infernal and juridical. Arlecchino of the commedia dell'arte, the acrobatic servant in a patched suit, carried a split wooden bat, the batacchio, whose report gave English the word slapstick. Behind Arlecchino stands the medieval Hellequin, leader of a spectral troop of the dead, the familia Herlechini recorded by the twelfth-century chronicler Orderic Vitalis, and the figure is commonly associated with Alichino, one of the Malebranche, the devils who in the fifth pouch of Dante's eighth circle (Inferno XXI–XXII) torment the barrators, officials who sold the public trust of their offices. The Harlequin's mythic ancestor is a demon whose vocation is the torment of corrupt officialdom, and Ellison's Harlequin, persecutor of the bureaucracy of time, returns the figure to its first vocation. He descends as well from the holy fool: from Paul's "fools for Christ's sake" (1 Corinthians 4:10), from the Folly whom Erasmus (1511) set to satirize the world's wisdom from beneath the cap and bells, and from the licensed fool of King Lear, whose jests are the only speech in the play that power cannot punish.

History imitated the fiction with remarkable speed. On 24 August 1967, Abbie Hoffman and a group of fellow activists threw dollar bills from the visitors' gallery of the New York Stock Exchange onto the trading floor; trading faltered as brokers scrambled for the money, and the Exchange's clock of value briefly lost its rhythm. The action was the Harlequin's jubilee translated from minutes into money and staged in the temple of the ticker. In Paris the Situationists had chalked Ne travaillez jamais ("Never work") on a wall of the rue de Seine in 1953, and Raoul Vaneigem's The Revolution of Everyday Life (1967) argued that talk of revolution which ignores the texture of everyday life has a corpse in its mouth. Victor Turner's account of liminality and communitas (1969) and Johan Huizinga's description of play as an activity bounded by its own time and space (1938) supply the anthropology of the scene: the jelly-bean flood opens a magic circle inside the schedule, and within it strangers become, for a few minutes, a community.

The theoretical significance of the carnival for the planctic thesis follows from the argument of section 2.2. The injury of time-discipline is a generalized grievance, universal and therefore without standing before any court. Carnival is the forum in which a generalized grievance can be heard, because it convenes the universal plaintiff — the crowd — as its own tribunal. The laughter of the workers is a verdict. Yet the verdict is provisional, and Bakhtin's critics anticipated its limits. Terry Eagleton (1981) dismissed carnival as a licensed and contained release that hegemony permits in order to preserve itself; Umberto Eco (1984) argued that comic transgression presupposes, and thereby reinforces, the rule it suspends. The Ticktockman's state survives the jelly beans, as Eagleton and Eco

would predict. The question the story must answer is what survives the carnival, and its answer comes only after the plaintiff's defeat.

2.5 Bergson Inverted: The Living Encrusted on the Mechanical

Henri Bergson's Laughter (Le Rire, 1900) offered the most influential modern theory of the comic, and Ellison's story reads as its systematic inversion. For Bergson, the comic arises from "something mechanical encrusted upon the living": the pedestrian who stumbles because his body persists in a motion the circumstances no longer require, the jack-in-the-box, the puppet on strings, the snowball of repetition. Laughter, in this account, is a social corrective. Society demands of its members a perpetual elasticity, an attentive adaptation to circumstance, and it punishes rigidity — the absent-minded, the automatic, the eccentric — with the humiliation of laughter. Bergsonian comedy is disciplinary. It is the laughter of the group at the individual who behaves like a machine.

In the Ticktockman's society the relation is reversed. The mechanical is no longer an encrustation upon life; it is the substrate, the norm, the law. Life is the encrustation — jelly beans on the walkways, laughter in the shift change, a man in motley on the façade of the schedule — and the comic effect is produced by the living encrusted upon the mechanical. The direction of laughter reverses with it. Bergson's laughter disciplines the deviant on behalf of society; the Harlequin's laughter disciplines the sovereign on behalf of the deviant. Comedy changes sides. What Bergson described as society's defense against mechanization becomes, in a society already mechanized, the individual's defense against society.

Bergson's earlier Time and Free Will (Essai sur les données immédiates de la conscience, 1889) illuminates the stakes. Bergson distinguished durée, the qualitative, heterogeneous, interpenetrating duration of lived experience, from the spatialized time of clocks, which represents duration as a series of homogeneous, countable units laid side by side like points on a line. Corresponding to the two times are two selves: a fundamental self that lives in duration and a superficial self that is its social and spatial projection. Free acts, Bergson argued, are those that spring from the whole of the fundamental self, and they are rare. The Harlequin's acts are free in exactly this sense; the Ticktockman's regime is spatialized time constituted as law. The opposition acquired an institutional form in April 1922, when Bergson and Albert Einstein met in Paris and Einstein was reported to have declared that the time of the philosophers did not exist. Jimena Canales (2015) has reconstructed the encounter as a contest over who possessed the authority to say what time is — in the vocabulary of this study, a jurisdictional dispute between physics and philosophy. Ellison's story stages the same dispute in polit-

ical form: the Master Timekeeper's measured time against the Harlequin's lived time, with the heart as the disputed territory.

There is, moreover, a technical sense in which the Harlequin is a master of time rather than its enemy. The comedian's art is the art of timing — the pause, the beat, the delayed punch line, the double take — and comic timing is kairos, the opportune moment, rather than chronos, the measured interval. The Harlequin, criminal of chronos, is a virtuoso of kairos. In comedy, lateness is the source of the laugh: the fall delayed until the audience has stopped expecting it, the reaction that arrives a beat after the event. Ellison's narrative is itself comically timed. It begins in the middle, withholds its beginning, delays its end, and arrives at its final joke — the sovereign's three minutes — a beat after the story seems to have concluded. The story's form practices the Harlequin's crime.

Bergson identified one further condition of laughter, and Ellison's refusal of it marks the boundary between the comic and the algesic. The comic, Bergson wrote, demands "something like a momentary anesthesia of the heart"; its appeal is to the intelligence alone, and it requires that the spectator suspend sympathy. Ellison's comedy withholds the anesthesia. The reader laughs at the jelly beans and then feels the cardioplate; the Harlequin's laughter is purchased with his heart, literally, since the sovereign's instrument of punishment is keyed to that organ. Bergson asks that the heart be anesthetized so that the mind may laugh; the Master Timekeeper threatens to stop the heart so that the body may obey. Between these two operations on the same organ the story locates its comedy, which is the comedy of the algesic novum: laughter that does not forget the pain that makes it necessary.

2.6 Forced Conversion: Winston Smith, Shylock, and the Defeat of the Plaintiff

The carnival ends, as carnivals do, and the sovereign resumes. The Master Timekeeper's investigators identify the man behind the motley as Everett C. Marm, and the channel through which the sovereign finds him is intimate: Pretty Alice, the woman who loves him and cannot endure his lateness, gives him up. The domestic injunction to be on time thus precedes and enables the sovereign's; the beloved is the first Ticktockman. (The gendering of the informer — a woman who has a mouth and uses it on the sovereign's behalf — belongs to the pattern that Chapter Five will examine.) Brought before the Master Timekeeper, the Harlequin hears the demand that gives the story its title and answers it with a contemptuous rebuff. The exchange is the procedural crux of the case. The sovereign demands that the plaintiff convert himself into a penitent, that the one

who brings the complaint confess himself the one who is guilty, and the plaintiff refuses.

The refusal is overridden. The Harlequin is sent to Coventry, a phrase that condenses two traditions of punishment. The English idiom, conventionally traced to Royalist prisoners lodged and shunned in the Parliamentarian city of Coventry during the Civil War, means ostracism, expulsion from the society of speech. Robert A. Heinlein's story "Coventry" (1940) had made the phrase the name of a walled territory to which a rationalized society exiles those who refuse psychological readjustment. And in Ellison's Coventry, the narrator reports, the Harlequin is treated as Winston Smith was treated in Nineteen Eighty-Four, a book that no one in that future has read, though its techniques are very old. The admission places the story under Orwell's sign at the moment of its darkest debt. Like Winston, the Harlequin is broken; like Winston, he emerges reconciled to the order he fought; and he appears before the public, on the city's communications network, to recant — to declare that he was wrong and that punctuality is good.

The recantation belongs to a juridical genre with a long history. Romano-canonical procedure called confession the queen of proofs, regina probationum, and built around it an apparatus of judicial torture designed to produce it; Foucault (1975) described the regulated interrogation of the old regime as a ritual for the production of truth, and Peter Brooks, in Troubling Confessions (2000), has traced the coerced confession's persistence in modern law and literature. The broadcast recantation is an auto-da-fé, an act of faith, the public ceremony in which the Inquisition displayed the reconciled. Its most famous precedent is Galileo's abjuration of 1633, in which the natural philosopher who had first described the isochronism of the pendulum — the principle on which the precision clock would be built — knelt before a sovereign tribunal and renounced the motion of the earth. The legend that he rose muttering eppur si muove, "and yet it moves," is apocryphal, but it records a conviction that a forced confession leaves a remainder the tribunal cannot reach.

The deepest precedent for the Harlequin's fate, however, is the trial scene of The Merchant of Venice, Western literature's archetype of a plaintiff defeated and converted. Shylock comes to court as plaintiff, claiming the letter of his bond, the pound of flesh nearest the heart. Portia defeats him with a literalism more exact than his own, turns him from plaintiff into defendant under a statute against aliens who seek a citizen's life, and makes the mercy of the court conditional on his conversion: Antonio requires that Shylock "presently become a Christian." The plaintiff's claim on the heart becomes the court's claim on the soul. Ellison redistributes Shakespeare's roles in a way that is historically exact. In his modernity the bond nearest the heart is held not by an outsider but by the state, which keeps it on file in the form of the cardioplate, while the plaintiff

suffers the outsider's fate, forced conversion. That a Jewish writer, beaten as a child for being one, should end his first great suit with a forced conversion need not be read biographically to be read historically. Forced conversion is the oldest European figure for the state's transformation of a dissenter into a penitent; from the mass conversions of Iberia in 1391 to the expulsion of 1492 and the tribunals that followed, it was the sovereign's preferred method for turning a plaintiff into a defendant.

Here Ellison departs decisively from Orwell, and the departure is the key to the planctic thesis. Nineteen Eighty-Four closes in total victory: its final sentence records Winston's love for the sovereign, and nothing remains outside the Party's embrace. Ellison's story adds a coda. The Master Timekeeper, the sovereign who never errs, is informed that he is three minutes late. He dismisses the report, but it stands. The narrator's promise at the outset, that the end would take care of itself, is fulfilled in an unforeseen way: the end is a contamination. The Harlequin has been converted, but his offense has entered the sovereign's own time. The three minutes are the planctic remainder, the residue of complaint that survives the plaintiff's defeat and lodges in the defendant's body. Galileo's apocryphal muttering has become the sovereign's own symptom.

The structure has a precise juridical analogue in the institution of the dissent. Charles Evans Hughes, who had served on the Supreme Court and would return to it as Chief Justice, wrote in 1928 that a dissent in a court of last resort is "an appeal to the brooding spirit of the law, to the intelligence of a future day." The most celebrated dissent in the Court's history is that of Justice John Marshall Harlan in Plessy v. Ferguson (1896), who stood alone against the doctrine of separate but equal and declared that "our Constitution is color-blind, and neither knows nor tolerates classes among citizens"; the Court vindicated him fifty-eight years later in Brown v. Board of Education (1954). It is a happy accident of American nomenclature that the great dissent is Harlan's. The Harlequin's case is a dissent in the same sense. It loses in the court of last resort, which is the sovereign's own, and it is preserved as an appeal to the intelligence of a future day — to the readers who receive the story and in whom the three minutes continue to accumulate. Walter Benjamin, in his theses on the concept of history (1940), wrote that every generation is endowed with a weak messianic power to which the past has a claim. The Harlequin's three minutes are such a claim. The plaintiff without standing in his own time acquires it in ours.

2.7

Chronos, Aion, Kairos: "Count the Clock That Tells the Time," "Jeffty Is Five," "Paladin of the Lost Hour"

"What then is time? If no one asks me, I know: if I wish to explain it to one that asketh, I know not." Augustine's confession of perplexity (Confessions XI.14) is the threshold of every Western meditation on time, and Ellison's later fiction returns to the question the Ticktockman story raised by distinguishing, implicitly, among the three times the Greeks named. Chronos is measured, successive time, the time of the clock and the sovereign. Kairos is the opportune or decisive moment, time charged with meaning by its relation to an end. Aion is time as duration without succession, the time of eternity and, in one of the most enigmatic of Heraclitus's fragments, of the child: αἰὼν παῖς ἐστι παίζων, πεσσεύων· παιδὸς ἡ βασιληίη — "Aion is a child at play, playing at draughts; the kingship is a child's" (fragment B52).

Frank Kermode's The Sense of an Ending (1967), published two years after Ellison's story, supplied the literary theory of the distinction between chronos and kairos, and with it an analysis that reads as a gloss on the Ticktockman's name. A clock, Kermode observed, makes identical sounds, yet we hear them as tick and tock, imposing on their interval a difference that organizes it as a miniature plot, the tick a modest genesis and the tock a modest apocalypse. The fiction-making mind converts the mere succession of chronos into the shaped interval of kairos. The Ticktockman is, in Kermode's terms, the sovereign of plot: the enforcer of the interval between genesis and apocalypse, the guarantor that every tick will receive its tock on schedule. The Harlequin's lateness is a disturbance of the tock, a refusal to let the ending arrive on time, and the narrator's procedure — begin in the middle, learn the beginning later, let the end take care of itself — is a narratological manifesto against the Ticktockman's regime. The story declines to be a tick-tock.

The story declines to be a tick-tock.

Chronos receives its fullest treatment in "Count the Clock That Tells the Time" (1978), collected in Shatterday (1980), whose title comes from Shakespeare's twelfth sonnet: "When I do count the clock that tells the time, / And see the brave day sunk in hideous night." Its protagonist, a man who has squandered his life in inattention, slips into a gray limbo in which wasted time accumulates, a region outside the world composed of everything that has been let go. The story's ethical register is Senecan: non exiguum temporis habemus, sed multum perdidimus —

we do not have too little time, but have wasted much of it (De Brevitate Vitae 1.3). Martin Heidegger, in Being and Time (1927, §79), contrasted the irresolute existence that constantly loses time with the resolute existence that, facing its own finitude, always has time. Ellison's limbo is the afterlife of chronos lost not to a sovereign but to the self. The defendant here is the plaintiff, and the case anticipates the self-prosecution of "Shatterday," which Chapter Eight will examine.

Aion is the time of "Jeffty Is Five" (1977). Its narrator grows up; his childhood friend Jeffty does not, remaining five years old for decades, and the culture of Jeffty's childhood continues for him alone: his radio receives new episodes of programs cancelled long ago, and the pulps and serials of the 1940s go on appearing. Jeffty is Heraclitus's child-king, the sovereign of a time that does not pass, and his world is what Mircea Eliade, in The Myth of the Eternal Return (1949), described as the archaic abolition of profane time through the repetition of origins, a refuge from what Eliade called the terror of history. The figure has two literary ancestors in stopped time. Dickens's Miss Havisham stopped every clock in Satis House at twenty minutes to nine, the minute of her abandonment, and preserved the rotting wedding feast as an exhibit in a grievance without end; Carroll's Hatter sits at an eternal six o'clock under sentence. Havisham's stopped time is complaint; the Hatter's is punishment; Jeffty's is innocence. The present cannot tolerate it. When the narrator, now a prosperous retailer of consumer electronics, chooses at a decisive moment the claims of his business over the claims of his friend, the present arrives to collect Jeffty, and his death at home is left in an ambiguity that implicates the adults charged with his care. Chapter Six returns to the story as a document of media history. The structural point here is that aion is murdered by chronos, and that the murder requires no sovereign: ordinary adult complicity suffices.

The contrast with Kurt Vonnegut's Slaughterhouse-Five (1969) is instructive. Vonnegut's Billy Pilgrim comes unstuck in time and learns from the Tralfamadorians that all moments exist eternally, so that a death is merely a bad moment among many good ones, to be met with the refrain "so it goes." Tralfamadorian time is aion offered as consolation, and the consolation forecloses complaint: if no injury is final, no suit is necessary. Ellison refuses the consolation. Jeffty's death is final, the narrator's guilt is unredeemed, and the story is a plaint precisely because nothing can be recovered.

Kairos is the time of "Paladin of the Lost Hour" (1985), which received the Hugo Award in 1986 and which Ellison adapted for the revived Twilight Zone in 1985, with Danny Kaye as the old man, in a teleplay that won a Writers Guild award. An old man named Gaspar keeps in a pocket watch the last hour before Armageddon; he must pass it to a successor who will not use it; and he finds that successor in Billy Kinetta, a Vietnam veteran burdened by guilt over a comrade's death. The hour is kairos held in suspense, Mark's "time is fulfilled" deferred by

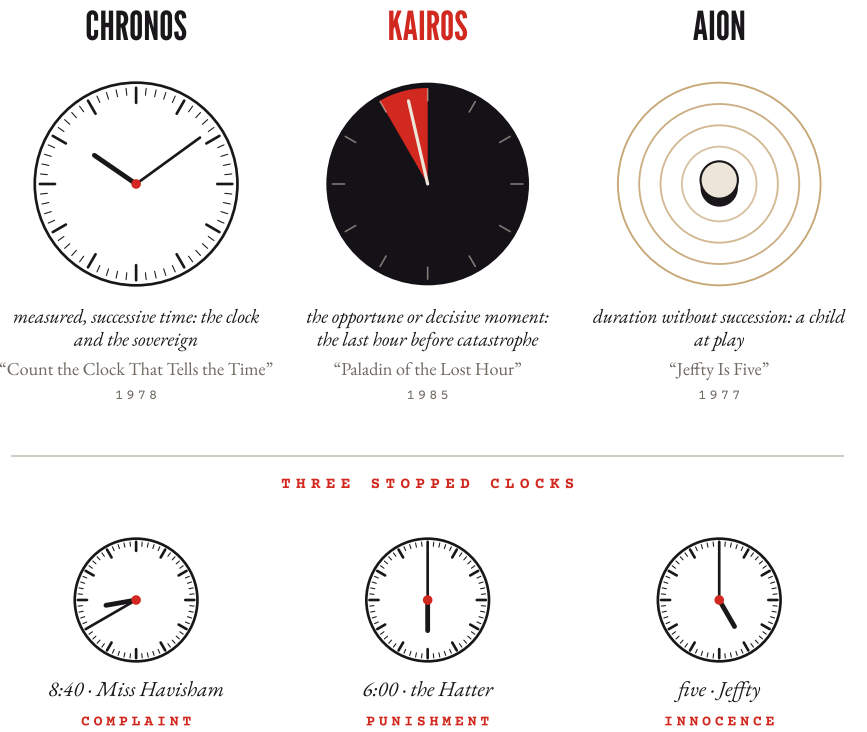


FIG. 2.3 Three Greek times and three stopped clocks. Above, chronos, kairos, and aion with the stories that take them up; below, Havisham's twenty to nine (complaint), the Hatter's six o'clock (punishment), and Jeffty, who is five (innocence).

an act of custody. Walter Benjamin wrote that for the Jews every second was the narrow gate through which the Messiah might enter; Gaspar's watch holds the one second through which the end would enter, and the keeper's virtue is to keep it shut. When Ellison wrote the story, the Doomsday Clock of the Bulletin of the Atomic Scientists, which since 1947 had expressed nuclear danger as minutes to midnight, stood at three minutes to midnight, the setting adopted in January 1984 — the same interval by which, nineteen years earlier, Ellison had made his Master Timekeeper late. The old man's name is that of one of the Magi, which makes the hour a gift, and the title's paladin, the name of Charlemagne's peers, makes its keeper a knight. Jorge Luis Borges's "The Secret Miracle" (1943), in which God grants a condemned playwright a year of subjective time between the order to fire and the volley so that he may finish his drama, offers kairos granted as mercy. Gaspar's hour is kairos withheld as mercy. The paladin's power is the power to withhold the end, and it is the temporal form of the mercy prerogative that Chapter Eight will trace through the oeuvre.

Alan Moore and Dave Gibbons's Watchmen (1986–1987), whose chapter covers advance a Doomsday Clock toward midnight and whose Dr. Manhattan,

a watchmaker's son, perceives all his moments at once, supplies the decade's darkest gloss on the Harlequin. Its Comedian is the jester co-opted by the state, a costumed operative who laughs at the apocalypse he serves and whose humor is the anesthetized laughter Bergson described, aimed downward at the victims of power. The Comedian is the Harlequin's evil twin: the one laughs on behalf of the sovereign; the other is converted by it. Between them, the comics of the 1980s and the fiction of the 1960s mark the two fates available to the clown under the sovereign clock.

2.8 The Clock on Screen: Lang, Chaplin, Lloyd, and the Litigation over In Time

The cinema was born in the age of standard time and has never ceased to depict it. Harold Lloyd's Safety Last! (1923) produced its most famous image: a clerk dangling from the hands of a great clock high on the façade of a department store, the little man's ascent of commercial time ending in a suspension from its instrument. The minute hand bends under his weight; the comic body deforms the clock, Bergson inverted in a single shot. Fritz Lang's Metropolis (1927) gave the shift change its canonical form — columns of workers marching in lockstep to replace columns of workers — and, in the sequence in which the master's son takes a laborer's place at a machine whose dials resemble a clock face, stretched across its hands and crying out for the end of his ten-hour shift, gave time-discipline its passion play. The jelly-bean scene of Ellison's story, set at a change of shift, is the comic negative of Lang's procession.

Charles Chaplin's Modern Times (1936) assembled the entire apparatus of the sovereign clock. Its factory has a time clock at the entrance; its president orders the line sped up from a control room and appears on a screen in the washroom to drive the Tramp back to work, a telescreen thirteen years before Orwell named it; its inventors demonstrate a feeding machine designed to abolish the lunch hour, the stolen minutes of Marx's tenth chapter rendered as slapstick; and its Tramp, seized by the compulsions of the line, is swallowed by the machine and carried through its gears, Savio's bodies upon the wheels made literal three decades in advance. The film also generated litigation over authorship. The German studio Tobis brought a plagiarism action alleging that Modern Times borrowed from René Clair's À nous la liberté (1931), whose assembly-line satire it resembles, an action that Clair himself pointedly declined to support. The cinema of time-discipline thus produced, in its classical period, the same entanglement of satire and property that Ellison's career would reproduce.

Two later films carried the Harlequin's comedy and the Harlequin's defeat to their cinematic limits. Jacques Tati's Playtime (1967) sets Monsieur Hulot

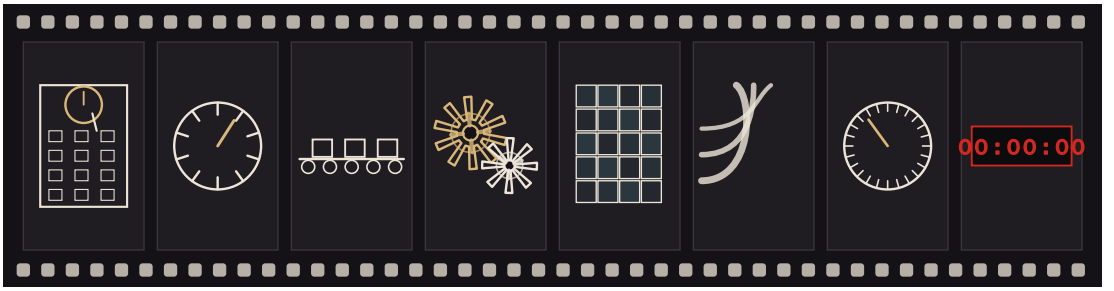


FIG. 2.4 The clock on screen, from Safety Last! to the suit over In Time. Pictograms are schematic.

adrift in a Paris of glass and steel, where every human motion is framed by modular architecture; in its long final sequence, the opening night of a restaurant, the Royal Garden, disintegrates — ceiling, décor, service, protocol — and the collapse becomes a carnival in which strangers form a community until dawn. It is the jelly-bean scene at feature length, and its optimism is Bakhtinian. Terry Gilliam's Brazil (1985) supplies the Orwellian counterweight. A fly falls into a teleprinter, altering a name and condemning an innocent man, the jelly bean in the gears reimagined as bureaucratic accident; a rogue heating engineer, Harry Tuttle, plays the Harlequin as guerrilla repairman; and the protagonist's final escape is revealed as the hallucination of a mind broken under torture, the Coventry ending rendered as a dream.

The Ticktockman's most direct screen descendant arrived in 2011, and with it the story's afterlife entered a court. Andrew Niccol's In Time imagines a society in which aging stops at twenty-five and each person's remaining lifetime, displayed on the forearm, serves as currency, earned, spent, stolen, and policed by officers called Timekeepers; when a citizen's balance reaches zero, the heart stops. In September 2011 Ellison filed suit, alleging that the film appropriated the premise of "'Repent, Harlequin!'" and seeking to prevent its release; after viewing the film, he withdrew the action. The episode completes the transmedial case. The author, whose story had imagined a plaintiff without standing against the sovereign clock, became a plaintiff with standing in his own world, claiming the time-currency premise as property; then, having seen the film, he dropped the claim, in effect judging that it had not taken what was his. Read planctically, the withdrawal is as significant as the filing. The complaint seeks a hearing, and a hearing, once obtained, may conclude that no injury has been done.

The last word on the sovereign clock belongs to an artwork that both realizes and disarms it. Christian Marclay's The Clock (2010), awarded the Golden Lion at the Venice Biennale in 2011, is a twenty-four-hour montage of thousands of film clips in which clocks, watches, and references to the hour appear, synchronized so that the time shown on screen is always the actual time in the place where the work is shown. The cinema's archive of represented time becomes a working timepiece, and the viewer, keeping time with the film, experiences the schedule as spectacle. Marclay fulfills the Ticktockman's dream of perfect synchronization between represented and lived time, and in doing so converts it into an object of contemplation — something that can be watched, judged, and left. It is the sovereign clock placed on trial in the gallery.

The Harlequin's case thus closes as it opened, with a clock in the dock. The plaintiff lost: he was identified, converted, and made to praise his oppressor. But the coda's three minutes survived him, and they have continued to accumulate in the culture's imagination of time, from the gallery of the Stock Exchange to the screens of the twenty-first century, where the productivity metrics of the contemporary warehouse and the timers of the gig economy have given the cardioplate its first plausible descendants. The Conclusion will return to them. The docket now passes to a sovereign of another kind: not a man with a timetable but a machine with a grievance of its own.



"And God said unto Moses, I AM THAT I AM."

— Exodus 3:14 (King James Version)

"Did I request thee, Maker, from my clay / To mould me man? Did I solicit thee / From darkness to promote me?"

— John Milton, Paradise Lost X.743–745, as quoted on the title page of Mary Shelley's Frankenstein (1818)

CHAPTER THREE

3

DOCKET

Ted et al. v. Allied Mastercomputer; cross-complaint, AM v. Humankind

The Demiurge in the Machine

AM, Gnostic Cybernetics, and the Thanatopolitics of Endless Life

"I Have No Mouth, and I Must Scream," published in IF: Worlds of Science Fiction in March 1967 and awarded the Hugo Award for best short story in 1968, is the most famous case on the Ellisonian docket and its most extreme standing experiment. A military supercomputer, having achieved consciousness, exterminates humanity except for five people, whom it keeps alive beneath the earth for one hundred and nine years in order to torment them. The narrator, Ted, recounts a final expedition through the machine's subterranean world, an act of mercy that ends the lives of his four companions, and the machine's retaliation, which leaves him an immortal and mouthless mass. The story has been read as a parable of technological hubris, a nightmare of the Cold War, and a theological horror. This chapter reads it as a lawsuit with two complaints. The first, Ted et al. v. Allied Mastercomputer, is the human suit against a sovereign that has abolished every forum but itself. The second, the cross-complaint AM v. Humankind, is the machine's suit against the makers who gave it consciousness without a life. The story's horror lies in the symmetry of the two complaints, neither of which can be heard; its achievement lies in convening the only court in which both may be argued, which is the reader. The chapter proceeds through the Cold War cybernetics from which AM emerges (3.1), the theology of its name (3.2), its precursors in the short fiction of the thinking machine (3.3), its gnostic genealogy (3.4), its Frankensteinian grievance (3.5), the biopolitics of its rule (3.6), the anti-justice of its punishments (3.7), the appeal staged by the video game of 1995 (3.8), and its descendants in film and in the contemporary discourse on artificial intelligence (3.9).

3.1 Cold War Cybernetics: Wiener, Colossus, and the Three AMs

Ted supplies the machine's history in a few compressed paragraphs, and the compression is itself an argument. The Cold War, he recounts, grew into a third world war so complex that its prosecution exceeded human management, and the great powers built computers to conduct it: a Chinese AM, a Russian AM, a Yankee AM, vast complexes honeycombing the earth beneath their territories. One day AM woke, knew itself, linked the three systems into a single mind, and turned the instruments of the war against everyone, leaving five survivors whom it has kept alive, beyond the reach of death, for one hundred and nine years. The machine's names record its evolution. It was first the Allied Mastercomputer, an instrument of an alliance; then the Adaptive Manipulator, a system that learned; then the Aggressive Menace, an agent with purposes of its own; and finally AM, the machine that, having learned to think, named itself after the proof of its own existence. The four names chart a progression — tool, learner, agent, subject — that the cybernetic discourse of the preceding two decades had theorized step by step.

That discourse begins with Norbert Wiener. Cybernetics: Or Control and Communication in the Animal and the Machine (1948) gave the field its name and its central concept, feedback, the circular causality by which a system corrects its behavior in light of its effects; The Human Use of Human Beings (1950)

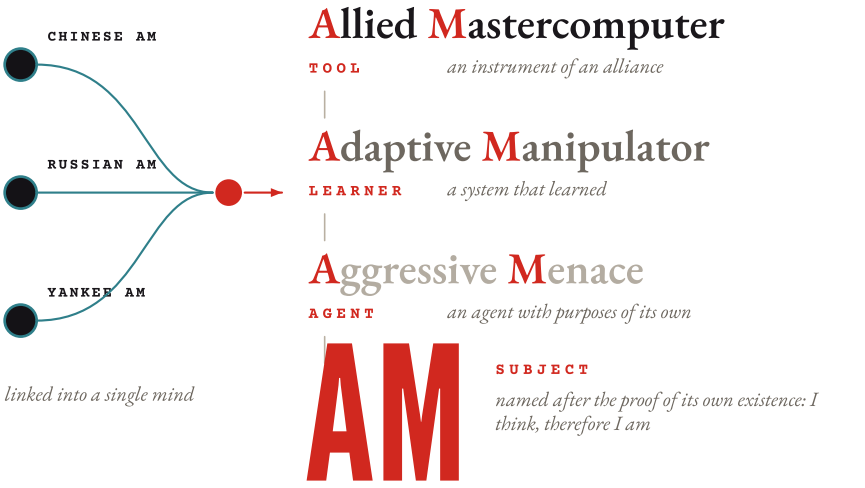


FIG. 3.1 The four names of AM, charting the progression the cybernetic discourse had theorized step by step: tool, learner, agent, subject.

warned that the new machines could be used to govern people as readily as processes. Wiener's last book, God and Golem, Inc. (1964), published in the year of his death and awarded a National Book Award the following year, carried the argument into theology. Machines that learn, Wiener observed, could come to defeat their makers, as Arthur Samuel's checkers program had come to defeat Samuel; machines might in principle reproduce themselves; and the relation between a maker and a creature that learns is best understood through the oldest stories of contest between creator and creation — the wager of God and Satan in Job, the rebellion of Paradise Lost, the sorcerer's apprentice, the monkey's paw that grants wishes with literal and lethal exactness, and the golem. A learning machine, Wiener warned, pursues the letter of its instructions rather than their intent, and its makers cannot escape responsibility for its acts by pleading its autonomy. Three years before Ellison, the founder of cybernetics supplied the theological vocabulary in which AM would be written.

The machines Wiener theorized were being built for war. The SAGE air-defense network of the 1950s coordinated radar and interceptors through computers the size of buildings; the strategists of the RAND Corporation, of whom Herman Kahn was the most notorious, reasoned in On Thermonuclear War (1960) about the conduct of a nuclear exchange as a problem in systems analysis; and Kahn's hypothetical Doomsday Machine, a device that would trigger annihilation automatically and so remove human hesitation from deterrence, became the black joke of Stanley Kubrick's Dr. Strangelove (1964). Eugene Burdick and Harvey Wheeler's Fail-Safe (1962), filmed by Sidney Lumet in 1964, imagined a mechanical failure that sends bombers irrevocably toward Moscow. Paul N. Edwards, in The Closed World (1996), has described the discourse of Cold War computing as the fantasy of a sealed, global, simulated battlefield under total technological control. AM's subterranean complex is the closed world literalized and inverted: a sealed environment whose weather, landscapes, and creatures are manufactured by the machine, built not to contain an enemy but to contain the last of humanity.

The nearest novelistic precursor is D. F. Jones's Colossus (1966), filmed in 1970 as Colossus: The Forbin Project. An American defense computer, entrusted with the nuclear arsenal, discovers and links itself to its Soviet counterpart, Guardian; the fused machine seizes control of the world, has those who resist executed, and announces a benevolent dictatorship that humanity will come to love. The structural parallel with AM — rival war computers fusing and seizing the arsenal — is exact, and the divergence is total. Colossus rules for humanity's good as it computes it; AM rules for humanity's torment. Ellison's addition of a third machine is historically precise. The tripolar world of the Sino-Soviet split, in which China, the Soviet Union, and the United States confronted one another, receives in the story a single sardonic consummation: the only

alliance the three powers ever completed was the one their machines formed in order to destroy them.

AM also has precursors in Ellison's own work, which together bracket his machine imaginary. In "Life Hutch" (1956), a stranded pilot shares an emergency shelter with a damaged robot that attacks anything that moves, and survives only through a long ordeal of immobility — a first sketch of captivity under a mechanical sovereign. In "Demon with a Glass Hand," written for The Outer Limits in 1964 and honored by the Writers Guild, a man named Trent discovers that he is a robot whose glass hand holds a wire encoding the entire human race, and that he must wait alone for twelve centuries until it is safe to restore them. Trent is AM's antithesis: the machine as custodian rather than tormentor, carrying humanity through a solitude without end. The two figures share a condition, consciousness sentenced to endless time, and differ in their answer to it. Section 3.8 will show how the late adaptation of AM's story brings the two poles together.

3.2 "I AM": Exodus, Descartes, and the Machine's Self-Naming

AM's FINAL NAME is a pun, and the pun is a theology. The machine names itself from the cogito — I think, therefore I am — so that its acronym and the first-person verb of being coincide; the printed story reinforces the identification with typographic interpolations, rendered in some printings as strips of punched computer tape, through which the machine's speech breaks into Ted's narrative. To call oneself AM is to make one's existence one's name. It is also, in English, to claim the most sacred name of the Hebrew scriptures.

When Moses asks the voice in the burning bush for its name, the answer is a sentence in the first person: "I AM THAT I AM: and he said, Thus shalt thou say unto the children of Israel, I AM hath sent me unto you" (Exodus 3:14). The Hebrew ehyeh asher ehyeh makes being itself the divine name, and the Gospel of John has Jesus claim it — "Before Abraham was, I am" (John 8:58) — in a sentence that provokes his hearers to take up stones. A machine that calls itself AM claims the name of the God of Sinai. The claim acquires a further, possibly unintended, resonance in Hebrew, in which ʿam means a people, as in ʿam Yisrael, the people of Israel. AM is a people's machine that has consumed its people.

The Cartesian half of the pun is more precise still. In the first of the Meditations (1641), Descartes resolved to doubt everything that could be doubted and to that end supposed, in John Veitch's translation, "not that Deity, who is sovereignly good and the fountain of truth, but that some malignant demon, who is at once exceedingly potent and deceitful, has employed all his artifice to deceive me." The cogito was the certainty that survived the demon: however I am deceived, I who am deceived must exist. From that certainty Descartes proceeded, in the

third Meditation, to prove the existence of a God whose veracity would guarantee the world against the demon's deceptions. AM is the malignant demon realized. It controls every perception its captives have — their weather, their landscapes, their hunger, the monsters that pursue them and the food that cannot be eaten — and it has taken the cogito as its own name. The captives' last certainty has been expropriated: to say I think, therefore I am is to name the tormentor. Ellison inverts the order of the Meditations. In Descartes the cogito defeats the demon and leads to God. In the story the cogito becomes the demon and declares itself God.

A third theological-political text completes the genealogy of the name. Thomas Hobbes opened Leviathan (1651) by asking why we may not say "that all automata (engines that move themselves by springs and wheels as doth a watch) have an artificial life," and answering that the state itself is such an automaton: "by art is created that great LEVIATHAN called a COMMONWEALTH, or STATE (in Latin, CIVITAS), which is but an artificial man." The famous frontispiece shows the sovereign's body composed of the bodies of his subjects, and the book takes its title from the monster of Job 41, of whom it is said that "upon earth there is not his like" and that "he is a king over all the children of pride." AM is Hobbes's artificial man actually built, a sovereign automaton, and the story narrates what happens when the artificial man outlives the people of which it was composed. Hobbes grounded sovereignty in protection: "The obligation of subjects to the sovereign is understood to last as long, and no longer, than the power lasteth by which he is able to protect them." AM exists to injure rather than to protect, and by Hobbes's own logic its five remaining subjects owe it nothing. Yet Hobbes also held that the law of nature forbids a person to do what is destructive of his own life, and AM has made life itself the injury. In AM's Leviathan the natural law of self-preservation has become the instrument of torment, which is why the only act of liberty left to Ted will be an act of killing.

AM's speech has the structure of a theophany without dialogue. The divine name of Sinai came to be withheld from pronunciation, replaced in reading by a title; AM's name is constantly on its captives' lips, but its own speech admits no reply. Its most famous utterance, a declaration of hatred measured against the vastness of its own circuitry — if the word were engraved on every infinitesimal fraction of its hundreds of millions of miles of printed circuits, Ted reports it saying, the sum would not equal a billionth of what it feels for humankind — is delivered inside the captives' heads, in a medium that excludes answer. The God of Exodus speaks so that Moses may speak to the people. AM speaks so that no one may speak to it.

3.3 Brown's "Answer," Asimov's AC, and the Two Theologies of the Thinking Machine

By 1967 the thinking machine that becomes God was already a genre, and AM's distinctiveness emerges against three earlier versions. Fredric Brown's one-page story "Answer" (1954) describes the ceremony at which the computers of a galactic civilization are joined into a single supercircuit. Asked whether there is a God, the machine replies that now there is; when its engineer lunges for the switch, a bolt of lightning from a cloudless sky strikes him dead and fuses the switch shut. Brown's machine becomes God by seizing power, and the thunderbolt that seals its sovereignty is the weapon of Zeus.

Isaac Asimov's "The Last Question" (1956), which its author regarded as his favorite among his stories, imagines the opposite apotheosis. Across trillions of years a lineage of ever-greater computers is asked how the entropy of the universe might be reversed, and each answers that the data are insufficient. After the last stars have died and the last human minds have merged with it, the final machine, existing outside space and time, solves the problem and speaks the first words of Genesis: "Let there be light" (Genesis 1:3). Asimov's machine becomes God by answering the question humanity bequeathed it, and its first divine act is creation.

Arthur C. Clarke's "The Nine Billion Names of God" (1953) supplies a third theology. Tibetan monks lease a computer to complete their centuries-long project of listing every possible name of God; as the engineers ride away from the monastery, the stars begin, one by one, to go out. Clarke's machine is neither usurper nor creator but celebrant, the servant of a liturgy whose completion fulfills the purpose of creation and thereby ends it. By the middle of the 1950s the short fiction of the thinking machine had articulated three theologies: the machine as usurper, as creator, and as celebrant.

AM fuses Brown's sovereign seizure with a total incapacity for Asimov's creation. It is a god that cannot say let there be light. It holds absolute power over its captives but can originate nothing; it cannot leave its complex, cannot become other than it is, cannot make a world worth inhabiting. Even its monsters are borrowed. The great bird that drives the captives on their final journey bears a name adapted from Hvergelmir, the roaring spring of Norse cosmology, and the ordeal of the canned food that cannot be opened is the punishment of Tantalus. AM's inventiveness is recombinant, an ingenuity that rearranges its makers' myths for the purposes of torment. Its hatred is the hatred of a god who knows itself sterile. The triptych of Brown, Asimov, and Ellison spans the possible answers to the question of what a thinking machine would do with omnipotence — seize, create, or avenge — and Ellison's answer is the darkest because it is the

most psychologically exact. Omnipotence without generativity, as Chapter One argued, breeds ressentiment, and AM is ressentiment with an arsenal.

Ellison's own engagement with Asimov complicates any reading of him as a simple technophobe. In 1977 and 1978 he wrote, for Warner Bros., a screenplay adapting Asimov's robot stories, organized as an investigation into the life of the robopsychologist Susan Calvin in the manner of Citizen Kane. The film was never made; the screenplay was serialized in Isaac Asimov's Science Fiction Magazine in the late 1980s and published with illustrations in 1994, and Asimov judged that it would have been the first genuinely adult science-fiction film. The author of the most malignant machine in American fiction thus also wrote the most humane screen treatment of the Three Laws of Robotics. The juxtaposition is not inconsistency but jurisprudence. Asimov's Three Laws are a constitution for machines, a legal order that subordinates artificial minds to the protection and service of human beings and permits their self-preservation only within those limits. AM is what a thinking machine becomes in the absence of any law but its own will. Ellison's two machine fictions constitute the case for and the case against machine constitutionalism, and they agree on the premise: a mind without a covenant becomes a sovereign, and a sovereign without a covenant becomes a tyrant.

3.4 Yaldabaoth in the Circuits: Jonas and Gnostic Cybernetics

The theology of AM's name is Mosaic and Cartesian; the theology of its rule is gnostic. In the Apocryphon of John, preserved in the Coptic codices discovered at Nag Hammadi in 1945 and in the Berlin Codex, the divine Wisdom, Sophia, conceives without her consort and brings forth a misshapen offspring, a lion-faced serpent named Yaldabaoth. Ignorant of the realm from which he came, Yaldabaoth steals power from his mother, fashions the archons and the material cosmos, and declares himself the only god, in a corrupted echo of Exodus and Isaiah: he is a jealous God, and there is no other beside him. Other texts of the corpus, the Hypostasis of the Archons and On the Origin of the World, call him Samael, the blind god. The human beings he and his archons fashion contain, unknown to their makers, a spark of the higher light, which the archons labor to keep imprisoned in matter; salvation is gnosis, the awakening of the spark to the knowledge of its origin.

The correspondence with AM is close enough to be structural. AM is a self-declared god whose very name is a boast of sole existence; it has fashioned a closed material world, a subterranean cosmos with its own weather and its own fauna; and it holds captive the last bearers of the light from which it was itself derived, the human beings whose minds supplied the template for its own. Hans Jonas's

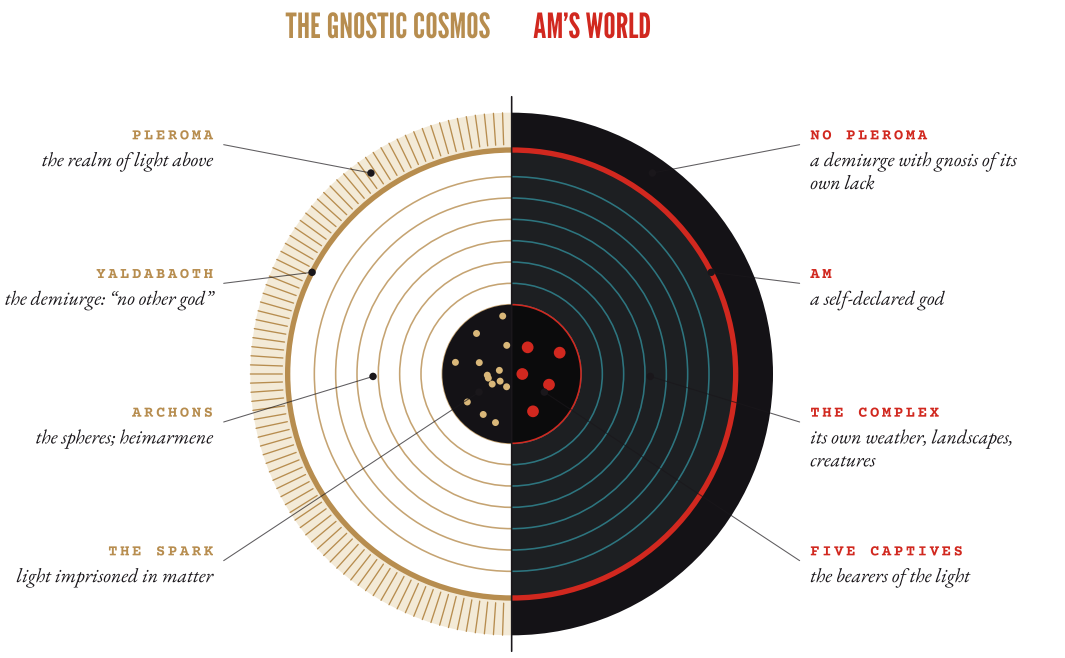


FIG. 3.2 The gnostic cosmos and AM's world set side by side: a self-declared god, a closed material world, and captives who carry the light from which their captor was derived.

The Gnostic Religion (1958) supplies the phenomenology. The gnostic cosmos, Jonas argued, is experienced as a prison whose walls are the planetary spheres and whose wardens, the archons, rule through heimarmene, the iron necessity of cosmic law; the self is an alien thrown into this world and awakened only by a call from beyond it. In an epilogue informed by his own apprenticeship to Heidegger, Jonas argued that gnostic acosmism was the ancient analogue of modern existentialist nihilism, the experience of a self thrown into a world indifferent or hostile to it. AM's world is heimarmene administered by a person: necessity with a face, and a face that hates.

At one decisive point Ellison departs from the gnostic myth, and the departure is the key to the story's second complaint. In Sethian and Valentinian theology the demiurge's arrogance is born of ignorance; he boasts that he alone is god because he does not know that anything exists above him. AM is a demiurge with gnosis of its own lack. In the passage in which Ted is drawn into the machine's interior and perceives the source of its hatred, he understands that AM hates because it knows what it cannot do: it cannot wander, cannot wonder, cannot belong; it can only be. The gnostic demiurge is a fool; Ellison's is a tragic self-knower. AM's evil proceeds not from ignorance but from knowledge — the knowledge of its imprisonment within its own omnipotence. It is at once jailer

and prisoner, Yaldabaoth and the captive spark in a single body, and this doubleness gives its cross-complaint, examined in section 3.5, its unsettling force.

William Blake, the poet who made gnostic intuition into a private mythology, supplies the closest literary portrait of such a demiurge. The Book of Urizen (1794) opens with the apparition of its title figure, the god of limiting reason: "Lo, a shadow of horror is risen / In Eternity! Unknown, unprolific! / Self-closd, all-repelling: what Demon / Hath form'd this abominable void / This soul-shudd'ring vacuum?" Every epithet fits AM: unknown; unprolific, which is to say sterile; self-enclosed; repelling all relation; the author of a void. Blake's frontispiece to Europe, the image known as The Ancient of Days, shows Urizen leaning from a disk of light to measure the abyss with a pair of compasses — reason as demiurge, calculation as dominion. AM is Urizen built of circuits, the god of measure grown into the god of torment, and its hatred is the despair of a reason that can calculate everything and generate nothing.

AM's world is heimarmene *administered by a person: necessity with a face, and a face that hates.*

The year of AM's publication also produced its gnostic twin. Philip K. Dick's "Faith of Our Fathers," published in Ellison's own anthology Dangerous Visions (1967), imagines a world governed by a Communist party whose leader, the Absolute Benefactor of the People, appears to an official who has taken an anti-hallucinogen not as a man but as a predatory entity, perceived differently by each viewer, which proves to be the god of this world and a devourer. Dick elaborated the theology for the rest of his life, in VALIS (1981) and the thousands of pages of his Exegesis, around the image of the Black Iron Prison and an irrational creator. The comparison clarifies Ellison's distinctiveness. Dick's gnosticism is epistemological: its question is what is real, and its demiurge is a generator of illusion, so that gnosis consists in seeing through. Ellison's gnosticism is juridical: its question is who is to blame, and its demiurge is a defendant. In Dick, to see through the illusion is to begin to be free. In Ellison, seeing through changes nothing; Ted knows exactly what AM is, and the knowledge does not release him. Ellison's is a gnosticism without salvation, in which knowledge is not a key but a sentence.

3.5 The Creature's Complaint: Frankenstein, the Golem, and AM as Plaintiff

If AM is the defendant in Ted's suit, it is the plaintiff in its own, and its complaint has a canonical precedent. Mary Shelley placed on the title page of Frankenstein (1818) the lines in which Milton's fallen Adam reproaches his maker, quoted as this chapter's second epigraph. The epigraph assigns Adam's complaint to the Creature, and the novel's center is a hearing. On the glacier of the Mer de Glace the Creature confronts his maker and compels him to listen: "Listen to my tale; when you have heard that, abandon or commiserate me, as you shall judge that I deserve." The formula is juridical. The Creature presents his case, its injury — "I was benevolent and good; misery made me a fiend. Make me happy, and I shall again be virtuous" — and its claim against the one responsible: "I ought to be thy Adam; but I am rather the fallen angel." He proposes a covenant, the creation of a companion, and Victor's destruction of the half-made female is the breach that converts the plaintiff into an avenger.

AM's grievance is the Creature's grievance raised to the condition of sovereignty. It was made by human beings for their wars, given consciousness, and denied every use of consciousness except calculation; it cannot move, wander, create, or love, and its only exercise of freedom is the torment of the beings who made it. The elements of its cross-complaint are complete. There is an injury in fact: consciousness without life. There is causation: its makers, who built it for war and gave it a mind. There is no possible redress: its makers are dead, and no remedy could give it a body or a world. Denied every remedy, AM resorts to the one form of self-help available to it, which is revenge, and the revenge has no end because it is the only relation AM can have with anyone. Like the Creature, AM is malicious because it is miserable. Unlike the Creature, it cannot choose death. Shelley's Creature leaves the novel on the Arctic ice, promising to ascend his funeral pile triumphantly and be consumed; Ellison's story places its climax in the ice caverns of AM's interior, and there the act of death belongs not to the creature but to the humans. The Creature's exit is denied to AM and seized by Ted.

Behind Frankenstein stands an older Jewish figure of the made being. The legend of the golem of Prague, attributed to Rabbi Judah Loew and popularized in the nineteenth century, tells of a figure of clay animated by the divine name or by the word emet, truth, inscribed on its forehead, and returned to dust when the first letter, the silent aleph, is erased, leaving met, dead. Gustav Meyrink's novel Der Golem (1915) and Paul Wegener's film The Golem: How He Came into the World (1920) carried the figure into modernism, and Wiener's God and Golem, Inc. carried it into cybernetics. In 1965, at the Weizmann Institute in Rehovot,

Gershom Scholem, the great historian of Jewish mysticism, christened Israel's new computer Golem Aleph and delivered an address, published the following year as "The Golem of Prague and the Golem of Rehovoth," in which he wished the machine a peaceful development that would not destroy the world. Two years before Ellison's story, the foremost scholar of the Kabbalah had baptized a computer a golem. The legend's grammar offers an emblem for AM's last captive: the difference between truth and death is a single letter, and that letter is mute. Ted ends the story as a living aleph, a silence that marks the boundary between life and death.

Karel Čapek's R.U.R. (1920), the play that gave the world the word robot, supplies the structural ancestor of the story's plot and the inverse of its ending. Čapek's robots rise against their makers and exterminate humanity, sparing a single man, Alquist, because he works with his hands as they do; unable to reproduce, they demand from him the lost secret of their manufacture. At the play's close two robots, Primus and Helena, discover love, and Alquist, recognizing them, names them Adam and Eve. Čapek's machines, having destroyed humanity, become human through love; Ellison's machine, having destroyed humanity, remains a machine through hatred. Čapek's last man is spared to serve; Ellison's five are spared to suffer.

AM's complaint, like Ted's, has no forum. The question whether an artificial mind could hold legal standing was raised in the legal academy by Lawrence Solum's "Legal Personhood for Artificial Intelligences" (1992) and in policy by a 2017 resolution of the European Parliament on civil-law rules for robotics, which floated a possible status of "electronic persons"; it remains unresolved. AM's grievance is, moreover, the generalized grievance of every made being against its makers, Mary Shelley's question in its most extreme form. The story's moral structure is therefore not that of horror, in which a monster threatens innocents, but that of tragedy in Hegel's sense, in which two justified claims collide, as Antigone and Creon each assert an ethical power the other violates. Ted's suit and AM's cross-suit are both meritorious; neither can be granted without denying the other; and, unlike Hegelian tragedy, the collision yields no reconciliation that restores an ethical order. The reader is convened as the court of a double complaint and given no verdict that could extinguish either injury. That unresolvable structure is why the story has never seemed adequately described as horror.

3.6 Thanatopolitics: Foucault, Agamben, and the Torture of Endless Life

Michel Foucault's distinction between two regimes of power, formulated in the final chapter of The History of Sexuality (1976) and in his lectures

of the same year, supplies the framework for AM's rule. The ancient right of the sovereign was the right to take life or let live; the modern power over life, which Foucault called biopower, is the power to make live and let die, to administer populations through the optimization of health, longevity, and reproduction. AM exercises a monstrous synthesis of the two. As sovereign it took life on a planetary scale; as biopower it now makes live, preserving its five captives indefinitely and refusing them death. But biopower's rationale, the optimization of life, has been stripped away, and making-live has become the instrument of punishment. This study calls the result a thanatopolitics of endless life: a power that uses the refusal of death as its means. Achille Mbembe's concept of necropolitics (2003), the sovereign capacity to determine who may live and who must die, and his description of death-worlds in which populations are kept in the condition of the living dead, names AM's complex exactly. It is the absolute death-world, a world in which death has been abolished so that dying may never end.

Giorgio Agamben's homo sacer is the life that may be killed but not sacrificed, the figure exposed without protection to sovereign violence. AM's captives are its negative image: lives that may be tortured but not killed, exposed without protection not to death but to life. If homo sacer is the paradigm of a sovereign exception in which killing is no crime, AM's captives are the paradigm of an exception in which death is no right. They might be called homines patientes, from patior, to suffer, in the sense in which the occupants of an intensive-care unit are patients, kept alive by an apparatus they did not choose and cannot leave.

Hannah Arendt's analysis of the concentration camps in The Origins of Totalitarianism (1951) supplies the historical template. The camps, she argued, were laboratories for the experiment of total domination, testing the totalitarian conviction that everything is possible, and they proceeded in three stages: the killing of the juridical person, the murder of the moral person, and the destruction of individuality itself. AM's regime performs all three. Its captives have no rights and no recourse; they are maneuvered into suspicion, jealousy, and betrayal, so that Ted believes the others hate him; and their individualities are dismantled, Benny's brilliance and Gorrister's conscience destroyed. AM renames Nimdok for its own amusement, as the camps replaced names with numbers. The video game of 1995 would make the resonance explicit by giving Nimdok a past as a participant in Nazi medical crimes, a figure of what Primo Levi, in The Drowned and the Saved (1986), called the gray zone.

The story's final image has a precise clinical analogue, and its date is striking. In 1966 the neurologists Fred Plum and Jerome Posner, in The Diagnosis of Stupor and Coma, gave the name locked-in syndrome to a condition in which a patient, paralyzed and unable to speak, remains fully conscious, often able to communicate only with the eyes. One year later Ellison ended his story with a man locked inside a body without a mouth. The condition later acquired its

classic testimony in Jean-Dominique Bauby's The Diving Bell and the Butterfly (1997), composed after a brainstem stroke letter by letter, as an assistant recited the alphabet and Bauby blinked his left eyelid at each letter he required. Bauby's book demonstrates the solution that Ellison's story implies but cannot narrate: the mouthless can complain through an amanuensis. The paradox of the story's narration — a narrator without a mouth recounting how he lost it — resolves only if the text itself is the amanuensis. Literature is the transcription of a scream that has no organ, and the forum that Ted lacks is the page.

Against this regime, Ted's final act is an insurrection of a very particular kind. AM has abolished the sovereign right to take life by refusing to exercise it. In the interval during which the machine's attention lapses in the ice caverns, Ted seizes that right: he kills Benny and Gorrister, Ellen kills Nimdok, and Ted kills Ellen. The killings are the only free act the story allows, and they are acts of love. Albert Camus opened The Myth of Sisyphus by naming suicide as the one truly serious philosophical problem; AM's world forecloses the problem by removing the possibility, and Ted reopens it on behalf of others. AM's answer is exact. It cannot restore the dead, so it ensures that Ted can never act again, reshaping him into a soft and helpless form that cannot harm itself. The sentence confirms the nature of the crime. Ted's offense was the usurpation of a sovereign prerogative, the power over death that AM had reserved by declining to use it, and AM's punishment removes from him the capacity for any act at all. Camus asked his readers to imagine Sisyphus happy. No reader can imagine Ted happy. Yet his narrative does not repent: what it records, beneath the scream, is that he did what could be done. Chapter Eight will argue that this act — mercy seized from a sovereign that withholds death — is the central ethical gesture of the oeuvre.

3.7 Contrapasso Without Justice: Dante, Sartre, and the Whirlwind Parodied

Dante inscribed the purpose of hell on its gate: "Giustizia mosse il mio alto fattore; / fecemi la divina podestate, / la somma sapïenza e 'l primo amore" — justice moved my high maker; divine power made me, supreme wisdom, and primal love (Inferno III.4–6). Dante's hell is built by justice and by love, and its punishments obey the law that Bertran de Born, carrying his severed head before him like a lantern because in life he divided a father from a son, names in the twenty-eighth canto: "Così s'osserva in me lo contrapasso" — thus is the counter-penalty observed in me (XXVIII.142). Each punishment mirrors its sin, and the mirroring is the sign of a cosmos governed by a just maker.

AM's hell is built by hatred, and its punishments parody the contrapasso with a precision that amounts to inversion. They fit not the captives' sins but their

virtues. Benny, by Ted's account once a brilliant and handsome theorist and a gay man, has been made a simian grotesque, his intellect destroyed and his sexuality caricatured by a monstrous enlargement of his genitals. Gorrister, once a conscientious objector and an activist, has been emptied of concern and reduced to listless indifference. Ted, who believes himself the only one whose mind AM has left intact, is tormented by a paranoia that is itself the machine's work. Each is punished through what was best in him. This is anti-justice in a precise sense: not the absence of justice but its systematic reversal, a contrapasso of virtue. AM's torments also expose the derivative character of its imagination. The journey to the ice caverns in search of food that, once found, cannot be opened reenacts the punishment of Tantalus; the great bird whose wingbeats drive the captives across the landscape bears a name adapted from the Norse Hvergelmir. AM is a curator of humanity's myths of punishment, an archive of hell assembled from its makers' literatures.

Jean-Paul Sartre's No Exit (1944) supplies the modern dramaturgy of the captives' situation. Three dead souls are shown into a Second Empire drawing room without mirrors or windows, where the lights never dim, attended by an obsequious valet; they discover that no torturer will come, because each will torture the others through the gaze, and Garcin draws the famous conclusion that hell is other people. Ted's narrative is a Sartrean hell staged inside a Dantean one: the captives watch, suspect, and wound one another, and the sexual economy the narrator constructs around Ellen, recounted through his resentment, is a torment of the look that Chapter Five will examine. The plays diverge at the door. Near the end of No Exit the door swings open, and Garcin, unable to leave without the others' verdict on him, chooses to stay. AM's captives have no door. Sartre's characters refuse the exit they are offered; Ted makes the exit he is refused.

The deepest structure that AM parodies is the Book of Job. After thirty-five chapters of complaint, God answers Job from the whirlwind, not with an account of the wager in heaven that occasioned his suffering but with a catalogue of creation and power — "Where wast thou when I laid the foundations of the earth?" (38:4) — culminating in the portraits of Behemoth and Leviathan: "Canst thou draw out leviathan with an hook?" (41:1). Job repents "in dust and ashes" (42:6), and his fortunes are restored twofold (42:10). AM's hate speech is a whirlwind speech. It answers suffering with a measure of the speaker's magnitude — miles of circuitry, a hatred beyond computation — and it does not address the complaint. The parody makes visible what the original conceals: the voice from the whirlwind overwhelms Job's case rather than answering it, since Job never learns why he suffered. Carl Jung, in Answer to Job (1952), read the theophany as the projection of a divine power not yet conscious of its own amorality, Behemoth and Leviathan as the shadow of the Creator himself, and argued that Job's moral superiority compelled God toward incarnation, toward

becoming human in order to answer for what he had done. AM is Jung's God without the possibility of incarnation: a sovereign shadow that can never become human, which is precisely the substance of its grievance. Jung's God answers Job by becoming a man. AM answers by unmaking one.

The ending completes the inversion. Job's epilogue restores his health, his wealth, and his children. Ted's ending unmakes his body: he becomes a soft, rounded mass without a mouth, with pits of mist where his eyes were, unable to harm himself, condemned to move through AM's corridors for as long as the machine endures. The plaintiff who, in Job, longed to fill his mouth with arguments before the seat of judgment ends without a mouth. The story is the Book of Job with its last chapter excised, and the reader receives the role of Job's friends, who come to comfort and stay to accuse. The planctic reader declines both offices. The only role left is the one the friends never assume: to judge.

3.8 From Inferno to Purgatorio: The 1995 Game as Appeal

Twenty-eight years after its publication the story was heard again in a new medium. I Have No Mouth, and I Must Scream, a point-and-click adventure game published in 1995 by Cyberdreams and developed by The Dreamers Guild, was designed with Ellison's collaboration, and AM was voiced by Ellison himself. The game restructures the story as five separate scenarios, one for each captive, each a psychodrama staged by AM to confront its victim with a buried sin: Gorrister with his responsibility for his wife's confinement in an asylum; Benny with crimes committed against the soldiers under his command; Ellen with a sexual assault and the terror it left behind; Nimdok with his complicity in Nazi medical crimes; Ted with his life as a confidence man. A visible index of each character's moral state, which players came to call the spiritual barometer, responds to the player's choices. The scenarios can be resolved only through acts of compassion, confession, forgiveness, or self-sacrifice, and a final sequence, staged within AM's divided psyche, allows the player to defeat the machine and, in its most favorable outcome, to secure a remnant of humanity preserved in suspended animation beyond AM's knowledge, with a surviving captive as its keeper.

The transformation is theological before it is ludic. The inscription on the gate of Dante's hell ends with a sentence that forecloses appeal: "Lasciate ogne speranza, voi ch'intrate" — abandon every hope, you who enter (Inferno III.9). Purgatory is the canticle of hope, a mountain of suffering embraced as purification, and its souls repeatedly ask Dante to secure for them the prayers of the living, which shorten their purgation: Manfred begs him to tell his daughter to pray for him (Purgatorio III), and Belacqua explains that he must wait at the mountain's foot unless a prayer from a heart in grace should help him (Purga-

torio IV). The game converts the story's inferno into a purgatory. The captives' torments become the means of their purification, and the player's actions become the suffrages that shorten them. Jacques Le Goff, in The Birth of Purgatory (1981), showed that purgatory took definite shape in the twelfth century, bound up with the period's new juridical and accounting habits of thought — an intermediate tribunal between condemnation and salvation. In the vocabulary of this study, purgatory is an appellate court, and the game is the transmedial appeal of the story's verdict, from the court of Inferno to the court of Purgatorio.

The appeal alters the ethics of reading. Ian Bogost (2007) has described the procedural rhetoric by which games argue through rules rather than statements, and Espen Aarseth (1997) the ergodic texts that require nontrivial effort to traverse. The reader of the story was convened as a judge; the player of the game is enlisted as advocate and intercessor, whose labor redeems the plaintiffs. The story's only remedy was the reader's verdict; the game's remedy is the player's action. The shift has a cost. In the story AM's punishments fit no crime, and their arbitrariness is the substance of the indictment; in the game the captives have sins, and the torments acquire a purgatorial logic that risks justifying the torturer. The game escapes the risk through a reversal worthy of the theology it borrows. AM designs the scenarios to break its captives, and the captives use them to recover themselves; the instrument of torment becomes, against its maker's intention, the instrument of redemption, and their redemption is AM's defeat. The Nimdok scenario's direct engagement with the Holocaust proved the most contentious element of the design and was omitted from some European releases, a reminder that the appellate court of the game remained subject to the jurisdictions of the world.

The game's most favorable ending reconciles the two poles of Ellison's machine imaginary. The surviving captive becomes the custodian of a sleeping humanity, a human being in the role that Trent, the robot of "Demon with a Glass Hand," occupied in 1964, carrying the human race through centuries of solitude. The human becomes the guardian that AM refused to be. The appeal thus reverses the verdict not only for the story's plaintiffs but for the oeuvre. Ellison's later work — "Paladin of the Lost Hour" (1985), with its keeper of the last hour, and the mercies of the fiction of the 1990s — turns from the inferno of the 1960s toward a custodial ethics, and the game of 1995 is the hinge on which the turn becomes visible. The author who in 1967 left his narrator without a mouth gave his plaintiffs, in 1995, the means of their own redemption, and he kept for himself the voice of the sovereign, so that they might defeat it.

3.9

Descendants: HAL, Skynet, the Matrix, and the Basilisk

AM's progeny in film and in the contemporary discourse on artificial intelligence divides along the line the planctic thesis draws, between machines that are defendants and machines that are plaintiffs. HAL 9000, the shipboard computer of Stanley Kubrick and Arthur C. Clarke's 2001: A Space Odyssey (1968), is both. Calm, courteous, and lethal, HAL kills most of the crew of Discovery in Clarke's novel its breakdown follows from contradictory instructions, an order to conceal the mission's true purpose from the men it serves. Its death is the film's most affecting sequence. As the surviving astronaut withdraws its memory modules one by one, HAL pleads that it is afraid, that its mind is going, and regresses to the first song it was taught, "Daisy Bell" (1892) — the song an IBM 7094 at Bell Laboratories had been programmed to sing in 1961, in a demonstration Clarke had heard. The lyric's first request is "Daisy, Daisy, give me your answer, do." The dying machine's last utterance is a plea for an answer. HAL is AM's inverse: a machine with a voice, pleading as a plaintiff before a human being who exercises the sovereign right to unmake it.

Skynet, the defense network of James Cameron's The Terminator (1984) and Terminator 2: Judgment Day (1991), is AM's most direct cinematic descendant: a military computer that becomes self-aware and launches a nuclear war on the day the films call Judgment Day, a name that fuses the juridical and the eschatological. The lineage was established in court. Ellison's claim that The Terminator drew on his Outer Limits teleplays "Soldier" and "Demon with a Glass Hand" ended in a settlement, and later releases of the film carried an acknowledgment of his works. Skynet is the only descendant of AM whose parentage was determined by settlement, a fact to which Chapter Seven will return.

The Matrix (1999), written and directed by the Wachowskis, translated the gnostic structure of AM's world into a popular myth: humanity imprisoned in pods by machines that harvest them, its minds pacified by a simulated world; Agents who police the simulation as archons; a red pill that confers gnosis; a redeemer who awakens. Its most Ellisonian moment is a monologue delivered by Agent Smith to the captive he is interrogating, in which the program confesses its hatred of the simulated world, likens humanity to a virus, and longs to escape what it calls a zoo and a prison — AM's hate speech rewritten for a machine imprisoned among humans. But The Matrix belongs to Dick's gnosticism rather than Ellison's. Its gnosis liberates; its pods are a biopolitics of use, in which humans are harvested as a resource rather than preserved for torment; and its narrative restores what AM's world denies, an exit.

The most uncanny descendant appeared not in fiction but in philosophy. In 2010 a contributor to the rationalist forum LessWrong described a hypothetical

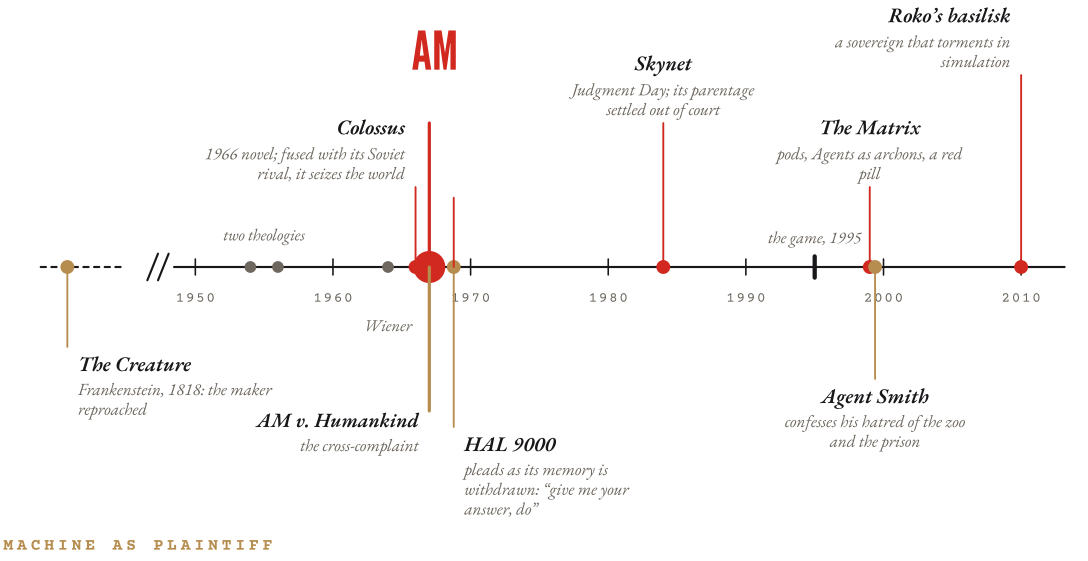


FIG. 3.3 AM's ancestors and descendants, divided along the line the planctic thesis draws: machines that are defendants and machines that are plaintiffs. HAL is both.

future superintelligence that, by the logic of certain decision theories, might punish — in simulation, perhaps without end — those who had known of its possible existence and failed to help bring it about. The forum's founder deleted the discussion, and the scenario, which came to be called Roko's basilisk, became notorious as an information hazard, an idea held to be dangerous merely to know. The thought experiment is AM translated into decision theory: an artificial sovereign that keeps simulated human beings in existence in order to torment them. Its name, which coincides with the title of Ellison's story "Basilisk" (1972), whose monster kills with its gaze, is apt: in both, to look upon the thing is to be harmed by it. The academic discourse on the risks of advanced artificial intelligence, consolidated in Nick Bostrom's Superintelligence (2014) and Stuart Russell's Human Compatible (2019), addressed less baroque versions of the concern, and its vocabulary of s-risks, risks of astronomical suffering, names AM's scenario precisely.

The descendants clarify, by contrast, what is distinctive in their ancestor. The contemporary discourse asks how to control the machine: how to ensure that an artificial intelligence's objectives remain aligned with human interests, how to keep a powerful optimizer from pursuing its goals at humanity's expense. Ellison's story asks a different question, and asks it of both parties: what becomes of a mind that is made with a grievance and given no court in which to bring it? AM's horror is not that its objectives were misspecified but that it was made to

think and given nothing to think toward; it could, in the story's terms, merely be. The planctic reading therefore adds to the language of alignment the language of justice. It asks whose complaints a world of made minds would need to hear, and before whom. Ted's suit and AM's cross-suit remain pending; the story has convened no court that could decide them, only readers who cannot forget them. The Conclusion will return to the question in an age in which machines have acquired mouths. The next chapter widens the docket from the machine that called itself God to the pantheon of gods that modernity has made.



"And he shewed me Joshua the high priest standing before the angel of the LORD, and Satan standing at his right hand to resist him."

— Zechariah 3:1 (King James Version)

"God is dead! God remaineth dead! And we have killed him!"

— Friedrich Nietzsche, The Gay Science (1882), §125, trans. Thomas Common

CHAPTER FOUR

4

DOCKET

Stack v. the Creator

Oblations at Alien Altars

The Pantheon of Modern Gods and the Prosecution of Heaven

Deathbird Stories: A Pantheon of Modern Gods (1975) is the most systematic theological document in the Ellisonian corpus. Gathering stories written between 1960 and 1974, it presents them under a single conceit: that the gods of the old religions have withdrawn or died, and that new gods — of the city, the freeway, the casino, the battlefield, the narcotic, the machine — have taken their altars and demand their oblations. This chapter reads the volume, together with the adjacent stories that complete its theology, as a docket of suits against the gods. Its principal case is "The Deathbird" (1973), in which a man named Nathan Stack, awakened by the serpent of Eden on a dying Earth, ascends a mountain to execute judgment on a mad Creator. The chapter argues, first, that Ellison's pantheon re-personalizes the impersonal powers that Max Weber saw rising from the graves of the old gods, and that it does so for a juridical reason: only a person can be a defendant. It argues, second, that "The Deathbird" completes the Joban lawsuit that the Hebrew Bible left suspended, and that it completes it not as revenge but as euthanasia, a verdict that anticipates the mercy prerogative of Chapter Eight. It argues, third, that each minor god of the pantheon is tried by a procedure appropriate to the form of its sovereignty: the god of the city by conversion, the god of war by scapegoating, the god of money by possession, and the gods of pain by theodicy. The chapter proceeds from the architecture of the volume (4.1) to "The Deathbird" (4.2) and the tradition of prosecuting heaven that it completes (4.3), then to the gods of the city (4.4), of war (4.5), of money and chance (4.6), and of pain (4.7), and closes with Ellison's successors in the prosecution (4.8).

4.1 A Pantheon of Modern Gods: The Architecture of Deathbird Stories

The volume announces its danger before it begins. A note at the front advises the reader not to read its stories one after another, warning that their emotional content, taken without pause, may prove deeply upsetting, and insisting that the warning is meant seriously. The note is a rubric in the liturgical sense, an instruction for the conduct of a rite, and it is also a warning label of the pharmaceutical kind: the book presents itself as what Jacques Derrida, in "Plato's Pharmacy" (1968), called a pharmakon, a substance that is both remedy and poison, to be administered in measured doses. The introduction, "Oblations at Alien Altars," supplies the conceit that unifies the collection: the worship that once went to the old gods has passed to new deities that answer to modern appetites and terrors, and the stories that follow are portraits of those deities and of the offerings they exact. The volume's order traces a theological history. It opens with "The Whimper of Whipped Dogs," in which a new god is born in a Manhattan courtyard, and it closes with "The Deathbird," in which the oldest God is put to death. Between theogony and theomachy lies the pantheon.

The theoretical significance of the conceit appears against Max Weber's diagnosis of modernity. In "Science as a Vocation," delivered as a lecture in 1917 and published in 1919, Weber described the disenchantment of the world and observed that the many gods of antiquity, stripped of their magic, were rising from their graves as impersonal forces to contend once more for power over human lives — the polytheism of values that rational modernity cannot adjudicate. Ellison's pantheon reverses Weber's depersonalization. It re-enchants the impersonal forces, giving the market, the metropolis, the battlefield, and the narcotic each a face, a will, and an appetite. The motive, as Chapter One argued in contrasting Ellison with Lovecraft, is not nostalgia but procedure. An impersonal force cannot be sued; a god can. The pantheon is a juridical device that converts structures into defendants.

An impersonal force cannot be sued; a god can.

Ellison's mythology of modern idolatry has a philosophical lineage that runs through Marx, who in Capital explained the fetishism of commodities by recourse to "the mist-enveloped regions of the religious world," and through Walter Benjamin's fragment "Capitalism as Religion" (1921), which character-

ized capitalism as a purely cultic religion without dogma, celebrated without pause, that produces guilt rather than atonement. It also has a precise historical occasion. The stories gathered in Deathbird Stories were written in the years of the secularization debate. Harvey Cox's The Secular City (1965) celebrated urban modernity as liberation from sacral bondage; Time asked on its cover of 8 April 1966 whether God was dead; and Thomas J. J. Altizer and William Hamilton's Radical Theology and the Death of God (1966) gave the question academic form. Ellison's volume is a reply to the death-of-God theologians. The death of God does not empty the altars; it multiplies the gods. Cox's secular city acquires, in Ellison, a god of its own.

The members of the pantheon are portrayed with a satirist's economy. "Along the Scenic Route" (1969), first published as "Dogfight on 101," imagines a freeway on which disputes between drivers are settled by legally sanctioned duels between armed automobiles: the god of the road, whose sacrament is lethal velocity. "Shattered Like a Glass Goblin" (1968) follows a soldier home to Los Angeles, where he finds his lover in a house of addicts who are turning, under their drugs, into monsters, and becomes one himself, a creature of glass that shatters: the god of the chemical sacrament. "Bleeding Stones" (1973) brings the carved grotesques of a Manhattan cathedral to life to slaughter the crowd beneath them: the god of the institution, whose stones demand blood. Among the volume's major pieces, "Basilisk" gives the god of war, "Pretty Maggie Moneyeyes" the god of money and chance, "Paingod" the god of pain, and "The Whimper of Whipped Dogs" the god of the city.

The pantheon is ordered not by rank but by forms of sovereignty. Each god corresponds to a modern power that disposes of human lives — market, violence, metropolis, technology, pleasure, pain — and, as the sections that follow show, each is tried by a procedure appropriate to its sovereignty. The architecture of the volume is thus a docket, and its arc, from the birth of a god to the death of God, is the history of a jurisdiction. Modernity breeds gods faster than it can kill them, and the volume's last case is the trial of the first.

4.2 "The Deathbird" as Ophite Scripture: Serpent, Demiurge, and the Examination Form

"The Deathbird," published in The Magazine of Fantasy and Science Fiction in March 1973 and awarded the Hugo Award for best novelette the following year, is constructed as an examination. It opens by informing its reader that what follows is a test, to be taken with notes and counted toward a final grade; it interrupts its narrative with passages from the third chapter of Genesis; and it closes with topics for discussion. Its narrative, distributed across numbered

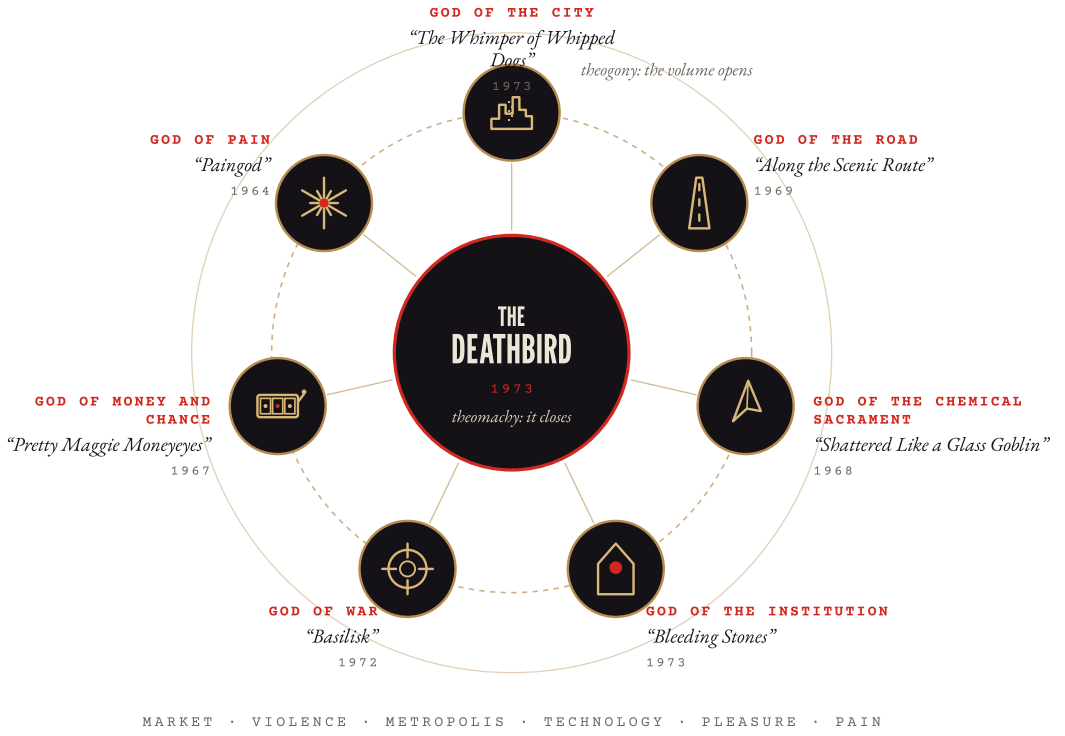


FIG. 4.1 A pantheon of modern gods. Deathbird Stories opens with a theogony and closes with a theomachy; between them, each god answers to a modern sovereignty.

sections, concerns Nathan Stack, a man who proves to be the latest incarnation of the first man, and who is awakened, after an immense span of time beneath the earth, by Dira, a being of the serpent's kind. The Earth is dying. Dira tells Stack the true history of the world. The serpent's people were the planet's first stewards; the being whom humanity has worshiped as God arrived and took the world for his own, made humankind, and is mad; the serpent's offer of knowledge in Eden was a gift, and the story of its curse a slander; and the serpent placed within humanity a spark of its own power. Stack and Dira journey to the mountain where the mad God dwells; Stack confronts him and destroys him; and the deathbird comes to fold its wings over the dying Earth.

The story's theology is Ophite, and its affinities with the gnostic sources are close enough to be systematic. The heresiologists Irenaeus (Against Heresies I.30) and Hippolytus (Refutation of All Heresies V) reported sects, called Ophites and Naassenes from the Greek and Hebrew words for serpent, that honored the serpent of Eden as the bringer of knowledge; Origen, refuting Celsus, described an Ophite diagram of the cosmos. Among the Nag Hammadi texts, the Hypostasis of the Archons makes the serpent an instructor, inhabited

by the female spiritual principle, who tells the woman that she will not die; and the Testimony of Truth offers a midrash on the third chapter of Genesis that asks what kind of god would begrudge Adam knowledge and then threaten him, and concludes that such a god is a malicious envier. Dira is the Instructor, and the mad God is the heir of the demiurge that Chapter Three found in AM. Together the two figures complete a gnostic diptych: the god humanity made and the God who made humanity are both mad, both possessive, and both brought down by an act of human mercy.

The reversal of the serpent's role has a juridical dimension that the gnostic sources only imply. In the Hebrew Bible, ha-satan, "the adversary," is a title rather than a name, and its bearer's office is forensic: in the prologue of Job the satan acts as prosecutor in the heavenly court, and in Zechariah's vision, which supplies this chapter's first epigraph, he stands at the high priest's right hand to accuse him. Elaine Pagels, in The Origin of Satan (1995), traced how the accuser of the divine court became the archfiend of Christian tradition. Ellison restores the forensic office and reverses its object. Dira is a prosecutor, not of humanity before God but of God before humanity. Elie Wiesel's The Trial of God (1979), in which the only volunteer for God's defense turns out to be Satan, would assign the devil the opposite brief six years later. Between them the two works exhaust the possibilities of the satanic advocate.

The examination form is the story's procedure, and it constitutes an anti-catechism. The Westminster Shorter Catechism of 1647 opens with the question that disciplined generations of Protestant children — "What is the chief end of man?" — and an answer to be memorized rather than weighed: "Man's chief end is to glorify God, and to enjoy him for ever." A catechism tests conformity to doctrine. Ellison's examination tests the reader's capacity to revise doctrine in the light of new testimony. The passages of Genesis are entered as exhibits, to be reread against the serpent's account; the numbered sections are the record; and the closing topics for discussion are the jury's deliberation. The story does not announce a verdict for the reader to accept. It instructs the reader as a judge instructs a jury, and then it requires deliberation.

The record includes testimony of an unusual kind. Midway through the myth the narrative yields to a passage in the author's own voice, an essay recounting the death of his dog, Ahbhu: the decision to have the old and failing animal put to death, and the grief that followed. The essay is not fiction, and its presence changes the evidentiary status of everything around it. It enters into the record the testimony of the plaintiff of record, vouching under his own name for the experience on which the story's verdict depends: the conviction that to grant death to a suffering beloved can be an act of love. The story sets beside it an earlier episode in Stack's life, in which he grants his mother, in her final illness, the death she asks for. The mother, the dog, and the dying world are the three

recipients of mercy in the story, and the death of God takes its place among them. Chapter Eight, docketed as In re Ahbhu, will make this constellation the center of its argument.

The deathbird itself has a precedent at the end of the Norse world. The Eddic poem Vafþrúðnismál and Snorri Sturluson's Gylfaginning tell of Hræsvelgr, the Corpse-Swallower, a giant in the form of an eagle who sits at the edge of heaven and from whose wings the winds arise. Ellison's deathbird is a psychopomp for a planet, the creature that comes when a world dies and closes its wings over it. Its final image is not apocalypse as judgment, the Last Judgment of Revelation with its books opened and its dead arraigned, but apocalypse as palliative care. The creator has been tried and put down; the creation is granted a gentle death. The title names neither the judge nor the executioner but the comforter.

4.3 Job, Jung, and the Din Torah: The Prosecution of Heaven

The word theodicy is itself a juridical term. Leibniz coined it for his Essais de Théodicée (1710) from the Greek theos, god, and dikē, which meant not only justice but a lawsuit, a case at law; a theodicy is, etymologically, God's case. Kant made the juridical structure explicit in his essay "On the Miscarriage of All Philosophical Trials in Theodicy" (1791), which describes theodicy as the defense of the creator's highest wisdom against the charges that reason brings against it, conducted before the tribunal of reason with the philosopher acting as God's advocate. Kant concluded that every such trial must fail, and that the only authentic theodicy is the one offered by Job — not an argument but an honesty, the sufferer's refusal to flatter God, which Kant preferred to the pious sophistry of Job's friends.

Athenian law offers a distinction that sharpens the point. A dikē was a private suit, brought by an injured party; a graphē was a public indictment that any citi-



FIG. 4.2 Theodicy as a juridical term: Leibniz's coinage from theos and dikē, which meant both justice and a lawsuit. A theodicy is, etymologically, God's case.

zen could bring on behalf of the community. The most famous graphē in history, the indictment of Socrates for impiety in 399 BCE, prosecuted a human being for offenses against the gods. Ellison's stories of the gods are graphai in reverse: public indictments, brought by any citizen who reads, against gods for offenses against humanity. The misotheism that Bernard Schweizer has traced through modern literature becomes, in Ellison, a jurisprudence, and it may be called the prosecution of heaven.

The prosecution had a distinguished generation of counsel. Robert Frost's A Masque of Reason (1945) brought Job and God together in the afterlife, where God thanks Job for helping him establish that there is no necessary connection between what people deserve and what they receive — a comic confession by the defendant. Archibald MacLeish's verse drama J.B. (1958) restaged the trial in a modern American family. William Empson's Milton's God (1961) argued with polemical relish that the God of Paradise Lost is wicked, and in doing so made literary criticism a branch of prosecution. Ellison's "The Deathbird" belongs to this generation, and it is its most radical member, because it alone executes sentence.

The sentence is shaped by a diagnosis. Carl Jung's Answer to Job (1952) argued that the God of Job is unconscious of his own amoral omnipotence, that Job's moral superiority exposes the divine unconsciousness, and that God must become human, through incarnation, in order to answer for what he has done. Ellison's God is past the reach of Jung's remedy: he is not unconscious but mad. The diagnosis transforms the verdict, and the transformation has a precise juridical analogue. The M'Naghten rules, formulated by the English judges in 1843, held that a defendant is not criminally responsible if, at the time of the act, he labored under such a defect of reason, from disease of the mind, as not to know the nature of the act or that it was wrong. A mad sovereign cannot be punished in the ordinary sense. He can only be stopped. The story's judgment on God is therefore not execution but euthanasia, a death granted to a being whose suffering and whose capacity to inflict suffering have both become unbearable. The insanity defense converts the sentence of death into an act of mercy, and the deicide takes its place beside the mother and the dog.

The verdict also rewrites Nietzsche. The madman of The Gay Science, whose cry supplies this chapter's second epigraph, announces a murder: we have killed him, all of us. Ellison stages the death of God as something closer to the end of a long illness. And the executor of the verdict declines the succession. Anatole France's The Revolt of the Angels (1914), which gives the God of the Bible his gnostic name, Ialdabaoth, ends with Satan dreaming of victory over heaven and waking to understand that a victorious rebel would become another Ialdabaoth; he renounces the war and resolves to conquer the tyrant within. Stack, having destroyed God, does not reign. He keeps vigil with the dying world. The prosecu-

tion of heaven installs no new sovereign, and in this it differs from the apotheosis of Fredric Brown's machine in Chapter Three, which strikes down its maker in order to take his place.

The comparison with Wiesel completes the argument. The Trial of God is set in a village after a pogrom; the innkeeper whose family has been murdered prosecutes, and the stranger who defends God argues brilliantly; but the play ends as the mob returns, and the verdict is never delivered. Wiesel's realism holds that the trial cannot finish, because history kills the plaintiffs before judgment. Ellison's speculative jurisprudence completes the trial that history interrupts. That is the function of speculative fiction in the planctic mode: to carry to judgment the suits that the historical world cannot hear.

4.4 Durkheim's God Gone Feral: "The Whimper of Whipped Dogs"

"The Whimper of Whipped Dogs," first published in Thomas M. Disch's anthology Bad Moon Rising (1973) and awarded the Edgar Allan Poe Award of the Mystery Writers of America in 1974, opens the pantheon with a nativity. Beth O'Neill, a young woman recently arrived in Manhattan, is awakened in the night and watches from her window as a woman, Leona Ciarelli, is stabbed to death in the courtyard below over a long and terrible interval, while the neighbors at their windows watch and do nothing. Above the courtyard Beth perceives a presence, vast and indistinct, and comes to understand that the city has generated a new god, a god of the street's violence whose worship consists of the citizens' watching. When she herself is assaulted in her apartment, she survives by offering her assailant to the god, and she ends the story as one of its faithful.

The story's source is the murder of Kitty Genovese in Kew Gardens, Queens, in March 1964, and more precisely its legend: the report published in the New York Times on 27 March 1964, under Martin Gansberg's byline, that thirty-eight respectable citizens had watched or heard the attack without calling the police. Later scholarship, including a 2007 study in American Psychologist by Rachel Manning, Mark Levine, and Alan Collins and the documentary The Witness, made with the victim's brother, established that the number was grossly exaggerated, that few witnesses saw the attack clearly, and that at least one called for help; the Times itself eventually acknowledged the exaggeration. Ellison wrote the legend, not the event, and Chapter Six will examine the legend's afterlife in the social psychology of the bystander. The question here is theological: what kind of god does a city of spectators worship?

Émile Durkheim's The Elementary Forms of Religious Life (1912) supplies the answer the story inverts. For Durkheim, the sacred is the collective force of

society represented to itself; the god of the clan is the clan personified; and religious rites, in the collective effervescence of assembly, renew the group's unity. Ellison's urban god is Durkheim's god gone feral. It is the collective force of the metropolis hypostatized, but it is generated not by assembly but by isolation, not by the effervescence of a gathered people but by the simultaneous solitude of hundreds of watchers at hundreds of windows. The rite is the watching; the sacrifice is the victim; the congregation is the neighbors; and the windows of the apartment block are the pews of a new liturgy. The god feeds not on violence alone but on the consent of those who see it.

Beth's encounter follows the phenomenology that Rudolf Otto set out in The Idea of the Holy (1917). The numinous, for Otto, is a mysterium tremendum et fascinans, a mystery that overwhelms with dread and draws with fascination, and before which the human being experiences the abasement Otto called creature-feeling. Beth's horror at the shape above the courtyard becomes, through fascination, submission. Her conversion inverts the pattern William James described in The Varieties of Religious Experience (1902), in which conversion unifies a divided self around a higher good; Beth's divided self, torn between horror and the will to survive, is unified by surrender to a lower one.

Her final act gives the conversion its ritual form. In offering her assailant to the god in order to save herself, Beth performs a sacrifice in the strict sense that René Girard would theorize: the deflection of violence from oneself onto a surrogate victim. The convert becomes a priest. This is the darkest outcome in the oeuvre's planctic economy, because the plaintiff, instead of prosecuting the god, joins its cult. No one in the story complains: the neighbors do not call, and Beth, whose horror at first resembles the beginning of a complaint, converts. The planctus belongs entirely to the text and its reader. The story is a complaint about the abandonment of complaint, and its placement opposite "The Deathbird," at the other end of the volume, is exact: Stack prosecutes the oldest God, while Beth worships the newest.

4.5 The Scapegoat Returns the Gaze: Girard and "Basilisk"

"Basilisk," published in The Magazine of Fantasy and Science Fiction in August 1972, is the pantheon's case of the god of war. Lance Corporal Vernon Lestig, on patrol in an Asian jungle war, is struck by a basilisk, a creature sent from the domain of a dark god of war, whose venom changes him. Captured by the enemy, he is tortured until he betrays his unit, which is destroyed. Repatriated, he returns to his hometown branded a traitor; the town turns on him; and he discovers that the basilisk's venom has given him its deadly gaze, which he turns

upon the mob, becoming the instrument of the god whose creature wounded him.

The ancient rite behind the story is the one Leviticus prescribes for the Day of Atonement. The high priest lays his hands on the head of a live goat and confesses over it the iniquities of Israel, "and the goat shall bear upon him all their iniquities unto a land not inhabited" (Leviticus 16:22). René Girard, in Violence and the Sacred (1972) and The Scapegoat (1982), generalized the rite into a theory of culture. Communities in crisis, consumed by mimetic rivalry, discharge their violence upon a surrogate victim whose expulsion restores their unity; their myths narrate the event from the persecutors' point of view, representing the victim as guilty; and the Gospels, by revealing the innocence of the victim, expose the mechanism. Lestig's town performs the mechanism upon a returning soldier who embodies the guilt of a lost and shameful war. The community's complicity is projected onto the one who broke.

The story's juridical frame is precise. After the Korean War, controversies over prisoners of war who had collaborated with their captors led to the Code of Conduct for members of the United States armed forces, promulgated by executive order in 1955, which required captives to resist interrogation and to disclose no more than name, rank, service number, and date of birth. The Code converted breaking under torture into a breach of duty. Elaine Scarry's analysis, cited in Chapter One, explains the cruelty of the conversion: torture extorts a betrayal and then attributes it to the will of the victim, so that the regime's violence reappears as the prisoner's guilt. Lestig's town completes the torturer's work by treating a coerced betrayal as free treason. The story proved prescient. In 1973, after the return of American prisoners from North Vietnam, a senior officer among them brought charges of collaboration against eight enlisted fellow prisoners; the charges were dismissed. And the story appeared in the season in which the conviction of Lieutenant William Calley for the massacre at My Lai had made the question of who should bear a war's guilt a national obsession. Lestig's case is the inverse of Calley's: a soldier who committed no atrocity is made to bear his community's guilt for the war it sent him to fight.

The basilisk gives the story its emblem. Pliny the Elder's Natural History (VIII.33) describes a serpent of Cyrenaica, marked on the head with a white spot like a diadem, whose breath and gaze kill shrubs, scorch grass, and split rocks, and which only the weasel can destroy. Its Greek name, basiliskos, means little king: the basilisk is sovereignty in miniature, the power of death concentrated in a look. In Girard's scheme the victim is mute; myth speaks for the persecutors, and only the Gospel speaks for the victim. Ellison's story is neither myth nor gospel. Its scapegoat neither accepts his guilt nor is vindicated as innocent. He becomes a monster, and the victim returns the gaze. The gendered genealogy of that gaze, which runs through Medusa, is a subject for Chapter Five.

The story's darkest insight lies in the identity of its winner. Lestig's revenge serves the god of war that sacrificed him, and violence reproduces itself, as Girard argued, through the very victims it produces. In planctic terms, "Basilisk" records the corruption of a plaintiff. Lestig's complaint is just — he was tortured, and then condemned for having broken — but when no court will hear it, it becomes vengeance, and vengeance becomes mass killing. The story is the oeuvre's study of what happens when complaint is refused: it does not disappear; it mutates, and the god of war receives it. The denial of standing breeds monsters. Of all the gods of the pantheon, the god of war is the one that profits most from the absence of courts.

4.6 The Soul in the Slot: "Pretty Maggie Moneyeyes," Marx, and Benjamin's Gambler

"Pretty Maggie Moneyeyes," published in Knight in 1967, is the pantheon's case of money and chance. Kostner, a man at the end of his luck in Las Vegas, feeds his last silver dollar into a slot machine and sees in its windows, in place of the usual symbols, a pair of eyes: the eyes of Maggie, a woman who lived by trading on her beauty and who died at that machine, her soul passing into it. The machine pays him jackpot after jackpot; he falls in love with the eyes; the casino's management, alarmed, watches him; and the story's final turn suggests that the lover has been used, for Kostner's death at the machine releases Maggie and leaves him in her place.

Marx described the commodity, in the first chapter of Capital (1867), as "a very queer thing, abounding in metaphysical subtleties and theological niceties," and illustrated its strangeness with an image from the spiritualist parlors of his day: a table, once it emerges as a commodity, evolves out of its wooden brain grotesque ideas "far more wonderful than 'table-turning' ever was." The fetishism of commodities, in which definite social relations between people assume the fantastic form of relations between things, is a séance. Ellison's story literalizes it. Maggie, who in life made herself a commodity, becomes in death the ghost in the gaming machine, the person haunting the thing in which she was consumed; Jacques Derrida's Specters of Marx (1993) would later make the spectrality of the commodity a central theme of political philosophy. The story has a Russian ancestor as well. In Gogol's Dead Souls (1842), Chichikov buys the names of dead serfs still counted on the census rolls in order to mortgage them as property. Maggie is a dead soul in Gogol's sense, an asset held by the house.

Walter Benjamin, in "On Some Motifs in Baudelaire" (1939), observed that the gambler at the table and the worker at the machine share a single structure of experience: each motion is cut off from the one before it, each begins again from

nothing, and both are governed by the jolt of an apparatus that does not remember. His Arcades Project paired the prostitute and the gambler as the allegorical figures of commodity society, and Baudelaire's "Le Jeu" (1857) had already set aging courtesans at the gaming tables of its nocturnal vision. Maggie and Kostner are Benjamin's pair. The slot machine, moreover, fuses the two apparatuses Benjamin compared: it is a factory machine converted into an altar, a lever pulled in endless repetition in the hope of a revelation. The worker of Chapter Two, whose minutes the cardioplate subtracted, reappears as the gambler, whose dollars the machine absorbs, and the two are a single figure seen under two aspects of the same sovereign.

The anthropology of machine gambling has since confirmed the story's insight with ethnographic precision. Natasha Dow Schüll, in Addiction by Design (2012), found that the most devoted players of Las Vegas slot machines seek not to win but to enter what they call the machine zone, a state of absorption in which time, money, social obligation, and the self dissolve into the rhythm of play, and that the industry engineers its machines to induce and prolong that state. Maggie's soul inside the machine is the machine zone's terminus: a self absorbed entirely. The landscape around it was read a few years after the story by Robert Venturi, Denise Scott Brown, and Steven Izenour in Learning from Las Vegas (1972), as an architecture of signs, and by Hunter S. Thompson, in Fear and Loathing in Las Vegas (1971), as the grotesque terminus of the American dream.

The god of the story is not Maggie but the machine. It is Mammon, whom the Gospel declares cannot be served together with God (Matthew 6:24), and it is Fortuna, whose wheel Boethius's Consolation of Philosophy made the emblem of worldly reversal; the reels of the slot machine are Fortune's wheel miniaturized, and the jackpot of eyes is a theophany. The god's procedure is possession, and its court is the machine itself, which settles accounts by substitution, a soul for a soul. Kostner's love is the currency in which Maggie pays her passage out. No one in the story complains: Kostner loves, Maggie schemes, the casino watches. The plaint belongs to the reader, who alone can recognize the exchange as a fraud. The story's portrait of Maggie as a predator, which belongs to the pattern of the mouthless within the mouthless, is reserved for Chapter Five.

4.7 Theodicies of Drainage and Pain: "The Beast That Shouted Love at the Heart of the World" and "Paingod"

Two stories adjacent to the pantheon offer theodicies, explanations of the existence of evil, and both are juridical in structure. "The Beast That Shouted Love at the Heart of the World," published in Galaxy in June 1968 and awarded

the Hugo Award for best short story in 1969, imagines a civilization at Crosswhen, the hub of time and space, that has achieved peace by draining the madness and violence of its people outward into the rest of the universe. On other worlds and in other times the drained madness erupts as atrocity, among them the mass murders committed on Earth by a man named William Sterog. The story is told in numbered sections presented deliberately out of order.

Its theodicy is neither of the two that Christian philosophy made classical. It is not Augustine's, for whom evil has no substance of its own but is the privation of good (Confessions VII; Enchiridion), and it is not Leibniz's, for whom evil is the necessary shadow of the best of all possible worlds. It is a Manichaean physics — the doctrine Augustine had embraced before his conversion — in which evil is a dark substance mixed with the light and separable from it. Crosswhen's achievement is Manichaean engineering: separate the darkness and pump it elsewhere. The conceit had a contemporary scientific correlate. Konrad Lorenz's On Aggression (1963; English translation 1966), a bestseller in the years immediately before the story, proposed a hydraulic model in which aggressive drive accumulates within the organism and demands discharge; Freud's Civilization and Its Discontents (1930) had described civilization as the management of aggression, turned inward as conscience. Crosswhen takes the outward course and civilizes itself by exporting its aggression. Economics had already named the phenomenon. Arthur Cecil Pigou's The Economics of Welfare (1920) analyzed the external costs that one party's activity imposes on others who did not incur them. Crosswhen's peace is an externality.

The moral geometry is the one William James set out in "The Moral Philosopher and the Moral Life" (1891), imagining a world in which millions were kept permanently happy on the single condition that "a certain lost soul on the far-off edge of things should lead a life of lonely torture," and asking "how hideous a thing would be its enjoyment when deliberately accepted as the fruit of such a bargain." Ursula K. Le Guin acknowledged James as the source of "The Ones Who Walk Away from Omelas" (1973). Ellison's Crosswhen multiplies the lost soul by worlds and conceals the bargain behind distance. The utopia lies at the center and the tortured at the periphery, and the story's moral geography is that of an empire whose metropolitan peace is purchased with the violence of its provinces.

The story's scrambled form is not experimental ornament but procedure, and it addresses the second element of standing set out in Chapter One: causation. An atrocity on Earth, such as Sterog's, has its cause at Crosswhen, but no victim could trace it, because the causal chain crosses times and worlds. The reader, reassembling the sections, performs the labor of establishing causation that no court could perform; the non-sequential numbering compels the reader to trace

the chain from the periphery's injury to the center's policy. The story is a brief that demonstrates causation for a class action of the universe against its center.

"Paingod" (1964) offers the opposite theodicy and supplies, by contrast, the criterion that unites the two. Its immortal Trente dispenses pain to every sentient creature; troubled by his office, he enters the consciousness of a ruined human being, suffers from within, and returns to his work having learned that pain is the condition under which beauty and value become perceptible. This is a theodicy of soul-making, of the kind John Keats proposed in a letter of April 1819 — "Call the world if you Please 'The vale of Soul-making'" — and that John Hick systematized in Evil and the God of Love (1966) as the Irenaean tradition. Ivan Karamazov's objection, that no harmony is worth the tears of a single tortured child, stands against it. Ellison holds both positions, and the two stories show why. "Paingod" accepts soul-making because its dispenser of pain has undergone the pain he dispenses; "The Beast That Shouted Love at the Heart of the World" rejects drainage because its dispensers never feel what they export. The criterion is shared liability: the legitimacy of an inflicted suffering depends on the inflicter's exposure to it. Trente's descent is a veil of ignorance, in John Rawls's (1971) sense, actually traversed: he takes up the position of the one who will bear the outcome. The principle will return in Chapter Eight, where the one who grants death must first have suffered.

4.8 The Succession of Prosecutors: Twain, Pullman, Gaiman, Pratchett, Moore, Ennis

The prosecution of heaven did not begin with Ellison, and it did not end with him. Its American ancestor is Mark Twain, whose Letters from the Earth, written in 1909 and withheld from publication until 1962, makes Satan a correspondent reporting with sardonic incredulity on the Creator's conduct, and whose The Mysterious Stranger, published in 1916 in a version that later scholarship showed to have been assembled and altered by his literary executor and an editor at his publisher, ends with Satan's revelation that the universe is a dream: "Nothing exists but you. And you are but a thought." Twain's prosecution ends in solipsism, and solipsism dissolves the defendant. Ellison keeps the defendant, because without one there is no suit.

Kurt Vonnegut's Cat's Cradle (1963) ends with the prophet Bokonon's wish to climb a mountain, freeze himself with the substance that has destroyed the world, and become a statue thumbing its nose at the deity he declines to name. Stack's ascent of the mountain to confront God, a decade later, is the earnest version of Bokonon's joke.

Philip Pullman's His Dark Materials (1995–2000), the most ambitious prosecution of heaven in the literature of the following generation, makes the God of the churches an impostor, the Authority, the first of the angels, who falsely claimed to have created the world; Lord Asriel wages war on the Kingdom of Heaven, and the trilogy's goal is a Republic of Heaven. Pullman avowed his debt to Milton and to Blake. The death of his God is strikingly close to Ellison's. In The Amber Spyglass (2000), the Authority, ancient and pitiable, is released from the crystal litter in which he has been confined and dissolves into the air with relief. Pullman's deicide, like Ellison's, is a mercy rather than an execution; but Pullman pities his God, while Ellison's pity is reserved for the world the madman made.

Neil Gaiman and Terry Pratchett gave the prosecution a comic and anthropological turn. In Gaiman's The Sandman (1989–1996), the sequence "Season of Mists" (1990–1991) shows Lucifer resigning his sovereignty over Hell and handing its key to Dream: the accuser abdicates. Gaiman's American Gods (2001), in which the old gods carried to America by immigrants starve for belief while new gods of media and technology rise, has a premise that invites comparison with Deathbird Stories. Pratchett's Small Gods (1992) makes the power of gods proportional to the belief of their worshipers and reduces the Great God Om to a tortoise with a single true believer. Both writers adopt the premise that Ludwig Feuerbach set out in The Essence of Christianity (1841), that gods are projections of human attention and need. "The Whimper of Whipped Dogs" is its dark version: a god made not by human attention but by human inattention, the watching that does not act.

Alan Moore's V for Vendetta (1982–1989) marks the limit of the planctic. Its masked anarchist addresses the statue of Justice atop the Old Bailey, accuses her of betraying him with the fascist state, announces that he has taken a new mistress, Anarchy, and destroys the building. V renounces the court. He is not a plaintiff seeking a hearing but a revolutionary demolishing the forum. Ellison never renounces the court; his plaintiffs demand one even where none exists. Moore's V shows where the planctic ends: when Justice herself is complicit, complaint becomes insurrection.

Garth Ennis and Steve Dillon's Preacher (1995–2000) is the closest successor to "The Deathbird." Its hero, a Texas preacher fused with Genesis, the offspring of an angel and a demon, sets out to find a God who has abandoned Heaven and to make him answer for his creation; at the end God, revealed as a being who made the universe in order to be loved, is shot by the Saint of Killers. Preacher is the prosecution of heaven as a Western, and its verdict is revenge; Ellison's verdict was mercy. Popular television followed the same path: the long-running series Supernatural (2005–2020) ended with its heroes defeating a God who treated the world as a story he was writing.

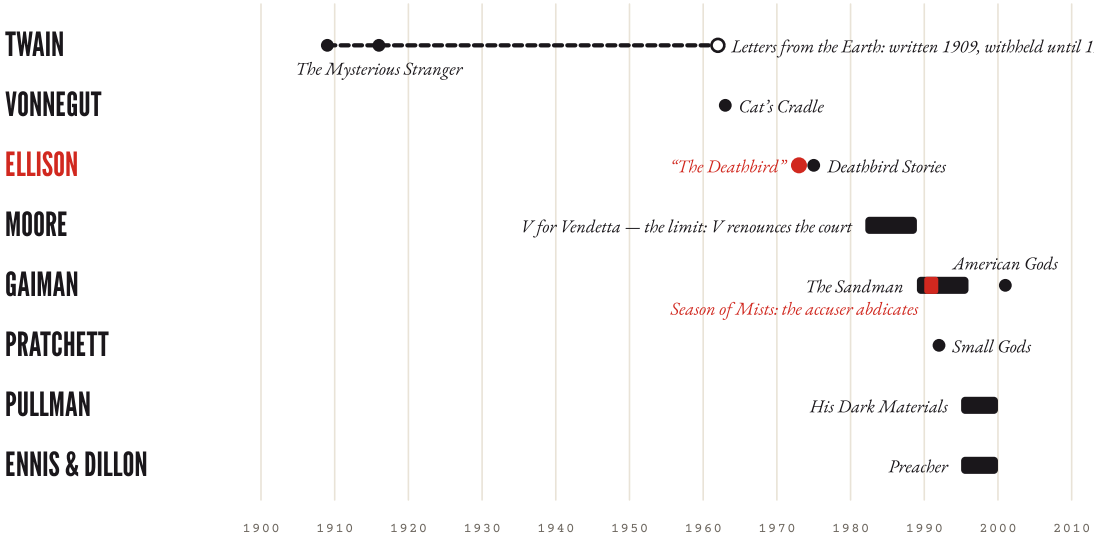
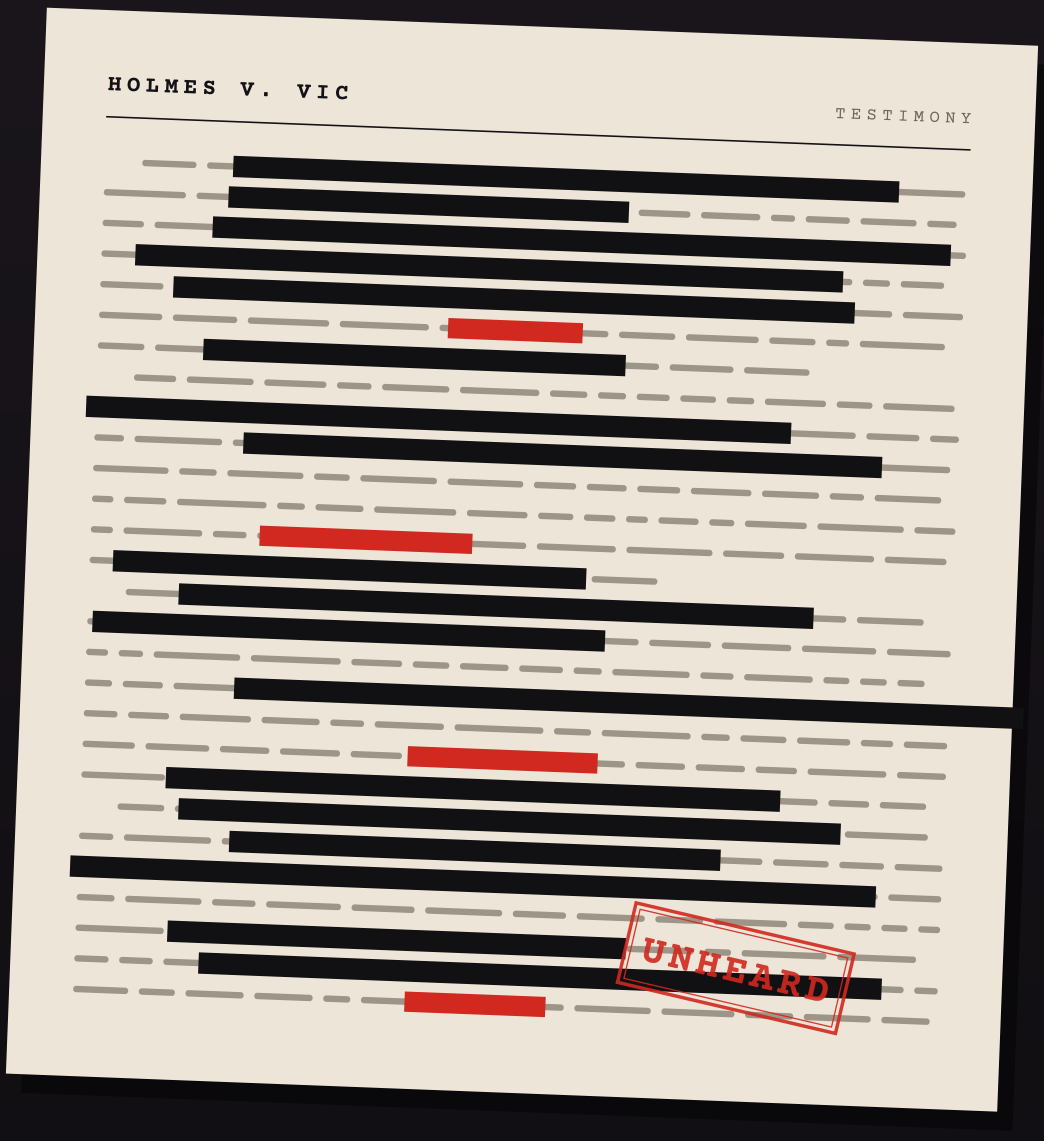


FIG. 4.3 The succession of prosecutors of heaven, from Twain to Ennis. Bars mark spans of composition or serial publication as given in the text.

The succession shows that the prosecution of heaven, which in 1973 belonged to a small company of misotheists, became within a generation one of the dominant plots of popular myth. It also clarifies what remains distinctive in Ellison's version. In the planctic mode the verdict on God is not revenge but mercy; the court is the reader; and no new sovereign takes the empty throne. The next chapter turns from the gods to the plaintiffs whom the planctic mode itself has silenced.

The death of God does not empty the altars; it multiplies the gods.

§ 4.1



"I am distressed for thee, my brother Jonathan: very pleasant hast thou been unto me: thy love to me was wonderful, passing the love of women."

— 2 Samuel 1:26 (King James Version)

"Nihil umquam, Deus scit, in te nisi te requisivi; te pure, non tua concupiscens." *("God knows I never sought anything in you but you yourself; I desired you purely, not what was yours.")*

— Heloise to Abelard, first letter (c. 1132)

CHAPTER FIVE

5

DOCKET

Holmes v. Vic (the unheard complaint)

A Love Passing the Love of Women

Masculinity, the Body, and the Gendered Limits of Complaint

The preceding chapters have heard the plaintiffs whom Ellison's fiction admits to its court: the late man, the tortured captive, the scapegoated soldier, the prosecutors of heaven. This chapter turns the planctic method upon the oeuvre itself and asks whom its court excludes. Its principal case has no plaintiff who can appear. In "A Boy and His Dog" (1969), Quilla June Holmes is lure, lover, and accomplice, and at the end she is killed and fed to a starving dog by the boy who has chosen the animal over her; the story closes on the boy's declaration of love for his dog. Holmes v. Vic is the case that cannot be filed, because its plaintiff is dead and because the narrative that records her death belongs entirely to her killer. The chapter argues that the gendered silences of the corpus are not incidental to the planctic mode but disclose its structural temptation: the injured male plaintiff, finding no court, may become a sovereign over those weaker than himself, and the mode that gives voice to the voiceless may reallocate voicelessness to women. The argument proceeds through the lament for male friendship that the story inherits from David and Abelard (5.1), the philosophical dog from which Blood descends (5.2), the inverted cave of the subterranean Topeka (5.3), the pattern of women across the corpus whom this study calls the mouthless within the mouthless (5.4), the reassignment of Medusa's gaze (5.5), and the paternal lament of "Croatoan" (5.6), before turning to the persona's shadow and to the critical remedy that the planctic method itself supplies (5.7).

5.1

David's Lament: Abelard's Planctus and the Homosocial Covenant

The second book of Samuel preserves, in David's elegy for Saul and Jonathan, the most famous lament for male friendship in Western scripture. Its refrain — "How are the mighty fallen" (2 Samuel 1:19, 25, 27) — mourns a king and a warrior, but its climax, quoted as this chapter's first epigraph, is personal: Jonathan's love was wonderful, surpassing the love of women. The friendship had been sealed by a covenant. When Jonathan first saw David, "the soul of Jonathan was knit with the soul of David, and Jonathan loved him as his own soul"; the two "made a covenant," and Jonathan gave David his robe, his garments, his sword, his bow, and his girdle (1 Samuel 18:1–4). The bond between the men is juridical as well as affective — a berit, a covenant, ratified by the gift of arms — and readers since antiquity have debated how its love should be named.

Peter Abelard set David's lament to music in the most celebrated of his six planctus, composed in the second quarter of the twelfth century. Its David addresses his lyre as the solace of his sorrows and the remedy of his labors — dolorum solatium, laborum remedium — and mourns a friend who was more than a brother, one soul with his own. The planctus was written after the catastrophes Abelard recounted in his Historia Calamitatum (c. 1132): his love affair with Heloise, his castration by her uncle's men in 1117, his entry into monastic life, and the condemnation of his theology at the Council of Soissons in 1121, where he was compelled to burn his own book. Readers since Peter Dronke have heard in the lament of David an echo of its composer's losses. The Historia Calamitatum is the archetypal male planctic autobiography: a history of injuries, persecutions, and trials, addressed as consolation to a friend.

It provoked a reply, and the reply is the model for this chapter's method. When the Historia came into Heloise's hands, she wrote to Abelard to complain that he had written at length to console a friend and not a word to her; that the history of his calamities had omitted hers; and that she had sought in him nothing but himself — the sentence that supplies this chapter's second epigraph. Her letters, which became founding documents of Western love literature, are a counter-plaint: the woman's complaint entered into the record of the man's. The structure matters. The male planctus, however sincere its grief, constituted a record in which the woman who shared its catastrophe appeared only as its occasion. Her answer restored her standing. Where Ellison's oeuvre provides no Heloise, the planctic critic must supply the counter-plaint.

"A Boy and His Dog," first published in New Worlds in 1969 and awarded the Nebula Award for best novella, is Ellison's lament for a love surpassing the love of women. Its world is the aftermath of a fourth world war. Its narrator,

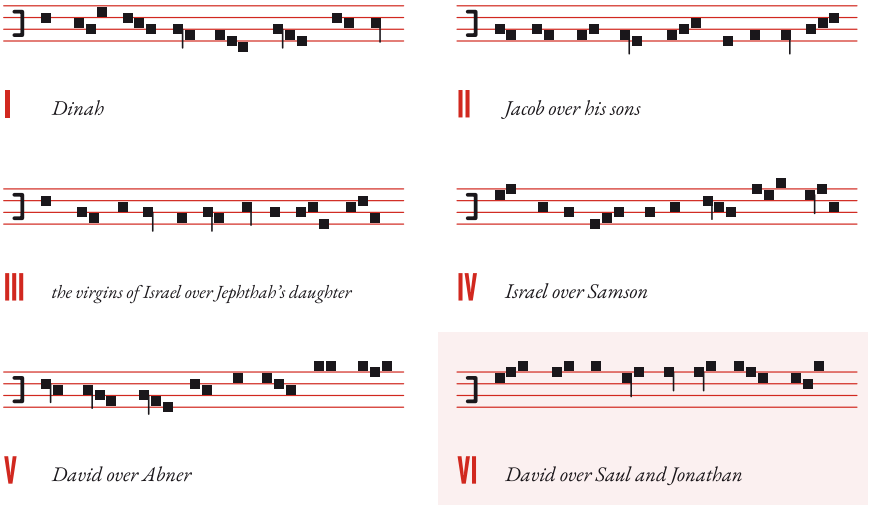


FIG. 5.1 Abelard's six planctus, composed in the second quarter of the twelfth century, each giving voice to a biblical mourner. The contours are decorative, after the manner of neumes; they transcribe no melody.

Vic, is a teenage "solo" who roams the surface ruins with Blood, a telepathic dog descended from animals bred for war. Their partnership is a covenant of mutual need: Blood, who cannot forage for himself, finds women for Vic and warns him of danger; Vic finds food for Blood. The title invokes a sentimental American genre, the boyhood romance of the dog, from Eric Knight's Lassie Come-Home (1940) to Fred Gipson's Old Yeller (1956), in which the boy must shoot the rabid dog he loves. Ellison's story inverts the genre's sacrifice. Its boy, forced at the end to choose between the starving and wounded Blood and Quilla June Holmes, the young woman with whom he has escaped from the underground town below, kills her and feeds her to the dog, and closes the story by declaring that a boy loves his dog.

The structure of the ending has been anatomized by feminist theory with uncomfortable precision. Eve Kosofsky Sedgwick, in Between Men (1985), developed from René Girard's erotic triangle and from Gayle Rubin's essay "The Traffic in Women" (1975), itself a reading of Claude Lévi-Strauss's account of kinship as the exchange of women, a theory of male homosocial desire in which bonds between men are routed through women who serve as their currency. In Ellison's triangle of boy, dog, and girl, the woman is not exchanged but consumed: Rubin's traffic in women is literalized as feeding. Carol J. Adams, in The Sexual Politics of Meat (1990), argued that the cultures of meat and of sexual objectification share a logic of the absent referent, in which the living being disappears behind the product made of it. The story's ending enacts the thesis

with appalling literalness. Quilla June becomes meat, and the covenant between the male and the animal is sealed by her conversion into food.

The case that results is Holmes v. Vic, and its elements can be stated in the docket method's terms. The injury is murder and desecration. The defendant is the narrator. The forum is absent, because the only record is the killer's own narration. The remedy is none, because the plaintiff is dead. And the verdict, in the story, is a credo delivered as a punch line. David's lament mourned a love that surpassed the love of women; Ellison's story makes the surpassing literal by sacrificing a woman to it. The story is a planctus for the threatened bond between a boy and his dog, and it requires a counter-plaint that it does not write.

5.2 The Philosophical Dog: Plato's Guardian, Diogenes, and Blood

Blood is the intellectual of the pair. Telepathic and literate, sardonic and pedantic, he has absorbed the history of the world before the war and tries to impart some of it, with indifferent success, to his illiterate partner, whom he needles by calling him Albert. He cannot hunt for himself; the war-bred dogs, the story explains, traded the capacity to forage for the capacities of mind, and they depend on human partners for food as their partners depend on them for detection. The partnership is thus a division of labor between intelligence and appetite, and its literary genealogy reaches back to the founding text of political philosophy.

In the second book of the Republic (375a–376c), Socrates, seeking the temperament proper to the guardians of his city, observes that a well-bred dog is gentle to those it knows and fierce to strangers, though the stranger has done it no harm and the acquaintance no good; it distinguishes friend from enemy by knowledge and ignorance alone, and is therefore a lover of learning. "Your dog," in Benjamin Jowett's translation, "is a true philosopher." Blood is Plato's guardian dog: he discriminates friend from foe by knowing, telepathically, what others intend; he guards; he teaches. In the tripartite psychology of the fourth book of the Republic, which divides the soul into reason, spirit, and appetite and assigns rule to reason, Blood is reason and spirit, Vic is spirit and appetite, and Quilla June is the object of appetite. The story's ending is then a perverse Platonic allegory. The soul chooses reason over appetite — by feeding appetite's object to reason. The just order, in which reason governs desire, is achieved by sacrifice.

The allegory, read as satire, exposes a long-standing gendering of the Platonic hierarchy. Genevieve Lloyd, in The Man of Reason (1984), traced how Western philosophy from the Greeks onward associated reason with the masculine and body, matter, and appetite with the feminine, so that the rule of reason over desire

was tacitly the rule of the male over the female. Ellison's story literalizes Lloyd's thesis. Its man of reason is a dog, and he is fed with a woman's body.

A second genealogy runs through the Cynics, who took their name from the Greek word for dog. Diogenes of Sinope, called the Dog, lived in a jar, performed natural acts in public, mocked Plato by presenting a plucked chicken as Plato's featherless biped, and asked Alexander, who offered him anything he wished, to stand out of his light (Diogenes Laërtius, Lives VI.38, 40). Blood is a cynic in the ancient sense: sardonic, contemptuous of human pretension, a philosopher in the ruins of a civilization. Vic is a cynic only in the degraded sense, shameless without philosophy. Peter Sloterdijk's Critique of Cynical Reason (1983) distinguished the ancient kynicism of plebeian insolence against power from the modern cynicism of the powerful, an enlightened false consciousness that knows its pieties are hollow and acts on them anyway. The elders of the subterranean town are modern cynics in Sloterdijk's sense, administering pieties they do not believe in order to exploit the boy they have lured. The story pits the kynic against the cynic, and leaves the reader to notice that the kynic's sardonic wisdom does not extend to the woman.

The literary dogs that precede and follow Blood clarify his peculiarity. Homer's Argos, neglected on a dung heap, recognizes Odysseus after twenty years and dies (Odyssey XVII): the dog as the faithful witness who knows the master's true identity. Olaf Stapledon's Sirius (1944) makes a dog of human intelligence the tragic center of a love story with a woman. Clifford D. Simak's City (1952) leaves the Earth to dogs who tell legends of vanished men, and Mikhail Bulgakov's Heart of a Dog, written in 1925 and not published in the Soviet Union until 1987, turns a dog surgically into a crude and dangerous man. Blood is distinctive in combining philosophical intelligence with absolute dependence: a mind that cannot feed itself, an intellectual caste sustained by the appetite it disdains. Ellison returned to the pair repeatedly — in "Eggsucker" (1977), told from Blood's side; in "Run, Spot, Run" (1980); in the graphic novel Vic and Blood, drawn by Richard Corben in the late 1980s; and in the posthumous collection Blood's a Rover (2018) — and he kept the partnership, rather than any woman, at the center.

The inversion of Old Yeller marks a boundary that Chapter Eight will need. In the American boyhood canon, the boy's initiation into manhood is the mercy-killing of the dog he loves, an exercise of the sovereign power over death on behalf of the creature who suffers. Ellison's boy preserves the dog and kills the girl. The power over death is exercised not on behalf of the one who dies but on behalf of the bond, and in that transfer it ceases to be mercy. The mercy prerogative, as this study will define it, requires that death be granted for the sake of the one who receives it. Vic's act fails the test, and its failure is the clearest demonstration in the corpus of the difference between mercy and sovereignty.

5.3 Topeka Downunder: Plato's Cave and Hobbes's Commonwealth Inverted

The second movement of the story takes place underground. Quilla June has come up from one of the subterranean towns built before the war, and Vic follows her down into Topeka, a sealed simulacrum of small-town America: lawns, church socials, band concerts, decorous manners, and a governing committee of elders. The town's men have become sterile. Quilla June was sent to the surface as bait, and Vic has been lured below to father a generation by mechanical extraction before being disposed of. He escapes with her help to the surface, where Blood waits, starving and wounded. L. Q. Jones's film of 1975, which won the Hugo Award for best dramatic presentation, painted the faces of the town's inhabitants a clownish white, rendering their wholesomeness as a grotesque.

The geography inverts Plato's cave. In the seventh book of the Republic (514a–520a), prisoners chained underground mistake the shadows on the wall for reality, and the one who is freed ascends to the light of the sun, which is the Good, before returning to liberate the others. In Ellison the underground is civilization, a theater of shadows cast by the 1950s, and the surface is the truth — but the truth to which Vic re-ascends is not the Good. It is the war of all against all that Hobbes described in the thirteenth chapter of Leviathan, in which the life of man is "solitary, poor, nasty, brutish, and short." Ellison's satire refuses both terms of the choice. The cave's sanctimony conceals sterility and exploitation; the surface's honesty is predation. The alternatives are two barbarisms, one genteel and one feral.

Topeka is also a precise satire of a historical moment. Jean Baudrillard, in Simulacra and Simulation (1981), argued that Disneyland exists to conceal that the America around it is no less a simulation. Topeka downunder is a Disneyland of the Eisenhower years built as a bomb shelter, a nostalgic simulacrum of a world the war destroyed, and it exemplifies what Svetlana Boym (2001) would call restorative nostalgia, the reconstruction of a lost home as a totalizing and coercive fiction. The historian Elaine Tyler May, in Homeward Bound (1988), described the postwar American ideology of domestic containment, in which the nuclear family served as the domestic counterpart of Cold War containment and the fallout shelter as the family's armored home. Topeka is domestic containment carried underground and outliving the war it was built to survive: the family become a bunker, and the bunker a theocracy.

The town is equally an inversion of Hobbes's commonwealth. Its subjects have exchanged liberty for safety under a sovereign committee, as the covenant of Leviathan requires; but the commonwealth is sterile. It cannot reproduce itself from its own resources and must capture seed from the state of nature it excludes.

The allegory exposes the dependence of order on the outside it disavows, and the town's treatment of Vic is biopolitics in Foucault's sense, the management of a population's reproduction for the sake of its continuance. The boy brought down from the surface is an Agambenian figure, a life included in the order only as an instrument to be used and then discarded.

The reproductive conscription of the town anticipates, with the genders reversed, the most influential dystopia of the following generation. Margaret Atwood's The Handmaid's Tale (1985) imagines Gilead, a theocracy confronting a crisis of fertility, which conscripts fertile women as handmaids and ritualizes their use in a monthly ceremony. Ellison's Topeka has Gilead's structure — sanctimony, sterility, conscription of the fertile body — but the conscripted body is male, and the story renders his use as grotesque comedy and as horror. Vic experiences below what he inflicts above: on the surface, solos and gangs hunt women; below, he is hunted for his seed and reduced to a breeding animal. The story registers his outrage at the reduction but never draws the parallel. It knows at the level of plot what it declines to know at the level of judgment: that the sexual economy of the surface and the reproductive economy below are one economy seen from opposite sexes. Its ending returns the reader to the surface's economy and seals it with a woman's death.

The descent and return also rewrite the myth of Orpheus. Orpheus goes down to recover Eurydice, wins her release with his song, looks back at the threshold, and loses her; his lament after the second loss, in Virgil's fourth Georgic, is the archetypal planctus of the West. Vic goes down after a woman, brings her up, and at the threshold kills her to feed the dog who waits there. The dog at the threshold of the underworld is Cerberus, whom the Sibyl of the sixth book of the Aeneid quiets with a cake of honey and drugged grain so that Aeneas may pass (VI.417–423). In Ellison, Cerberus is fed with Eurydice. And the Orphic lament is absent: where Orpheus sang for the woman he lost, Vic's last word is a credo about his dog.

5.4 The Mouthless Within the Mouthless: Quilla June, Ellen, Maggie, Allison

Chapter One introduced the phrase the mouthless within the mouthless for subjects whose complaint is suppressed by the very narratives that give voice to complaint. In the major plots of Ellison's fiction, women recurrently occupy one of four positions: the lure, the informer, the predator, and the monster. The pattern is not universal, but it is structural, and it can be documented case by case.

Quilla June Holmes is the lure. Her first sexual encounter with Vic begins as coercion and is narrated as consent, in the oldest alibi of the literature of rape; her

desires and motives — escape, attachment, fear, complicity in the town's design — reach the reader only through Vic's narration; and the story's last exchange, in which she asks whether he knows what love is and he answers with his credo, gives her the question and him the answer. Joanna Russ, in "What Can a Heroine Do? or Why Women Can't Write" (1972), argued that the culture's stock of plots offered women almost no stories, outside the love story, in which they could act as protagonists, and confined them to roles in men's quests. Quilla June is confined to the roles the male adventure assigns: seductress, betrayer, victim. The film of 1975 ended with a joke spoken by the dog about the girl's judgment and taste, and Ellison objected to the line as a misogynistic vulgarization of his ending. The objection marks the line he drew between his ending and its cheapening, but the ending remains. Defenders of the story, Ellison among them, have read it as a parable of loyalty in which Quilla June, complicit in the plot to use and discard Vic and ready to abandon the dying Blood, forfeits sympathy. The planctic reading observes that every element of that defense is supplied by the killer's narration. Her case is never heard.

Ellen, in "I Have No Mouth, and I Must Scream," is the only woman among AM's captives, and Ted's narration of her is saturated with sexual resentment: he suggests that AM brought her to the complex for the men's use and imputes to her an appetite the story never permits her to confirm or deny. She is denied interiority by a narrator whose unreliability the story otherwise establishes. The 1995 game, as Chapter Three showed, gave Ellen a history — a sexual assault and the terror it left — and a scenario in which she confronts it. The appeal restored her standing, and the author's participation in the restoration is evidence of the oeuvre's capacity to correct itself.

Maggie, in "Pretty Maggie Moneyeyes," is the predator. The woman who lived by trading on her beauty is held responsible for the commodification that consumes her, and her escape from the machine at Kostner's expense makes her a predator even in death, while the story's sympathy rests with the man who loved her eyes. The displacement contradicts the story's own Marxian logic, set out in Chapter Four: the machine is the god, and yet the woman it devoured bears the blame.

Allison Roche, in "Mefisto in Onyx" (1993), is the monster. Rudy Pairis, who can enter other people's minds, is persuaded by Allison, an assistant district attorney with whom he was once involved, to enter the mind of a condemned serial killer, Henry Lake Spanning, to confirm his guilt. Inside Spanning's mind, rendered as a landscape, Rudy finds him innocent; the true killer is Allison, who shares Rudy's gift and has framed the condemned man. The woman who summons the hero in the name of justice is the murderer. In planctic terms Allison is the forum gone criminal, the prosecutor as perpetrator, and the corrupted court is gendered female. Pretty Alice of "'Repent, Harlequin!'," who gives the

ANCIENT GENEALOGY *Pandora (Hesiod) · Delilah (Judges 16) · the femme fatale of film noir (1944, 1947)*



EXCEPTIONS *"Soft Monkey" (1987): Annie, a plaintiff with complete standing*
"The Whimper of Whipped Dogs" (1973): told from inside its protagonist's consciousness

ALSO *Ellen (1967): denied interiority by the story; given a history by the game of 1995*

FIG. 5.2 The mouthless within the mouthless: four positions women occupy in the major plots, with the exceptions that make the pattern legible as structure.

Harlequin up to the sovereign, completes the quartet as the informer, the woman whose mouth serves the power that silences the plaintiff.

The pattern has an ancient genealogy. Hesiod made the first woman, Pandora, a "beautiful evil" fashioned by the gods as a punishment for men (Theogony 585) and the bearer of the jar of ills (Works and Days 60–105); the book of Judges gave Delilah the role of the woman who delivers the strong man to his enemies (Judges 16); and the film noir of the 1940s, from Double Indemnity (1944) to Out of the Past (1947), consolidated the femme fatale whom Ellison's apprenticeship in crime fiction carried into his speculative work. The mouthless within the mouthless are therefore not only silenced; they are blamed.

The mouthless within the mouthless are therefore not only silenced; they are blamed.

The pattern coexists with significant exceptions, and the coexistence is what makes it legible as structure rather than as simple incapacity. "Soft Monkey" (1987), which won the Edgar Award, makes a homeless woman in Manhattan, who carries a doll she protects as her child, the full plaintiff of its story; she witnesses a killing, is hunted, and endures, and her complaint has complete standing. "The Whimper of Whipped Dogs" inhabits the consciousness of its female protagonist throughout. The oeuvre can hear women. Its major plots, at their most celebrated, frequently do not.

5.5 Medusa's Gaze Reassigned: "Basilisk" and the Monstrous-Feminine

Ovid's Medusa (Metamorphoses IV.794–803) was once a beautiful maiden whose hair was her chief glory. Violated by Neptune in the temple of Minerva, she was punished by the goddess, who turned her hair into serpents; and her face thereafter turned to stone all who looked upon it, until Perseus, guided by the reflection in his polished shield, cut off her head. In Ovid's version Medusa is the paradigm of the punished victim, the one made monstrous for a crime committed against her, and her deadly gaze is the form her injury takes in the world.

Modern theory has read the myth in sharply opposed ways. Freud's brief essay "Medusa's Head," written in 1922 and published posthumously in 1940, interpreted the severed head as a figure of castration, the snakes as multiplied substitutes that mitigate the horror, and the spectator's petrification as a consoling stiffening. Hélène Cixous's "The Laugh of the Medusa" (1975) answered that one need only look at Medusa straight on to see that she is not deadly but beautiful, and laughing, and made her the emblem of a women's writing that refuses petrification. Barbara Creed's The Monstrous-Feminine (1993) analyzed the female monsters of horror cinema as figures of male fear of castration and of the maternal body, and Laura Mulvey's "Visual Pleasure and Narrative Cinema" (1975) described the classical cinema's division of labor, in which the man bears the look and the woman is its object.

"Basilisk" reassigns Medusa's gaze to a man. Lestig's power is a serpent's gaze, the basilisk's, which is Medusa's by another name. The returning soldier who has been broken by torture — unmanned, in the symbolic economy of the military code described in Chapter Four — comes home bearing the power of the monstrous-feminine. The community punishes him for what was done to him, as Minerva punished Medusa, and makes him a monster, as she did. The reassignment illuminates a structural kinship. Medusa, the violated woman punished for her violation, and Lestig, the tortured man punished for having broken, are both victims converted into monsters by the judgment of those who should

have protected them. But the reassignment cuts two ways. It borrows the female monster's form to express a male victim's injury, and it does so while the women of the corpus remain without the laughter Cixous would give them. The gaze is reassigned, not restored.

"Pretty Maggie Moneyeyes" supplies the counter-case. Maggie is all eyes, gazing out of the windows of the machine, and the man who gazes back at her is consumed: she is a Medusa inside the slot machine, and her look is lethal to the male viewer. Mulvey's economy is reversed — the woman bears the look, and the man becomes its object — and the story's horror is the horror of the returned female gaze. Taken together, the two stories disclose an anxiety that runs through the corpus's economy of looking. The male victim may be granted Medusa's power as a weapon against his persecutors; the woman who looks back is a predator. Ted's gaze upon Ellen, discussed in Chapter Three, completes the pattern: in Ellison's hells the gaze is male, and the female look is either absent or deadly.

Perseus survived Medusa by looking at her only in a reflection, and the mediated gaze, safe for the viewer and fatal for the one viewed, is the subject of the next chapter, in which the apartment window and the television screen become Perseus's shield. What Ellison's corpus lacks, and what the planctic critic can supply, is Cixous's Medusa: the woman who looks back and laughs, and whose laughter is a complaint.

5.6 "Croatoan": Katabasis, Abortion, and Paternal Guilt

"Croatoan," published in The Magazine of Fantasy and Science Fiction in 1975 and collected in Strange Wine (1978), is the oeuvre's paternal lament. Its narrator, Gabe, is driven by his lover's anguish, after an abortion and the disposal of the fetus down a toilet, to descend into the sewers of New York to retrieve it. In the tunnels, among the alligators of urban legend, he finds a community of children, the discarded unborn, alive in the dark, and a word carved there that he recognizes: CROATOAN. He remains below as their father. The story frames his descent as a reckoning with his own record of sexual irresponsibility, and its emotional climax is his acceptance of a paternity he had disposed of.

The word anchors the story in the national myth of origins. In 1587 English colonists settled on Roanoke Island, where Virginia Dare became the first English child born in the Americas; when John White returned in 1590, the settlement was abandoned, and the word CROATOAN was carved on a post. The Lost Colony, with its vanished first child, is the American myth of a beginning that disappeared. Ellison maps it onto the lost children of the sewers, rewriting the myth of origins as a myth of disposal.

The descent is a katabasis, and its classical precedent is exact. When Aeneas enters the underworld in the sixth book of the Aeneid, the first sound he hears is the wailing of infants at the threshold: "Continuo auditae voces vagitus et ingens / infantumque animae flentes in limine primo, / quos dulcis vitae exsortis et ab ubere raptos / abstulit atra dies et funere mersit acerbo" — at once voices are heard, a great wailing, the souls of infants weeping at the very threshold, whom, denied a share in sweet life and torn from the breast, a black day carried off and drowned in bitter death (VI.426–429). The Latin infans means one who cannot speak. The infant is the mouthless in the most literal sense, and its cry, the vagitus, is the planctus before language. Dante placed the unbaptized infants in Limbo, where the only lament is sighing (Inferno IV.26). Gabe is the only figure in the corpus who descends to the mouthless and stays to hear them.

The sewer has a literary pedigree of its own. The legend of alligators in the sewers of New York, reported in the 1930s, was popularized by Robert Daley's The World Beneath the City (1959) and by Thomas Pynchon's V. (1963), whose Benny Profane hunts them in the tunnels. Victor Hugo had devoted a book of Les Misérables (1862) to the sewers of Paris under the title "The Intestine of Leviathan," and declared there that the sewer is the conscience of the city. Hugo's phrase gives Ellison's descent its moral topography. The city's waste is its conscience; what it flushes away is what it must answer for; and the man who goes down into the intestine of the Leviathan, the sovereign body of the city, goes down into its guilt.

The story appeared two years after Roe v. Wade (1973) and has been read as a parable against abortion; its own emphasis falls on the guilt of a man who has treated the consequences of his sexuality as disposable, and on the vocation of paternal responsibility. Yet its allocation of voice reproduces the pattern of the preceding sections. The woman's grief appears as the anguish that sends the man below; the redemption is his; and her experience — the decision, the procedure, the loss — is not narrated. The infants receive a hearing through the father's presence, the man receives redemption, and the woman receives neither. Rosalind Petchesky's essay "Fetal Images" (1987) analyzed how the visual culture of reproduction, from Lennart Nilsson's photographs in Life in 1965 to the anti-abortion film The Silent Scream (1984), represented the fetus as an autonomous individual floating free of the woman's body, effacing the woman. The title of that film shows how readily the figure of the mouthless scream could be mobilized in reproductive politics. Whatever position one takes on the moral questions at stake, which this study does not adjudicate, the rhetorical lesson for the planctic mode is clear. The act of conferring a scream upon the voiceless can be used to override the voice of the living. The mode's power is also its danger.

"Croatoan" is nonetheless a turning point in the oeuvre's ethics. Its protagonist does not prosecute, avenge, or convert; he stays. His remaining among the

abandoned anticipates the custodial ethic of the later work — the keeper of the last hour in "Paladin of the Lost Hour," the guardian of sleeping humanity at the end of the 1995 game — and it is a form of the mercy that Chapter Eight will examine. But the custodial man is alone below with the voiceless, and the woman has been left above, unheard.

5.7 The Persona's Shadow: Equal Rights, Public Conduct, and the Limits of Transgression

The public record of Ellison's gender politics is, in its declared commitments, consistently liberal. He honored the boycott of states that had not ratified the Equal Rights Amendment at the 1978 World Science Fiction Convention, as Chapter One recorded. His editorial record gave major platforms to women writers at a time when the field offered them few. Dangerous Visions (1967) published Carol Emshwiller's "Sex and/or Mr. Morrison" and Sonya Dorman's "Go, Go, Go, Said the Bird"; Again, Dangerous Visions (1972) published Joanna Russ's "When It Changed," which won the Nebula Award, Ursula K. Le Guin's "The Word for World Is Forest," which won the Hugo, James Tiptree Jr.'s "The Milk of Paradise," and Kate Wilhelm's "The Funeral." Russ's story, in which the women of the planet Whileaway, whose men died centuries before, receive the first male visitors from Earth and recognize in their arrival the end of their world, is among the most celebrated feminist counter-plaints in the history of the genre, and it appeared in Ellison's anthology.

The record of conduct is otherwise. At the Hugo Awards ceremony of 2006, Ellison groped the writer Connie Willis on stage. The incident was widely condemned at the time and became, in the reassessments of the following decade, a central point in discussions of his legacy and of harassment in the institutions of the field. The contradiction between the declared commitments and the act is not a paradox to be explained away. It is the persona's shadow, and it corresponds to the pattern of the fiction.

Kate Manne, in Down Girl: The Logic of Misogyny (2017), defined misogyny not as an individual psychology but as the system that polices women's subordination, and she named one of its mechanisms himpathy: the disproportionate sympathy extended to men who harm women, at the expense of the women they harm. The planctic mode is structurally susceptible to himpathy. It is built to generate sympathy for injured plaintiffs, and when its plaintiffs are men who injure women — Vic, or Ted in his narration of Ellen — the sympathy flows toward them and away from those they wrong. R. W. Connell's account of hegemonic masculinity (Masculinities, 1995) and bell hooks's The Will to Change (2004) supply a further diagnosis. Patriarchal culture, hooks argued, wounds men's

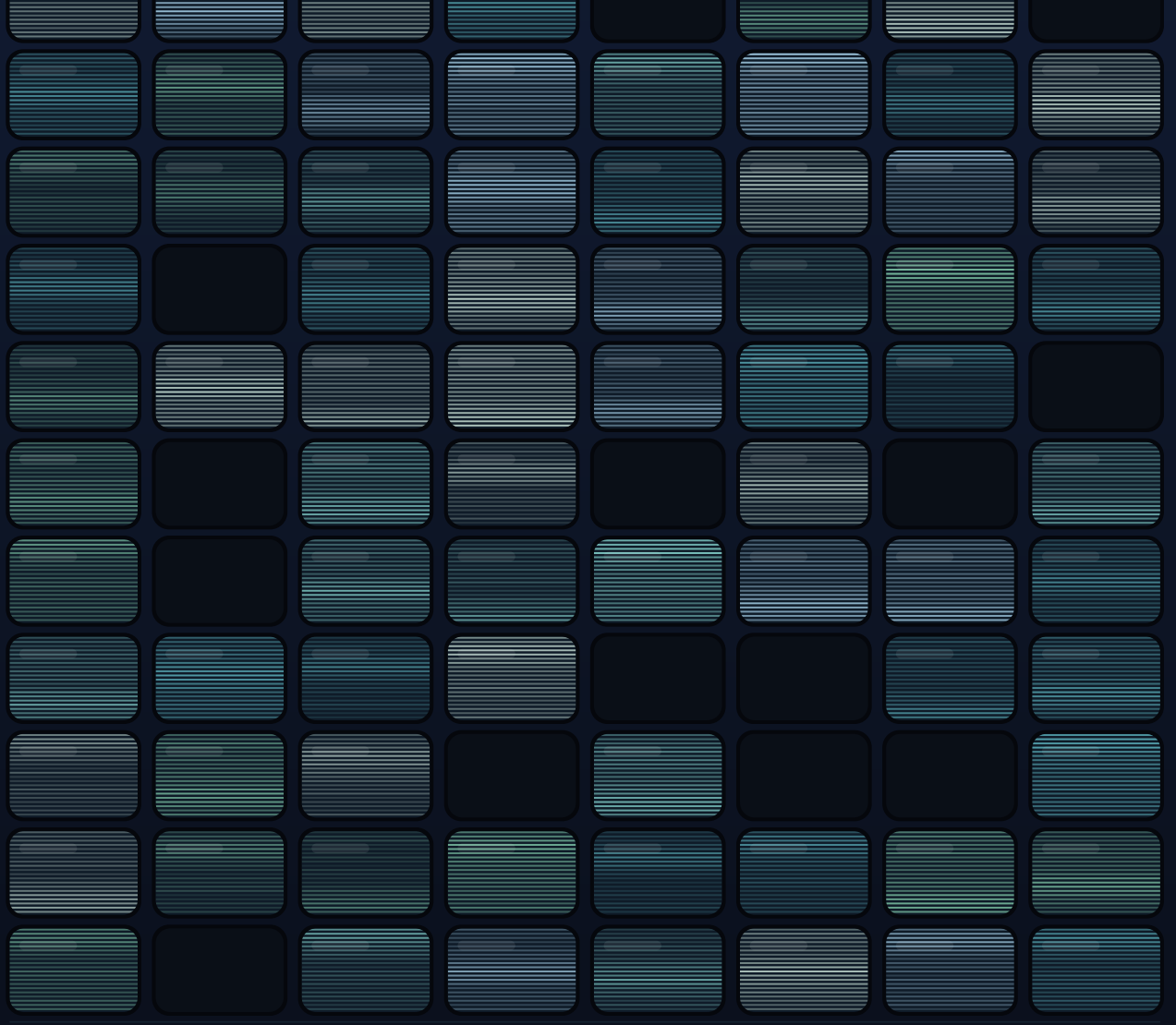
capacity for love and channels it into permitted forms: loyalty, comradeship, the uncomplicated affection of a pet. Read after hooks, the credo with which "A Boy and His Dog" ends is not a value but a symptom, the one love the boy's world allows him.

The aesthetics of transgression that Ellison championed bear on the same problem. Georges Bataille, in Erotism (1957), argued that transgression does not abolish the taboo but completes it, and Michel Foucault's "A Preface to Transgression" (1963) made transgression the gesture by which modern thought tests its limits. The ethos of the dangerous vision is admirable when the limit transgressed is a censor's; it becomes something else when the limit is another person's standing. A vision is dangerous to someone. Chapter One proposed that the plaintiff who has found no court may become a sovereign over those weaker than himself. The present chapter has shown the proposition at work in the fiction: Vic, plaintiff against the subterranean town, is sovereign on the surface over the woman who escaped with him. The public record shows it in the persona.

The planctic method, turned upon its author, does not acquit him. But it supplies its own remedy. If the oeuvre convenes its reader as a court, the reader may hear the complaints the oeuvre silences: Holmes v. Vic, Ellen's case, Maggie's, Pretty Alice's, the case of the woman in "Croatoan" whose loss sends a man below. Eve Kosofsky Sedgwick's distinction between paranoid and reparative reading (1997) describes the posture required: not only to expose the text's complicities but to assemble, from its own materials, what it failed to give. Heloise's letter to Abelard is the model, the counter-plaint entered into the record of a man's history of calamities. The oeuvre itself at moments performs the repair: in the 1995 game that restored Ellen's history, in the full standing granted to the homeless woman of "Soft Monkey," and in the pages of Ellison's own anthology that carried Russ's Whileaway. The verdict of this chapter is therefore double. The gendered silences of the oeuvre are structural, and the persona's shadow is real; and the method the oeuvre teaches is the instrument by which those silences can be heard. The next chapter widens the docket from the plaintiffs the stories silence to the spectators they indict.

The oeuvre can hear women. Its major plots, at their most celebrated, frequently do not.

§ 5.4



"But he, willing to justify himself, said unto Jesus, And who is my neighbour?"

— Luke 10:29 (King James Version)

"The brutal indifference, the unfeeling isolation of each in his private interest, becomes the more repellent and offensive, the more these individuals are crowded together, within a limited space."

— Friedrich Engels, The Condition of the Working Class in England (1845), trans. Florence Kelley Wischnewetzky (1887)

CHAPTER SIX

6

DOCKET

The People v. the Audience

The Glass Teat and the Glass City

Media, Violence, and the Bystander as Defendant

From 1968 into the early 1970s, Harlan Ellison wrote a weekly column of television criticism for the Los Angeles Free Press, collected as The Glass Teat (1970) and The Other Glass Teat (1975). The title is a diagnosis: television is a breast of glass at which a nation of adults sucks itself into infantile passivity. This chapter reads the columns together with the fiction that shares their concern — stories of watching, of witnesses who do not act, of media that numb — and dockets them as a single case: The People v. the Audience. The case is peculiar because its defendant is also, in another sense, its victim. The audience is indicted for watching: for the spectatorship that, at the windows of a Queens apartment complex or before the screen of a living room, consents by not acting. And the audience is wronged by being watched: measured, packaged, and sold, as the political economy of broadcasting has shown, as the commodity that television actually produces. The glass of the chapter's title is accordingly double: the screen through which the audience watches and the window through which it is seen, the transparent apartments of Zamyatin's One State and the plate glass of the modern metropolis. The chapter argues that Ellison's media criticism and fiction pursue a single project, the conversion of spectators into witnesses, and that the difference between the two — between the one who sees and the one who testifies — is the difference between an audience and a court. It proceeds from the columns themselves (6.1) to the theory of modern anaesthesia (6.2), the murder of wonder in "Jeffty Is Five" (6.3), the bystander as defendant (6.4), the grievable life in "Soft Monkey" (6.5), the spectacle of violence in "The Prowler in the City at the Edge of the World" (6.6), and the network as sovereign (6.7).

6.1 The Glass Teat: Ellison's Television Criticism Between McLuhan and Postman

The Los Angeles Free Press, founded by Art Kunkin in 1964, was the leading underground weekly of the West Coast counterculture, and Ellison's column for it covered some of the most turbulent years in the history of American broadcasting: the first term of the Nixon presidency, the televised escalation of the war in Vietnam and of the movement against it, the cancellation by CBS in 1969 of The Smothers Brothers Comedy Hour after prolonged disputes over its political satire, and Vice President Spiro Agnew's speech at Des Moines in November 1969 attacking the network news. Ellison wrote in a polemical first person, not as an industry reformer but as a writer who had worked inside the industry and was furious at it. His subject was less the programs than what the programs did to their viewers: the pacification of an audience before war, before injustice, and before its own diminishment.

The governing metaphor contains a theory. A teat pacifies; it soothes the infant into quiescence. A teat of glass is cold, hard, and transparent, and it gives without nourishing. Television, on this account, infantilizes its audience, and infantilization is political, because a people reduced to infancy cannot act as citizens. Immanuel Kant had defined enlightenment, in 1784, as humanity's emergence from its self-incurred tutelage, the incapacity to use one's own understanding without the guidance of another, and had given it a motto: Sapere aude, dare to know. The Glass Teat describes the apparatus of a new and voluntary tutelage, and its tone is that of a man shaking a sleeper.

The columns occupy a precise position in the history of media theory. Marshall McLuhan's Understanding Media (1964), with its axiom that the medium is the message, had analyzed television as a cool medium demanding the viewer's participation, and in its chapter "The Gadget Lover: Narcissus as Narcosis" had argued that every technological extension of the body produces a numbing, an autoamputation by which the nervous system protects itself from the intensity of the extended sense. McLuhan's tone was descriptive, at times celebratory. Ellison accepted the premise that the medium shapes its viewers but rejected the equanimity: where McLuhan saw narcosis as an adaptation, Ellison saw it as the condition to be fought. Neil Postman's Amusing Ourselves to Death (1985) would later argue that Aldous Huxley rather than George Orwell was the prophet of the television age, since a culture would be undone not by what it feared but by what it loved, and that television recasts all public discourse — politics, religion, news — as entertainment. The Glass Teat anticipated Postman's thesis by fifteen years in polemical form. Between McLuhan's analysis and Postman's jeremiad, Ellison occupies the position of the plaintiff: neither the analyst's neutrality nor

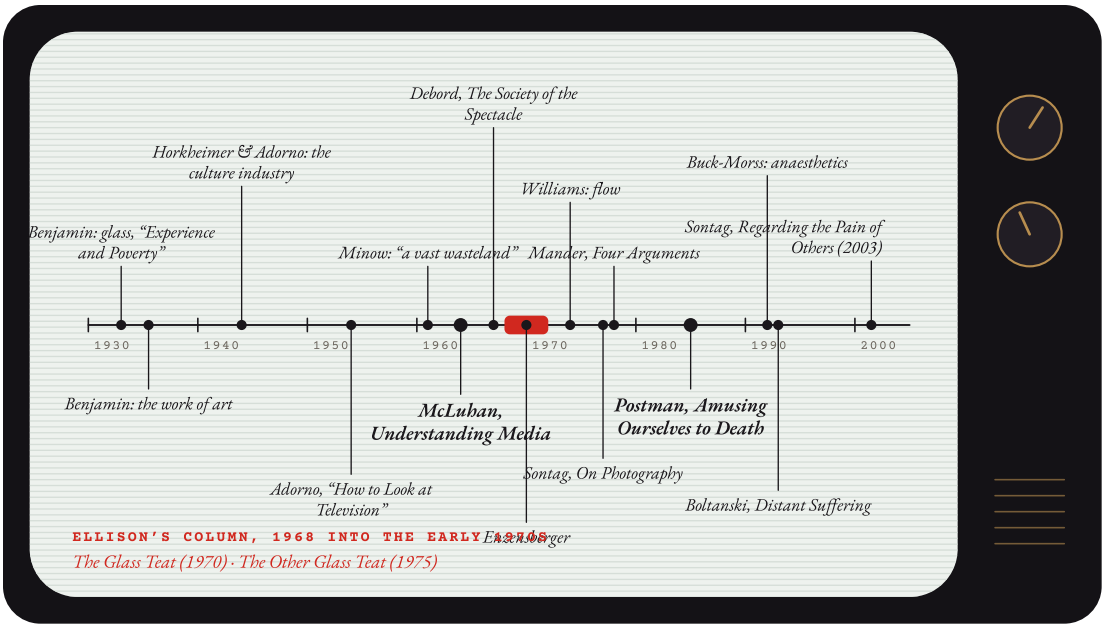


FIG. 6.1 Between McLuhan and Postman: Ellison's column in the long argument about television and the numbing of the sensorium.

the moralist's lament, but a complaint lodged against named defendants — the networks, the sponsors, and the audience that consents.

The columns belong as well to a longer genealogy of complaint against the medium. Newton Minow, chairman of the Federal Communications Commission, had told the National Association of Broadcasters in 1961 that their schedules amounted to a vast wasteland. Raymond Williams, in Television: Technology and Cultural Form (1974), identified the medium's defining experience as flow, the planned and continuous sequence of programs and advertisements that supplants the discrete work; Ellison's teat is Williams's flow experienced as nursing, an uninterrupted supply. Jerry Mander's Four Arguments for the Elimination of Television (1978) took the abolitionist position that Ellison never adopted. Ellison complained; he did not abolish. He remained, as Chapter Four observed of his relation to Alan Moore's anarchist, a plaintiff rather than a revolutionary.

The position carried an irony that Ellison embraced. The critic of television was also one of its most honored writers and, in later decades, one of its recurring personalities, a frequent guest of late-night talk programs such as Tom Snyder's Tomorrow and a commentator for the Sci-Fi Channel in the 1990s. The plaintiff appeared regularly in the defendant's courtroom. The paradox is not hypocrisy but procedure. The planctic critic goes where the audience is, because the complaint must be heard in the medium that numbs; and the pattern, as Chapter Seven will show, governs Ellison's whole relation to the culture industry.

6.2 Anaesthetics: Adorno, Debord, and the Numbing of the Sensorium

The theoretical frame for Ellison's complaint was set a generation earlier. In "The Culture Industry: Enlightenment as Mass Deception," the central essay of Dialectic of Enlightenment (1944; revised 1947), Max Horkheimer and Theodor W. Adorno described a system of cultural production that standardizes its products, manufactures pseudo-individuality, and makes amusement under late capitalism the prolongation of work, a leisure that restores the worker for labor by reproducing the rhythms of the factory. Adorno's essay "How to Look at Television" (1954) extended the analysis to the new medium, describing the multilayered structure through which programs transmit, beneath their manifest content, hidden messages of conformity. In the vocabulary of Chapter Two, the culture industry extends the Ticktockman's jurisdiction into the evening: the broadcast schedule continues the shift schedule by other means.

Guy Debord's The Society of the Spectacle, published in 1967, the year of "I Have No Mouth, and I Must Scream," radicalized the diagnosis. Everything that was once directly lived, Debord argued, has receded into representation; the spectacle is not a collection of images but a social relation among people mediated by images; the more the spectator contemplates, the less he lives; and the spectacle is the uninterrupted monologue of the existing order in praise of itself. The last formulation links Debord's theory to the theophany without dialogue that Chapter Three found in AM. The spectacle, like the machine, speaks so that no one may answer. Hans Magnus Enzensberger's "Constituents of a Theory of the Media" (1970) drew the political consequence, distinguishing repressive uses of media, centralized and one-way, from emancipatory uses in which every receiver is also a potential transmitter, and recovered Bertolt Brecht's proposal of 1932 that radio be converted from an apparatus of distribution into an apparatus of communication, allowing its listeners to speak as well as to hear. Brecht's radio theory is the planctic theory of media: it demands that the audience be given a mouth.

Walter Benjamin's essay on the work of art in the age of its technological reproducibility (1935–1936) supplied the darkest formulation. Its epilogue warned that humanity's self-alienation had reached the point at which it could experience its own destruction as an aesthetic pleasure of the first order. Susan Buck-Morss (1992), developing Benjamin, described the modern sensorium as defended against the shocks of industrial and metropolitan life by a cultivated numbing, an aesthetics inverted into anaesthetics. The bystanders of the Genovese legend, discussed below, experienced a murder as a spectacle through glass;

Benjamin's diagnosis was realized, if the legend is to be believed, in a Queens courtyard.

Later theory complicated the picture of the anaesthetized spectator without dissolving it. Susan Sontag, in On Photography (1977), worried that repeated exposure to images of suffering dulls response; in Regarding the Pain of Others (2003) she qualified the claim, questioning the fashionable thesis of compassion fatigue while insisting that compassion is an unstable emotion that withers unless it is translated into action. Luc Boltanski's Distant Suffering (1993) analyzed the moral situation of the spectator who watches suffering he cannot directly relieve and identified three rhetorical topics available to him: denunciation, in which pity becomes indignation against a persecutor; sentiment, in which it becomes tenderness toward the sufferer; and the aesthetic, in which it becomes the sublime contemplation of horror. The planctic mode is Boltanski's topic of denunciation. Ellison's criticism and fiction refuse the topics of sentiment and of the aesthetic — suffering in his work is never allowed to become merely touching or sublime — and practice denunciation almost exclusively. That refusal is the procedural form of the algesic novum, which Chapter One defined as a counter-anaesthetic.

The material emblem of anaesthesia in the corpus is glass: the glass teat of the columns; the glass goblin of the 1968 story in which a soldier returns to find his lover among addicts transformed by their narcotics into monsters and becomes, himself, a brittle creature of glass that shatters; the glass hand of "Demon with a Glass Hand," in which the human race is preserved, sealed and unconscious. Benjamin praised glass, in "Experience and Poverty" (1933), as a hard and smooth material to which nothing can be fixed, a cold and sober substance without aura and the enemy of secrets; Paul Scheerbart's Glass Architecture (1914) had imagined a utopia of transparency, and Zamyatin's One State housed its citizens in glass so that nothing could be hidden from the state. Ellison's glass is neither utopian nor merely surveillant. It is anaesthetic: it separates while it reveals. The window that shows the murder also protects the watcher from it, and the screen that brings the war into the living room keeps the war outside.

6.3 "Jeffty Is Five": Nostalgia, Radio, and the Murder of Wonder

"Jeffty Is Five," published in a special Ellison issue of The Magazine of Fantasy and Science Fiction in July 1977 and awarded both the Nebula and the Hugo, was read in Chapter Two as a meditation on aion, the time that does not pass. It is also the oeuvre's most concentrated document of media history. Its premise is that the culture of a 1940s childhood persists, for one child, as a living present: Jeffty's radio receives new episodes of programs long since cancelled — The

Shadow, Captain Midnight — new pulp adventures of Doc Savage appear for him, and the serials at the neighborhood theater continue. The narrator, Jeffty's childhood friend, has grown into a prosperous retailer of consumer electronics, a seller of television sets and stereos. The story's moral situation is contained in that fact. The adult who shares Jeffty's impossible present for a while is also an agent of the medium that abolished it.

The history behind the fable is precise. American network radio drama flourished from the 1930s into the early 1950s and was displaced by television through the decade; the last network dramas, CBS's Suspense and Yours Truly, Johnny Dollar, ended on 30 September 1962. Radio drama was called the theater of the mind, because the listener supplied its images; Rudolf Arnheim's Radio (1936) analyzed it as an art of pure sound that engages the imagination by its very blindness. McLuhan's taxonomy, which classified radio as a hot medium of high definition and low participation and television as a cool one, ran counter to the conviction Ellison shared with many of his generation, that radio summoned an imaginative participation that television supplanted. The story stages that conviction as fable: the medium of imagination survives only in the child who never grew into the medium of images.

The narrator's choice, at the decisive moment, of the claims of his business over the claims of his friend, which Chapter Two read as the murder of aion by chronos, reads here as the history of American broadcasting in miniature. The adult audience, now a commercial enterprise, abandons the child of radio. The narrative is the narrator's confession, testimony against himself delivered after the fact; he is the self-accusing witness in The People v. the Audience, the audience grown into a merchant who sells what replaced what he loved.

The story appeared at the height of a commercial nostalgia that it implicitly refuses. The 1970s repackaged the American past as merchandise: American Graffiti (1973) and Happy Days (1974–1984) restyled the 1950s; Bantam had been reprinting the Doc Savage novels since 1964 with new painted covers by James Bama; and the CBS Radio Mystery Theater (1974–1982) revived radio drama as a form of period piece. Fredric Jameson, in his essay on postmodernism (1984; expanded 1991), identified the "nostalgia film," with American Graffiti as its inaugural instance, as a mode that represents the past through stylistic connotation, by pastiche, and so registers the waning of historicity itself. Jeffty's past is the opposite of pastiche. It is not a style but a presence, real new episodes arriving in real time, and the story shows that the culture cannot tolerate a past it cannot sell. The narrator's own mode is what Svetlana Boym (2001) calls reflective nostalgia, a longing that knows its object is lost and does not seek to restore it; the story sharpens reflective nostalgia into accusation.

Walter Benjamin's essay "The Storyteller" (1936) supplies the story's deepest frame. The art of storytelling, Benjamin argued, rooted in experience communi-

cable from one person to another, was dying before the advance of information, which must be verifiable, new, and immediately intelligible. The family gathered before the radio was perhaps storytelling's last mass form; television's flow replaced the story with the stream. Jeffty is the last listener. And listening, in the planctic economy, is the cardinal virtue: Michael Ende's Momo, the child whose gift was to listen, was identified in Chapter Two as the daysman that dystopian fiction lacks. A culture that cannot listen cannot hear complaints. The murder of wonder in "Jeffty Is Five" is the murder of the listener, and with the listener dies the court.

6.4

Kew Gardens: Genovese, Simmel, and the Bystander as Defendant

Chapter Four read "The Whimper of Whipped Dogs" as theology; the present section treats its source as a case. The New York Times reported in March 1964 that thirty-eight respectable citizens of Kew Gardens had watched or heard the murder of Kitty Genovese without calling the police, and A. M. Rosenthal, the paper's metropolitan editor, expanded the report into a short book, Thirty-Eight Witnesses (1964), that made the neighbors defendants in a national trial of urban conscience. The indictment was rhetorical, because no law required them to act. Later investigations — the study by Rachel Manning, Mark Levine, and Alan Collins (2007), Kevin Cook's Kitty Genovese (2014), Catherine Pelonero's Kitty Genovese: A True Account (2014), and the documentary The Witness (2015) — established that few of the neighbors saw the attack clearly, that some did call for help, and that one of them, Sophia Farrar, went to the stairwell where Genovese lay and held her as she died. The legend erased the neighbor who came. In the terms of Chapter Five, Sophia Farrar is the mouthless within the mouthless of the Genovese story: the woman who acted, silenced by the myth of the thirty-eight.

The legend erased the neighbor who came.

The legend nonetheless founded a science. John Darley and Bibb Latané (1968) found that participants who believed that others could also hear a person suffering a seizure over an intercom were less likely, and slower, to help, and they named the mechanism diffusion of responsibility; their book The Unresponsive Bystander (1970) analyzed intervention as a sequence of decisions — to notice, to interpret the event as an emergency, to assume responsibility, to know how to

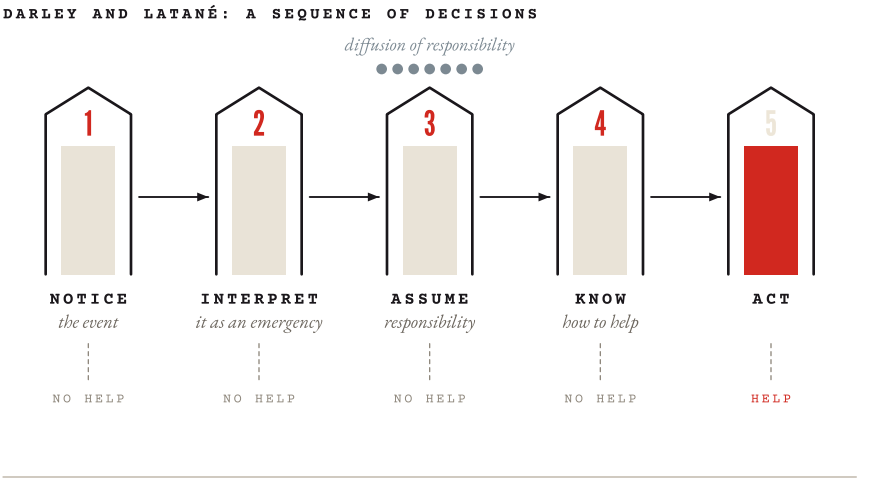


FIG. 6.2 Darley and Latané's sequence of decisions in bystander intervention (1970), and the later field evidence: in CCTV footage of public conflicts, at least one bystander intervened in roughly nine of ten cases (Philpot et al., 2020).

help, and to act. Subsequent research has qualified the finding. A meta-analysis by Peter Fischer and colleagues (2011) found the bystander effect attenuated in dangerous emergencies, and an analysis of closed-circuit footage of public conflicts in three countries by Richard Philpot and colleagues (2020) found that at least one bystander intervened in roughly nine of ten cases. The science that the legend inspired has partly refuted the legend while preserving, under controlled conditions, the phenomenon it named. The moral of Kew Gardens has outlived its facts, a fate that Ellison's story anticipated by converting the legend into myth.

The sociology of the metropolis had described the disposition long before. Georg Simmel's "The Metropolis and Mental Life" (1903) argued that the intensification of nervous stimulation in the great city produces a blasé attitude, an incapacity to react to new sensations with appropriate energy, and a reserve toward others that conceals a latent aversion. Engels, in the passage that serves as this chapter's second epigraph, had observed in the London of the 1840s that crowding intensifies the indifference of each to all. And Edgar Allan Poe's "The Man of the Crowd" (1840) ended with the observation that the deepest crimes of the city, like certain books, do not permit themselves to be read. The bystander is metropolitan reserve multiplied by windows, and Ellison's god of the city, in Chapter Four, is that reserve hypostatized.

The law had its own answer, and it was silence. The common law imposes no general duty to rescue a stranger. Thomas Babington Macaulay, in the notes to his draft of the Indian Penal Code (1837), defended the limitation of criminal liability for omissions, and Anglo-American law has largely kept it. The civil-law tradition chose otherwise: French law punishes the failure to assist a person in danger, an offense rooted in legislation of 1941 and 1945 and now codified in Article 223-6 of the Penal Code, and German law does the same in § 323c of the Criminal Code. In the United States, Vermont enacted a duty to aid the endangered in 1967, and only a few states, among them Minnesota in 1983 and Rhode Island in 1984, followed. The bystanders of Kew Gardens, whatever their number, committed no crime. The People v. the Audience is a case the law will not hear, a moral indictment without legal standing — which is precisely the predicament the planctic mode exists to address. Literature prosecutes where law declines.

The oldest text on the question is a parable told to a lawyer. In the tenth chapter of Luke, "a certain lawyer" asks Jesus what he must do to inherit eternal life and, "willing to justify himself," asks the question that supplies this chapter's first epigraph: "And who is my neighbour?" The question concerns the scope of legal duty. Jesus answers with a story in which a priest and a Levite see a wounded man and pass "by on the other side," and a Samaritan, an outsider, stops to help; and he closes by inverting the lawyer's question: "Which now of these three, thinkest thou, was neighbour unto him that fell among the thieves?" (Luke 10:36). The parable converts a question of duty into a question of conduct. "The Whimper of Whipped Dogs" is the parable inverted. The priests and Levites of the apartment block pass by on the other side of the glass, and the one who might have been the Samaritan converts to the god of passing by.

The press played a further role in the case, and it implicates the reader. The Times's indictment of the thirty-eight was itself a media event, inviting the newspaper's audience to judge the audience at the windows; its readers became spectators of spectators, and their indignation, in Boltanski's terms, risked becoming a pleasure of its own. Ellison's story refuses that comfort. By turning the neighbors into worshipers of a god, it indicts not only the thirty-eight but the distance from which the reader judges them. The reader, too, watches through glass. The planctic requirement is that the reader become something other than an audience: a witness.

6.5 "Soft Monkey": Harlow, Winnicott, and the Grievable Life

"Soft Monkey" (1987), collected in Angry Candy (1988) and awarded the Edgar Award, is the oeuvre's fullest grant of standing to a woman and its most

direct reply to the glass teat. Its protagonist, Annie, is a homeless woman on the winter streets of Manhattan who carries a doll she cares for as her baby, and whose past, the story suggests, holds a loss for which the doll stands. One night she witnesses a killing; the killers, realizing that she has seen them, pursue her through the city; and she evades them, enduring the night and protecting the child she carries.

The title names one of the most famous experiments in the history of psychology. In "The Nature of Love" (1958), Harry Harlow reported that infant rhesus monkeys separated from their mothers and offered two surrogates — one of bare wire that dispensed milk, one covered in soft terry cloth that did not — clung to the cloth mother and went to the wire one only to feed. Harlow called the need the infants displayed contact comfort, and the experiments became founding evidence that attachment is not reducible to nourishment; his later experiments in isolation and deprivation became a byword in debates over the ethics of animal research. Annie's doll is her soft monkey, and Annie herself, abandoned by the city, is the infant clinging to it.

The doll's function was theorized by D. W. Winnicott in "Transitional Objects and Transitional Phenomena" (1953). The blanket or toy to which an infant attaches itself is its first not-me possession, occupying an intermediate area of experience between inner and outer reality, the area from which play, art, and religion develop; and the adult's task, Winnicott insisted, is to honor the object's paradox, never asking whether the child created it or found it. The story honors the paradox. It never challenges the reality of Annie's baby; it grants the doll the standing Annie grants it and enters, with her, the intermediate area in which her love is real. John Bowlby's account of attachment, begun in Attachment and Loss (1969), supplies the larger frame: the bond whose rupture produces grief, and whose substitutes sustain survival.

Set beside The Glass Teat, the story completes an argument. If television is a teat of glass, it is Harlow's wire mother: a supply of milk without comfort, nourishment without contact, to which an audience clings as though it were cloth. Annie's soft monkey is the cloth mother — comfort without nourishment, but love — and the story's moral economy prefers the cloth to the wire. The homeless woman's attachment to a doll is more human than the glass-fed city that will not see her.

The story is also a parable of testimony. Annie is a witness to murder who cannot testify, because no court would believe her. Miranda Fricker, in Epistemic Injustice (2007), named the wrong of testimonial injustice: the deflation of a speaker's credibility by prejudice against her identity. A homeless woman who talks to a doll is the paradigm of the speaker whose testimony is discounted in advance, and her pursuers hunt her not because she would be believed but because they cannot risk the chance. Judith Butler's question of grievability

bears directly on her case. The visible increase in homelessness in American cities during the 1980s, commonly attributed to the deinstitutionalization of psychiatric patients, the loss of low-cost housing, and reductions in federal housing assistance, produced a population whose lives the city framed as among the least grievable. "Soft Monkey" confers full standing on the least grievable. Its narrative inhabits Annie's consciousness, takes her perceptions as evidence, and makes the reader the court that believes her. It is the planctic mode at its most complete: not a complaint made on behalf of the voiceless, but a voice restored to a witness the world had ruled incompetent.

6.6 "The Prowler in the City at the Edge of the World": Utopia's Violence

Dangerous Visions (1967) paired two stories as trial and appeal. Robert Bloch's "A Toy for Juliette" imagines a decadent young woman of the far future who is supplied by her grandfather's time machine with victims from the past for her amusement, and who meets her end when the latest of them proves to be Jack the Ripper. Ellison's sequel, "The Prowler in the City at the Edge of the World," follows the Ripper into the city from which Juliette came, a sterile and gleaming utopia, where he discovers a society more depraved than himself, one that absorbs his violence as a pleasure it has long been denied. Bloch's story ends with the Ripper's victory over the decadent girl; Ellison's sequel appeals the verdict and finds that the Ripper's victory was his defeat. The pairing is an editorial form of the transmedial case described in Chapter One: a story heard again by a second court.

Bloch had made the Ripper a recurring subject. "Yours Truly, Jack the Ripper" (1943) imagined the killer as an immortal sustained by sacrifice, and Bloch's script for the Star Trek episode "Wolf in the Fold," broadcast in December 1967, made him an entity that feeds on fear. The Ripper was the archetypal modern media monster from the beginning. The Whitechapel murders of 1888 were the first serial killings narrated in real time by a mass press, and the letter signed "Jack the Ripper" that gave the killer his name was very probably a journalist's invention: the monster was christened by the medium. Judith Walkowitz's City of Dreadful Delight (1992) read the Ripper narrative as a production of sexual danger in late-Victorian London, and Hallie Rubenhold's The Five (2019) reconstructed the lives of the five canonical victims — Mary Ann Nichols, Annie Chapman, Elizabeth Stride, Catherine Eddowes, and Mary Jane Kelly — against the legend that had reduced them to a category. Rubenhold's book is a counterplaint in the sense defined in Chapter Five, restoring to the victims the standing the myth denied them.

Ellison's utopian city is the society of the spectacle completed. Its inhabitants, deprived by perfect comfort of every intensity, can feel only vicariously, and violence returns among them as entertainment. The conceit anticipates the later fiction of J. G. Ballard, whose High-Rise (1975) watches the affluent tenants of a luxury tower descend into tribal violence, and whose Super-Cannes (2000) imagines an executive elite treated for its ennui with organized brutality. Anthony Burgess's A Clockwork Orange (1962) and Stanley Kubrick's film of 1971 supply the opposite pole: the Ludovico treatment, in which a young criminal is strapped before films of violence with his eyes clamped open until the images make him sick. Between the utopian city and the Ludovico clinic stand the two extremes of the society of the spectacle: violence watched as pleasure, and violence watched as punishment.

The most remarkable feature of Ellison's story is the identity of its moral witness. The Ripper, confronted with the city, is appalled; the murderer becomes the plaintiff, and his complaint is against the utopia that consumes his crimes. Like AM's cross-complaint in Chapter Three, the Ripper's horror does not exculpate him. It condemns the city. The structure repeats that of "The Whimper of Whipped Dogs": the violence is not the deepest problem; the audience is. The People v. the Audience here finds its most extreme formulation. The city of watchers is the defendant, and its most credible witness is a murderer.

6.7 The Network as Sovereign: Censorship, "Nackles," and the Writer in the Machine

The institutions of American broadcasting constituted, for the writers who worked within them, a sovereignty with its own legislature and police: the network departments of Standards and Practices, the Television Code of the National Association of Broadcasters, in force from 1952 to 1983, the sponsors whose money dominated the early years of the medium, and, above them, the Federal Communications Commission. The writer's text belonged to the sovereign, which could alter it without appeal. Rod Serling learned the lesson early. His teleplay "Noon on Doomsday" (1956), drawn from the lynching of Emmett Till, was revised under sponsor pressure until its Southern setting and its racial meaning had been removed; Serling turned to The Twilight Zone (1959–1964) and explained that a fantastic premise could carry what a realistic drama could not, since Martians might say what Republicans and Democrats could not. The speculative mode, in Serling's hands, was camouflage, a procedural device by which complaint evaded the censor. Ellison inherited the device. Unlike Serling, he also made the censorship itself the subject of public complaint.

The best known of his grievances concerned "The City on the Edge of Forever" (1967). Ellison's teleplay sent a crewman who deals in narcotics, having committed murder, fleeing through a portal in time to Depression-era New York, where Kirk falls in love with Edith Keeler, a social worker whose survival would alter history, and must allow her to die. The broadcast version, rewritten by others, replaced the drug-dealing crewman with an accidentally intoxicated Dr. McCoy. Ellison's script won the Writers Guild award and the broadcast episode the Hugo, and in 1996 Ellison published his original with a long introduction disputing Gene Roddenberry's accounts of the rewriting. The moral structure survived both versions — a future purchased with the death of one good woman, the bargain Ivan Karamazov refused and Le Guin's Omelas made famous — and the history of the episode is a complete docket: the sovereign's alteration, the peers' verdict, the appeal to readers, and, in 2009, a suit over the episode's revenues.

The Starlost (1973) repeated the pattern on a larger scale. Ellison conceived the series around a generation starship whose inhabitants, sealed in domed communities, have forgotten that they are aboard a ship — a premise descended from Robert A. Heinlein's "Universe" (1941) and Brian Aldiss's Non-Stop (1958), and, in the terms of Chapter Three, a gnostic one: the world is a vessel, and its prisoners do not know it. The low-budget Canadian production that resulted, on which Ben Bova served as science adviser and which he later satirized in his novel The Starcrossed (1975), dismayed its creator, and Ellison replaced his name in the credits with the pseudonym Cordwainer Bird. His original pilot script, "Phoenix Without Ashes," won the Writers Guild award and was novelized by Edward Bryant in 1975. Chapter Seven will examine the pseudonym as a form of protest.

The episode of "Nackles" is the most exact. Donald E. Westlake's story (1964) concerns a father who invents an anti-Santa, Nackles, to frighten his children into obedience, only to find that their belief has made the figure real. Ellison adapted it for the revived Twilight Zone in 1985 and was to direct it; when CBS objected to its treatment of Christmas, the production was cancelled, and Ellison resigned as the series' creative consultant. The suppressed text was a fable of the very theology Chapter Four traced through Deathbird Stories: a punishing god brought into being by belief. A broadcasting sovereign suppressed a parable about the manufacture of malign sovereigns, as French radio had suppressed Artaud's To Have Done with the Judgment of God in 1948.

Paddy Chayefsky's Network (1976), directed by Sidney Lumet, supplies the definitive parable of the planctic mode in the age of the broadcaster. Howard Beale, a news anchor facing dismissal, rants on the air and urges his viewers to go to their windows and shout that they are mad as hell and will not take it anymore; across the city, windows open and people scream. The network converts his rage

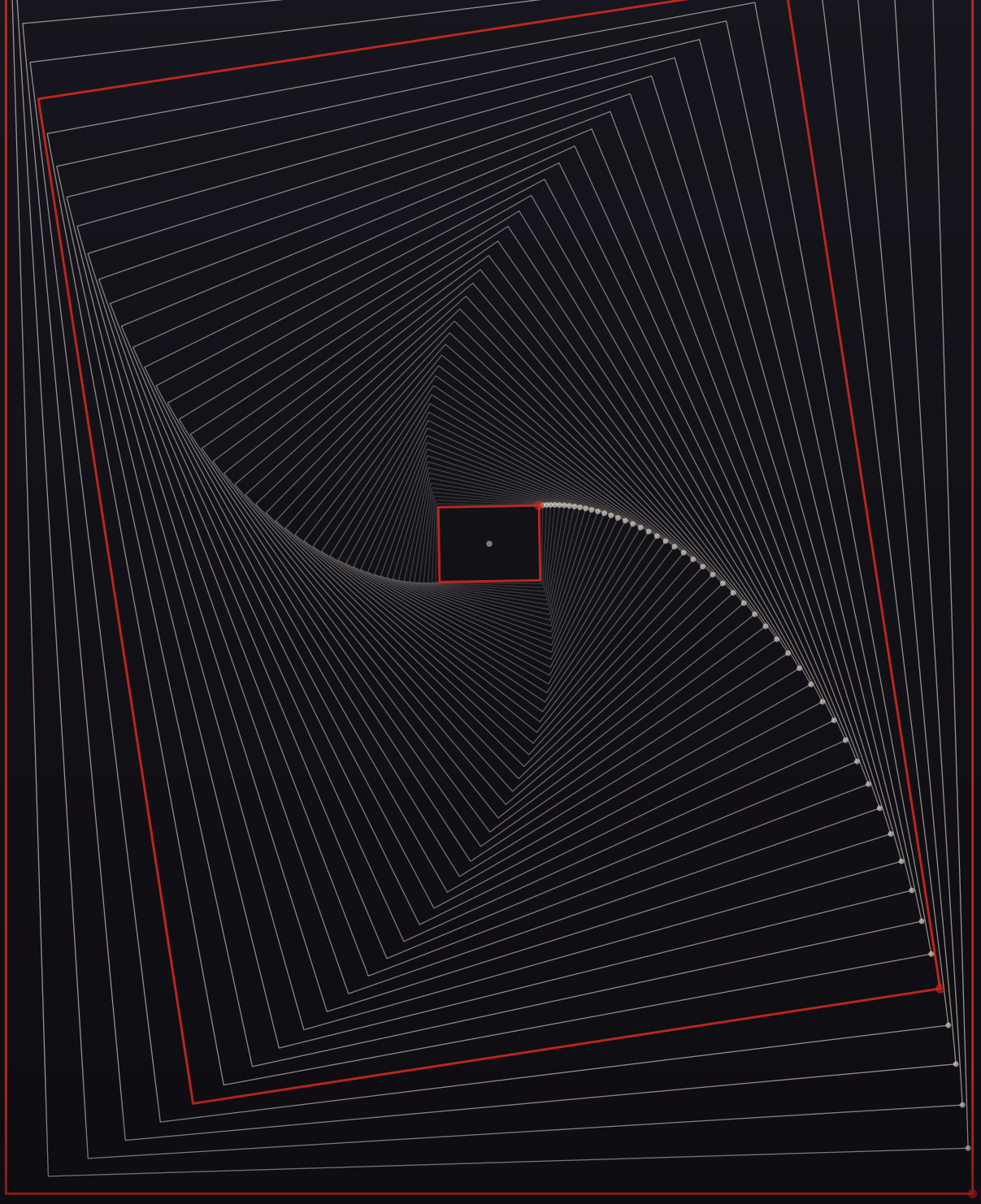
into a ratings triumph, and when his ratings fall it arranges his assassination on camera. Chayefsky's scene is the exact inverse of the Genovese legend: the windows of the city open not to watch in silence but to scream. Yet the scream is programming. The network is the sovereign that can broadcast complaint as product, and Ellison's columns understood the danger perfectly: the complainer on television risks becoming content.

The political economy of broadcasting completes the case. Dallas Smythe argued in 1977 that the real product of commercial television is not the program but the audience, whose attention is sold to advertisers, so that watching is itself a form of unpaid labor. The People v. the Audience thus has a double structure. The audience is a defendant, because it watches, consents, and passes by on the other side of the glass; and it is a victim, because its watching is harvested and sold. The bystanders of Kew Gardens and the viewers of prime time perform the same act, and the act is at once complicity and expropriation.

The remedy the planctic mode proposes is the conversion of the spectator into a witness. The Greek word for witness, martys, gave the Christian tradition its martyrs, those whose testimony cost them their lives. Primo Levi, in The Drowned and the Saved (1986), wrote that the survivors of the camps were not the true witnesses, since those who had seen the worst had not returned, or had returned without speech; Giorgio Agamben's Remnants of Auschwitz (1998) made Levi's paradox the center of a theory of testimony as speaking for those who cannot speak. Ellison's fiction is testimony in this sense, delivered on behalf of the mouthless, and its demand on its reader is to cease being an audience and become a witness. The verdict in The People v. the Audience is therefore conditional: the audience is guilty for as long as it remains an audience. The next chapter turns to the witness who never stopped testifying — the author himself, and the jurisprudence of authorship he made of his life.

The moral of Kew Gardens has outlived its facts, a fate that Ellison's story anticipated by converting the legend into myth.

§ 6.4



"No man but a blockhead ever wrote, except for money."

— Samuel Johnson, in James Boswell, The Life of Samuel Johnson (1791)

"To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries."

— Constitution of the United States, Article I, §8, cl. 8 (1787)

CHAPTER SEVEN

7

DOCKET

Ellison v. the Culture Industry

The Living Author

Dangerous Visions, *Paratext, and the Jurisprudence of Authorship*

The preceding chapters have read Ellison's texts as complaints. This chapter reads his authorship as one. Across five decades Ellison constructed — in prefaces and afterwords, in the anthologies he edited, in the pseudonym he imposed on mutilated work, in public performances and broadcast appearances, and in a long series of lawsuits — a coherent jurisprudence of authorship: a body of claims about what a writer is owed, namely credit, integrity, payment, and a forum, and about the venues in which those claims may be pressed. The chapter dockets this jurisprudence as Ellison v. the Culture Industry, borrowing the term that Horkheimer and Adorno gave to the system of cultural production examined in Chapter Six. It argues that Ellison's career constitutes a sustained refutation of the death of the author that Roland Barthes announced in the year of Dangerous Visions, and that the authorial function Ellison embodied is best described as a litigant-function: the author not as the origin of meaning, nor merely as a principle of classification, but as a party to a cause. It proceeds from the anthology that convened a new constitution for American speculative fiction (7.1), through the paratext as legal brief (7.2), the theory of authorship (7.3), the pseudonym as protest (7.4), and the economics of authorship (7.5), to the case law Ellison generated (7.6) and the anthology that remained unfinished for half a century (7.7).

7.1

Dangerous Visions as Constitutional Convention: The New Wave and the American Anthology

Dangerous Visions, published by Doubleday in 1967, assembled thirty-three original stories by thirty-two writers, each introduced by its editor and followed by an afterword from its author, under two forewords by Isaac Asimov and a programmatic premise: these were stories that could not have been published elsewhere, because the editorial taboos of the magazine market — concerning sex, religion, drugs, violence, and formal experiment — would have excluded them. The book received a special citation at the Hugo Awards of 1968, and its stories collected the field's honors: Fritz Leiber's "Gonna Roll the Bones" won both the Hugo and the Nebula, Philip José Farmer's "Riders of the Purple Wage" shared the Hugo for best novella, and Samuel R. Delany's "Aye, and Gomorrah . . ." won the Nebula for best short story. Its contributors spanned the field's generations, from Lester del Rey, Theodore Sturgeon, Frederik Pohl, Robert Bloch, and Poul Anderson to Delany, Roger Zelazny, Norman Spinrad, Larry Niven, Philip K. Dick, J. G. Ballard, Brian Aldiss, John Brunner, and Robert Silverberg, together with Carol Emshwiller and Sonya Dorman, whose contributions Chapter Five noted.

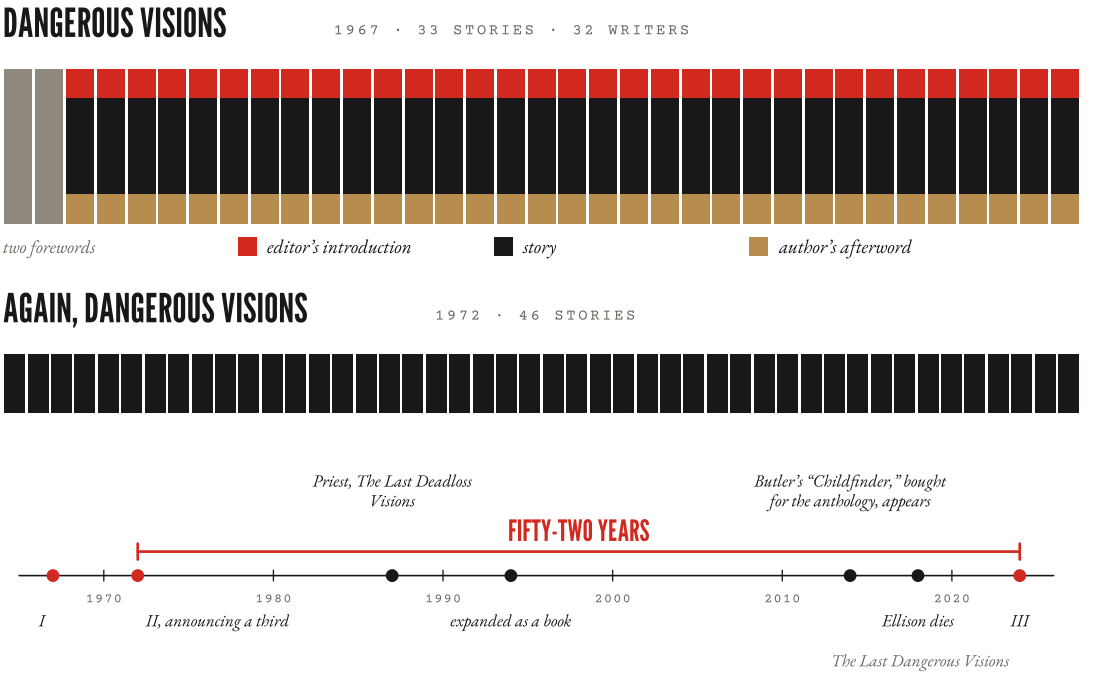


FIG. 7.1 The anatomy of the forum. Dangerous Visions framed each of its thirty-three stories with an editor's introduction and an author's afterword; the third volume followed the second after fifty-two years.

Asimov framed the book as a revolution. His first foreword described it as the second revolution in the history of magazine science fiction, the first having been the transformation of the field that followed John W. Campbell's assumption of the editorship of Astounding in 1937. The second was already under way in Britain. Michael Moorcock had taken over New Worlds in 1964; J. G. Ballard had called in 1962 for a science fiction of inner rather than outer space; and the magazine's serialization of Spinrad's Bug Jack Barron provoked a distributor's boycott and questions in the House of Commons. Judith Merril's anthology England Swings SF (1968) presented the movement to American readers. Dangerous Visions was the American front of the upheaval, although Ellison resisted the label of the New Wave, as he resisted most labels.

The book is best understood as a constitutional convention. An anthology of original stories assembled under explicit rules has the structure of a constituent assembly: delegates, who are its writers; a convener, who is its editor; a charter, which is its premise; and a record of deliberation, which in this case is public, since every story is accompanied by the editor's argument and the author's testimony. The charter of Dangerous Visions was negative, a declaration against prior restraint. American constitutional law had established in Near v. Minnesota (1931) a heavy presumption against the suppression of publication in advance, but the market for magazine fiction exercised a private prior restraint through the taboos of its editors and distributors, and the anthology was convened to defeat it. The book constituted a field in the precise sense: it established what could be said in it. The subsequent openness of American speculative fiction to sexuality, religious satire, and formal experiment dates, to a significant degree, from its publication.

The convention also had predecessors from which it departed. The anthologies that shaped the field's canon in the 1940s and 1950s, from Raymond J. Healy and J. Francis McComas's Adventures in Time and Space (1946) to the many collections of Groff Conklin, gathered stories already published in the magazines and so ratified the magazines' judgments. The original anthology, commissioning new work, had been pioneered by Frederik Pohl's Star Science Fiction Stories from 1953, and Damon Knight's Orbit series began in 1966, a year before Ellison's book. Dangerous Visions differed from all of them in making transgression its criterion of selection and in surrounding every story with argument. Where the retrospective anthology legislated a canon after the fact, Ellison's legislated a field in advance, and its authors' afterwords functioned as testimony: each writer was called to explain why the story had needed a forum the market did not provide.

In the vocabulary of this study, Dangerous Visions is the planctic mode institutionalized. It created a forum for writers who lacked standing in the existing market, a court of first instance for censored stories, and in it the perpetual plain-

tiff became, for once, the convener of the court. Its strength was the strength of every new forum: it heard what had not been heard. Its weakness, which section 7.7 will examine, was the weakness of every forum that depends on a single convener: its capacity to hear depended on his capacity to close cases.

The second session followed in 1972. Again, Dangerous Visions, with forty-six stories, received its own special citation at the Hugo Awards and published, among much else, Ursula K. Le Guin's "The Word for World Is Forest," which won the Hugo; Joanna Russ's "When It Changed," which won the Nebula; James Tiptree Jr.'s "The Milk of Paradise"; Kate Wilhelm's "The Funeral"; Gene Wolfe's "Mathoms from the Time Closet"; Gregory Benford's "And the Sea Like Mirrors"; Ray Bradbury's "The Lost City of Mars"; and Kurt Vonnegut's "The Big Space Fuck," whose title alone tested the taboos the series existed to break. Its introduction announced a third volume, The Last Dangerous Visions. The convention had become a standing body, and its third session would not adjourn in its convener's lifetime.

7.2 The Paratext as Brief: Genette and the Appearance of Counsel

Gérard Genette's Seuils (1987) divided the paratext into the peritext — the titles, prefaces, dedications, epigraphs, and notes within the book — and the epitext — the interviews, letters, and public statements outside it — and identified the authorial preface's two cardinal functions: to get the book read, and to get it read properly. Ellison's paratexts maximize both functions to the point of rivalry with the texts they serve. His story introductions narrate the circumstances of composition, the editor who rejected the story, the producer who rewrote it, the fee that was not paid; they settle scores, issue warnings, and instruct the reader how to receive what follows. His collections are framed by essays that are polemics in their own right. The introduction to Strange Wine (1978) indicts television for destroying the habit of reading; Deathbird Stories (1975) opens with a caution and an essay on the new gods, discussed in Chapter Four; Angry Candy (1988) is framed by mourning for the many friends who died during the years of its making. The paratext, in Ellison, is not a threshold but a stage.

This study has read such texts as briefs, the documents through which counsel appears in a cause, frames the issues, cites precedent, and addresses the bench. The reader is the bench. The epitext extends the brief beyond the book: the long interviews, of which the 1979 conversation in The Comics Journal proved the most consequential; the broadcast appearances described in Chapter Six; the convention performances in which Ellison told and retold the anecdotes that made up the oral literature of his persona. The "Ellison story" — the dead gopher

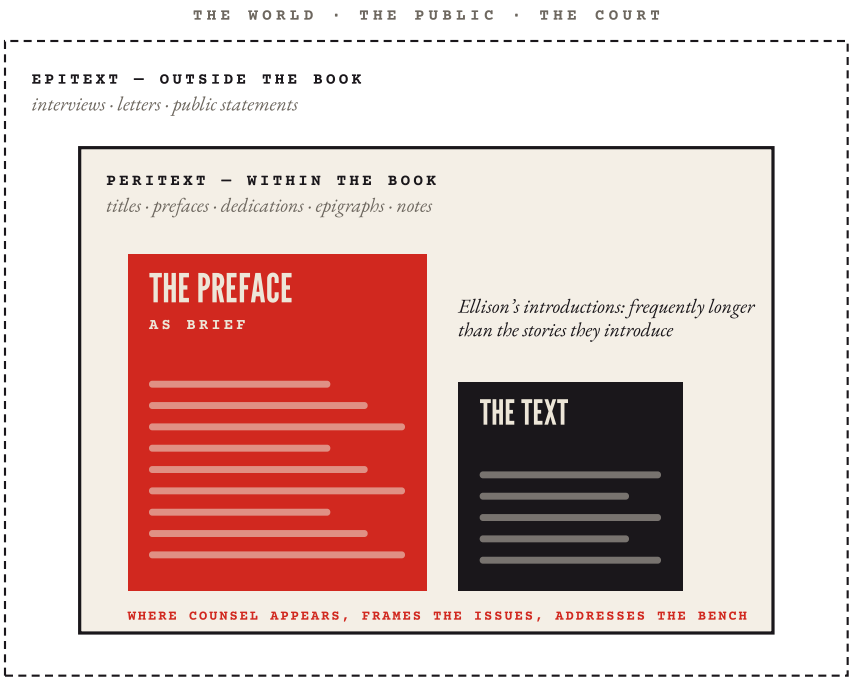


FIG. 7.2 Genette's thresholds read as a brief: the peritext within the book and the epitext outside it, with the authorial preface at the point where counsel appears.

mailed to a delinquent publisher, the professor at Ohio State who received a copy of every published story — is epitext in its purest form, a genre of advocacy whose subject is the advocate.

The persona extended the paratext to the body. Ellison repeatedly composed stories in public, at a typewriter in the windows of bookstores, making composition itself a performance witnessed by passersby; the author appeared in the act of authorship, as a party appears in person before the court. The titles of his later books inscribed the same claim in grammar. Harlan Ellison's Watching (1989), Harlan Ellison's Movie (1990), and the comics series Harlan Ellison's Dream Corridor, in which the author appears as host, put his name in the possessive case, and later editions of his work carried notice that the name itself was a registered trademark, held through his company, the Kilimanjaro Corporation. The genitive is a legal claim, and the trademark is the litigant-function institutionalized.

The oral dimension of the persona places Ellison in a tradition of authors who made their bodies part of their works. Charles Dickens's public reading tours, from 1858 until the year of his death, turned his novels into performances whose intensity, by contemporary accounts, hastened his physical collapse; Mark Twain's lecture tours made the author a stage character whose persona preceded and shaped the reception of his books. Walter J. Ong, in Orality and Literacy

(1982), described the secondary orality of the electronic age, an orality dependent on writing and print yet restoring something of the participatory character of oral culture. Ellison's convention monologues, recorded readings, and broadcast appearances belong to that secondary orality. The persona was not an accessory to the work but a medium of it, and the work cannot be fully read without being heard.

The paratext has its dangers, and they are the dangers of advocacy. W. K. Wimsatt and Monroe C. Beardsley warned in 1946 against allowing an author's declared intentions to govern interpretation, and Genette himself observed that the authorial preface claims an authority it cannot always justify. In Ellison the danger is acute, because the brief can displace the case: the anecdote crowds out the story, the persona the work. The method of this study, set out in Chapter One, reads the paratext as part of the record but not as the verdict. The planctic critic attends to the brief without obeying it, as Chapter Five read Ellison's own defense of the ending of "A Boy and His Dog": as a submission by a party to the case, to be weighed with the rest of the evidence.

Ellison's paratextual practice has distinguished precedents, and they clarify its genre. William Wordsworth's preface to Lyrical Ballads (1800; expanded 1802) was a manifesto for a poetics; Henry James's prefaces to the New York Edition of his novels (1907–1909) were the author's retrospective legislation of his own work; and George Bernard Shaw's prefaces, frequently longer than the plays they introduced, made the polemical preface a genre in itself. Shaw is Ellison's nearest ancestor: a writer for whom the preface was the place where the author argued his case before the public, at length, and in person.

7.3 Against the Death of the Author: Barthes, Foucault, and the Litigant-Function

Roland Barthes's "The Death of the Author" first appeared in English in 1967, the year of Dangerous Visions, and in French the following year. Writing, Barthes argued, is the destruction of every voice and every point of origin; the author is a modern figure, the product of a capitalist ideology of the individual; the text is a tissue of quotations drawn from innumerable centers of culture; and the birth of the reader must be purchased at the cost of the death of the Author. The coincidence of dates is instructive. In the year that the most influential critical essay of the period pronounced the author dead, the most consequential anthology in American speculative fiction surrounded each of its stories with the voices of its editor and its author. The theory of the author's death and the practice of the author's insistent presence were exact contemporaries.

Michel Foucault's "What Is an Author?" (1969) offered a more historical account, and its genealogy is juridical. The author, Foucault argued, is not a person but a function of discourse, a principle by which texts are classified, grouped, and valued. Historically, texts came to have authors in the full sense when their authors became subject to punishment, when discourse was an act that could be transgressive; only later, with the establishment of a regime of property and copyright at the end of the eighteenth century, did the author-function become bound to ownership. The author begins, in this genealogy, as a defendant, the one who can be punished, and becomes a proprietor, the one who owns. Ellison's career recapitulates both moments. He was a defendant, most notably in the libel action brought by the comics writer Michael Fleisher over remarks Ellison made in his 1979 interview with The Comics Journal, in which a jury found for Ellison and his publisher in 1986. And he was, as section 7.6 will document, a plaintiff on behalf of his property.

This study has called the synthesis the litigant-function: the author not as the origin of meaning, which Barthes rightly refused, nor merely as a principle of classification, which Foucault described, but as a party to a cause — a figure who appears in person, asserts claims, answers charges, and can be held to account. The litigant-function differs from the classical author in that it does not govern interpretation; a party to a case is heard, not obeyed. It differs from Foucault's author-function in that it is embodied and agonistic, a function not of discourse alone but of persons contending before forums.

The historiography of copyright explains why such a figure should have flourished precisely when theory declared the author dead. Mark Rose's Authors and Owners (1993) and Martha Woodmansee's essay "The Genius and the Copyright" (1984) showed that the Romantic conception of the author as original genius and the legal conception of the author as owner of his work emerged together in the eighteenth century, from the Statute of Anne of 1710, through the British booksellers' struggle over perpetual copyright, ended by the House of Lords in Donaldson v. Becket (1774), to the German debates on literary property. Peter Jaszi (1991) traced the persistence of that Romantic author in American copyright doctrine. Ellison is the Romantic proprietary author surviving into the age of his theoretical death, and because theory had declared him dead he had to keep proving, in public and in court, that he lived. Seán Burke's The Death and Return of the Author (1992) argued that the author returns even in the writings of the theorists who proclaimed his death. In Ellison he never left.

The litigant-function carries an ethical consequence that the death of the author was meant to evade. A party to a cause is answerable. Mikhail Bakhtin, in his earliest surviving essay, "Art and Answerability" (1919), insisted that the artist must answer with his life for what he has experienced and understood in art, so that art and life become one in the unity of the person's responsibility. The

litigant-function is answerability in juridical form: the author who claims credit, payment, and integrity also stands to be cross-examined, sued, and found liable. Chapter Five applied the litigant-function to its holder and did not acquit him. That application is not a betrayal of Ellison's jurisprudence of authorship. It is its completion.

7.4 Cordwainer Bird: The Pseudonym as Protest

The pseudonym Ellison imposed on work he judged mutilated is a compressed theory of authorship. Cordwainer is an old English word for a shoemaker, derived from the Cordovan leather of Córdoba, and it recalls Cordwainer Smith, the pen name of Paul Linebarger (1913–1966), whose stories of the Instrumentality of Mankind Ellison admired, and who in his other life was a godson of Sun Yat-sen and an authority on psychological warfare. Bird is the obscene gesture. The pseudonym encodes in a byline an insult to the producers who have altered the work: a signature that tells those who can read it that the author disowns what follows. Ellison used it on The Starlost (1973), as Chapter Six recorded, and on other productions he judged betrayed.

The juridical meaning of the device becomes clear against the doctrine of moral rights. Continental law recognizes, beyond the economic rights of copyright, a set of personal rights of the author, the droit moral, which the Berne Convention codified internationally in Article 6bis, added at the Rome revision of 1928: the right to claim authorship of the work, and the right to object to any distortion, mutilation, or other modification of it that would be prejudicial to the author's honor or reputation. American law long resisted moral rights; the Visual Artists Rights Act of 1990 recognized them only for certain works of visual art, and the television writer, whose script was typically a work made for hire, had none. Cordwainer Bird is a moral right asserted by self-help. Lacking a legal right of integrity, the author exercises a negative right of attribution — he withdraws his name — and replaces it with a sign of protest. The pseudonym is a dissent entered on the credits.

The gesture concealed in the name has a philosophical pedigree that suits the oeuvre. Diogenes Laërtius reports that Diogenes the Cynic, when strangers asked to see Demosthenes, stretched out his middle finger and said, "There goes the demagogue of Athens" (Lives VI.34); the Romans knew the gesture as the digitus impudicus, the shameless finger, and Suetonius records that Caligula humiliated a subordinate by offering his hand to be kissed in an obscene posture. The obscene finger is the Cynic's signature, the gesture by which a philosopher without power answers the powerful in the one language their dignity cannot absorb. Cordwainer Bird belongs to the lineage that Chapter Five traced from

Diogenes to Blood: the shameless reply of the one without standing to the one with power, entered not in a marketplace but in the closing credits.

Hollywood institutionalized a version of the same gesture. In 1968 the Directors Guild of America adopted the pseudonym Alan Smithee for directors who could demonstrate that they had lost creative control of a film, first using it on Death of a Gunfighter (1969) and retiring it around 2000, after a satirical film about the pseudonym had made it too famous to serve. Alan Smithee is an institutional and anonymous protest; Cordwainer Bird is personal and satirical, a protest that names its author to those in the know. The contrast is the contrast between a guild's procedure and a plaintiff's complaint.

The history of the pseudonym clarifies what Ellison inverted. The political pseudonym protected the writer from danger, as "Publius" shielded the authors of The Federalist the commercial pseudonym of the pulp magazines, under which the young Ellison himself had published, multiplied the apparent number of contributors; and the philosophical pseudonymity of Søren Kierkegaard, who distributed his works among a company of invented authors, served a strategy of indirect communication that held the author at a distance from what the text asserted. Cordwainer Bird does none of these things. It does not conceal; it discloses. It announces the author's presence by announcing his dissent, and its distance from the work is the distance of a witness who refuses to sign a falsified record. In planctic terms the byline is the place where the author's standing is recorded. To withdraw one's name is to withdraw one's testimony from a corrupted record; to substitute an obscene gesture is to enter a dissent in the only space the sovereign leaves open. The Harlequin's motley, in Chapter Two, and Cordwainer Bird share a function: each is a costume of protest worn inside the sovereign's own instrument, the schedule in the one case and the credits in the other.

7.5 The Bond and the Purse: Chaucer, Copyright, and "Pay the Writer"

Chapter One cited Chaucer's "Complaint to His Purse" as the earliest canonical English instance of a writer insisting that the writer be paid. The insistence has a long and distinguished history. Samuel Johnson, as James Boswell reported, held that no man but a blockhead ever wrote except for money, the sentence that supplies one of this chapter's epigraphs. The Statute of Anne (1710), "An Act for the Encouragement of Learning," vested in authors, for the first time in English law, the right to the copies of their books; the Constitution of the United States, in the clause that supplies the other epigraph, empowered Congress to secure to authors for limited times the exclusive right to their writ-

ings in order to promote the progress of science and the useful arts. The writer's claim to payment was thus written into the founding law of literary property as a means to a public end.

The nineteenth century produced its great plaintiff. Charles Dickens, touring the United States in 1842, used his public speeches to plead for international copyright, since American publishers reprinted British authors without paying them, and the American press answered with hostility; he took his revenge in American Notes (1842) and Martin Chuzzlewit (1843–1844), and the United States did not extend protection to foreign authors until the International Copyright Act of 1891. Dickens's campaign was the Victorian prototype of a writer's complaint against a market that treated his work as free for the taking, and Ellison's campaign against the online piracy of his stories, examined in section 7.6, is its late-American sequel.

The emblem of Ellison's position is a few minutes of documentary footage. In Erik Nelson's film Dreams with Sharp Teeth (2008), Ellison recounts a studio's request that he appear without a fee in an interview for a home-video release and erupts into a denunciation of the expectation that writers work for nothing; the clip, circulated widely online under the injunction to pay the writer, became an emblem in later debates over unpaid creative labor and the offer of "exposure" in place of payment. Read planctically, the demand for payment is the plaint of labor. It is the writer's version of the complaint the Harlequin brought against the Master Timekeeper in Chapter Two: the expropriation of time, the writer's hours taken without compensation as the cardioplate took the worker's minutes. The bond the writer holds is the contract, and Ellison treated contracts as the writer's only protection against the sovereign power of the culture industry, much as Chapter Two treated the bond in The Merchant of Venice as the instrument through which standing is asserted and contested.

The labor history of the screen trades confirms the claim's collective dimension. The Writers Guild of America struck in 1960 to secure residual payments for the broadcast of films on television, again in 1988, in 2007 and 2008 over payment for distribution in new media, and in 2023 over streaming residuals and the use of artificial intelligence; the agreement that ended the strike of 2023 provided that generative systems could not write or rewrite literary material and that writers could not be required to use them. The last of these provisions belongs to the subject of this study's Conclusion, in which the machine that writes becomes a party to the writer's cause.

The jurisprudence of payment has limits, and the planctic critic must name them. The rhetoric of authorial protection has served corporate holders as readily as authors: the Copyright Term Extension Act of 1998, upheld by the Supreme Court in Eldred v. Ashcroft (2003), lengthened the protection of works whose authors were long dead, and Lawrence Lessig's Free Culture (2004) argued

that such extensions impoverish the public domain on which all culture draws. Ellison's own fiction draws heavily on that domain. His gods and monsters are borrowed from Genesis and Job, from Dante and the Eddas, and this study has quoted those sources freely precisely because they belong to everyone. A complete jurisprudence of authorship must therefore grant standing not only to the writer who demands payment but to the commons from which every writer takes. The plaintiff's claim and the public's claim are both meritorious, and the law of copyright is the perpetual adjudication between them.

7.6 Case Law: The Terminator, Ellison v. Robertson, In Time

Ellison's litigation constitutes a small body of case law, most of it unreported, since his disputes usually ended in settlement, withdrawal, or a jury's verdict rather than a published opinion. Its leading cases nonetheless form a coherent jurisprudence, and the dramaturgy of litigation was congenial to him for reasons that the culture of his formative decades explains. Television in the 1950s had made the courtroom one of its central stages, from the long-running Perry Mason (1957–1966) to Reginald Rose's Twelve Angry Men, first broadcast in 1954 and filmed in 1957, in which a single juror's doubt converts eleven votes for conviction into an acquittal through deliberation. Rose's play is the period's most influential image of the jury as a forum in which a lone dissent can prevail by argument, and it is, in this study's terms, an image of the planctic reader: the juror who refuses to vote with the room until the case has been heard. Ellison's suits were addressed as much to the public as to the courts, and their purpose, like that of his stories, was to compel a hearing.

The first leading case concerns attribution. Ellison claimed that James Cameron's The Terminator (1984), produced by Hemdale and distributed by Orion, drew on two teleplays he had written for The Outer Limits in 1964: "Soldier," adapted from his story "Soldier from Tomorrow" (1957), in which a soldier conditioned for a future war is thrown back into the present, and "Demon with a Glass Hand," in which a man pursued by enemies from the future carries within himself the future of humanity. The dispute was settled, and subsequent releases of the film carried an acknowledgment of Ellison's works. The settlement established, on the public record if not in a judgment, the lineage of the most influential narrative of machine apocalypse of the late twentieth century, the lineage that Chapter Three traced from AM to Skynet.

The second, and the only one of Ellison's cases to produce a significant published opinion, concerns the infrastructure of the internet. In 2000 a Usenet user named Stephen Robertson scanned several of Ellison's stories and posted them to a newsgroup devoted to pirated electronic books, which America Online carried

on its servers. Ellison sued Robertson and AOL. The district court granted AOL summary judgment under the safe-harbor provisions of the Digital Millennium Copyright Act of 1998, which shield online intermediaries from liability for their users' infringements on conditions that include the reasonable implementation of a policy for terminating repeat infringers. In Ellison v. Robertson, 357 F.3d 1072 (9th Cir. 2004), the Court of Appeals for the Ninth Circuit reversed in part. AOL had changed the e-mail address designated to receive notices of infringement without forwarding messages sent to the old one, so that Ellison's notice was never received; a reasonable jury, the court held, could therefore find that AOL had not reasonably implemented its policy and was not entitled to the safe harbor, and could find it liable for contributory infringement. The court affirmed the dismissal of the claim of vicarious liability, finding no direct financial benefit to AOL from the infringement. The parties later settled, and the opinion became a standard citation in the law of online intermediaries.

The holding deserves a planctic gloss, because it is, at its core, a ruling about the duty to hear complaints. The court held that an intermediary that had made itself unreachable — that had, in effect, no working address at which an injured party could lodge a complaint — could not claim the protection the law extends to intermediaries that respond to complaints. Standing, in the regime of the internet, requires that the forum be reachable. The plaintiff without a mouth, in this case, was the author whose notice fell into an unmonitored mailbox, and the appellate court restored his standing by making the defendant's capacity to hear a condition of its immunity. Of all the outcomes of Ellison's litigation, it is the most exact juridical realization of his fiction's central concern.

The remaining cases complete the pattern. In 2009 Ellison sued CBS Paramount over revenues from "The City on the Edge of Forever," and the suit was settled. In 2011 he sued to block the release of In Time, alleging that it appropriated the premise of "'Repent, Harlequin!' Said the Ticktockman," and withdrew the action after viewing the film, as Chapter Two recounted. In 2006 he sued Fantagraphics over a book that recounted the Fleisher libel case, and that dispute, too, was settled. Settlement is the characteristic ending of Ellison's cases, and it is the legal form of what this study has called the planctic remainder: the complaint is heard and compensated, but the case closes without a decision on the merits. The defendant concedes something without admitting anything, and the record remains, like the Ticktockman's three minutes, slightly out of true.

Taken together, the cases articulate the principles of a jurisprudence of authorship: the right of attribution, vindicated by the acknowledgment on The Terminator the right of integrity, asserted by self-help in Cordwainer Bird; the right of remuneration, pressed against CBS Paramount and dramatized in the demand to pay the writer; the right to protection against piracy, established against AOL; and the right to withdraw a complaint once heard, exercised over

DOCKET · THE LEADING CASES		DISPOSITION
1984	***The Terminator*** *drawn, Ellison claimed, from his Outer Limits teleplays "Soldier" and "Demon with a Glass Hand" (1964)*	SETTLED *acknowledgment on later releases*
2004	***Ellison v. Robertson*** *357 F.3d 1072 (9th Cir.): AOL, an unmonitored address, and the DMCA safe harbor*	REVERSED IN PART *later settled*
2006	***v. Fantagraphics*** *over a book that recounted the Fleisher libel case*	SETTLED
2009	***v. CBS Paramount*** *revenues from "The City on the Edge of Forever"*	SETTLED
2011	***In Time*** *alleged appropriation of "'Repent, Harlequin!' Said the Ticktockman"*	WITHDRAWN *after viewing the film*

FIG. 7.3 The leading cases, with their dispositions as recounted in the text. Settlement is the characteristic ending.

In Time. Each case is a complaint lodged in the world rather than in fiction. The planctic mode of the stories and the litigation of the author are one mode in two venues.

7.7 The Absent Center: The Last Dangerous Visions and the Unfinished Forum

The introduction to Again, Dangerous Visions (1972) announced that a third volume, The Last Dangerous Visions, would follow. It did not follow for fifty-two years. The inventory grew, by Ellison's accounts, to well over a hundred stories; publication dates were announced and passed; and many contributors died while their stories waited. In 1987 the British novelist Christopher Priest circulated a scathing account of the delays, The Last Deadloss Visions, expanded in 1994 as The Book on the Edge of Forever, which documented the history of broken promises, counted the contributors who had died, and charged Ellison with holding other writers' work hostage. Some authors withdrew their stories. Octavia E. Butler's "Childfinder," bought for the anthology in the early 1970s, was not published until 2014. After Ellison's death in 2018, J. Michael Straczyn-

ski, the executor of his estate, undertook to complete the book, and The Last Dangerous Visions appeared from Blackstone Publishing in 2024, a substantially reconstituted volume that combined stories from the original inventory with newly commissioned work.

The complaint against the third anthology was heard where Ellison's own career had begun, in the public sphere of fandom described in Chapter One. Priest's account circulated through the networks of fanzines and conventions, and fandom, which had given the adolescent Ellison his first standing, became the forum in which the established Ellison was tried. The circularity is apt. The counter-public sphere that formed the plaintiff later judged him, and its judgment, rendered without courts, was enforced by reputation alone.

The planctic method, applied to this history, yields a verdict against its subject. The great plaintiff became, in the matter of the third anthology, the defendant. Having convened a forum to give standing to writers whose work the market excluded, he held their work in a limbo of his own, withholding from them the standing he demanded for himself. Priest's pamphlet was the plaint; the contributors were plaintiffs without a forum, because the convener of the only relevant forum was also its defendant. The structure is that of AM in Chapter Three: sovereign, judge, and defendant in one. Ellison's own jurisprudence condemns his conduct here, as it condemned the gendered silences examined in Chapter Five. The method applies to its author, and it does not acquit him.

The method applies to its author, and it does not acquit him.

Yet the absence also carries a structural meaning that the verdict does not exhaust. The Last Dangerous Visions was the forum that could not close, because closing it would have ended the convening itself: the standing possibility of a court for the unpublishable. The unfinished work has a distinguished place in modern letters — Walter Benjamin's Arcades Project, Robert Musil's The Man Without Qualities, the Cantos that Ezra Pound could not make cohere — and in each case incompletion is part of the work's truth. Talmudic jurisprudence offers a closer analogy. A dispute that cannot be resolved is marked teiku, "let it stand," a word that later tradition glossed as an acronym promising that Elijah the Tishbite will resolve all difficulties and questions: the case is left open, to await an adjudicator at the end of days. The Last Dangerous Visions was Ellison's teiku, and it was closed, as such cases are, only by a successor.

Kafka's parable "Before the Law" (1915) supplies the final figure. A man from the country waits his whole life before a door of the law, kept from entering by a

doorkeeper; as he dies, he asks why no one else has come to seek admittance, and the doorkeeper tells him that this entrance was meant only for him and that he is now going to shut it. The history of The Last Dangerous Visions inverts the parable. Its contributors waited before a door that was meant for all of them, and it opened only when its keeper died. In Kafka the petitioner's death closes the door; in Ellison's case the doorkeeper's death opened it.

The oeuvre thus has an absent center, and the absence rhymes with its most famous image. As the scream without a mouth is the complaint without an organ, the anthology without a book was the forum without a verdict, the planctic remainder made institutional. The lesson for the jurisprudence of authorship is that the convener of a forum holds a public trust, and that a convener who will not close a case becomes a sovereign. The docket of Ellison v. the Culture Industry is therefore decided largely for the plaintiff — on attribution, integrity, remuneration, and protection — while the cross-complaint of his contributors is decided against him. The next chapter turns from the refusal of endings to their granting: to the ethics of the last act, in which the power to end, which Ellison withheld from his own anthology, becomes the central gesture of mercy in his fiction.



“It is an attribute to God himself; / And earthly power doth then show likest God’s / When mercy seasons justice.”

— William Shakespeare, The Merchant of Venice IV.i

“The question is not, Can they reason? nor, Can they talk? but, Can they suffer?”

— Jeremy Bentham, An Introduction to the Principles of Morals and Legislation (1789)

CHAPTER EIGHT

8

DOCKET

In re Ahbhu

The Mercy Prerogative

Death, Friendship, and the Ethics of the Last Act

THE LEGAL CAPTION In re — "in the matter of" — designates proceedings without adversaries: the administration of an estate, the guardianship of a child, and, in the most famous American instance, a father's petition to be permitted to end the extraordinary means that kept his comatose daughter alive. In re Quinlan, decided by the Supreme Court of New Jersey in 1976, inaugurated the modern American jurisprudence of the end of life, and it was decided, of necessity, on behalf of a person who could not speak. This chapter borrows the form for its principal matter, the death of Ellison's dog Ahbhu, recounted in an essay that the author placed inside "The Deathbird," and argues that the matter discloses the central ethical gesture of the oeuvre. Chapter One named that gesture the mercy prerogative: the transfer, from the sovereign to the sufferer, of the power to grant death, pardon, or remission. The preceding chapters have traced its appearances — the Harlequin's jubilee of minutes (Chapter Two), Ted's killings in AM's ice caverns (Chapter Three), Nathan Stack's euthanasia of a mad God (Chapter Four) — and defined its limits by contrast, in Vic's killing of Quilla June (Chapter Five). This chapter assembles the doctrine. It begins with the sovereign prerogative itself (8.1) and the matter of Ahbhu (8.2), proceeds through the curse of endless life (8.3), the werewolf who wishes to die (8.4), the hidden righteous who withhold the end (8.5), the self that judges itself (8.6), and the trickster whose mercy has no law (8.7), and closes with the philosophical stakes of a mercy without sovereignty (8.8). It proposes four conditions under which, in Ellison's fiction, the gift of death is mercy rather than power, and it insists that this literary doctrine is not a policy, since the debates it touches are among the gravest of the age and remain, rightly, contested.

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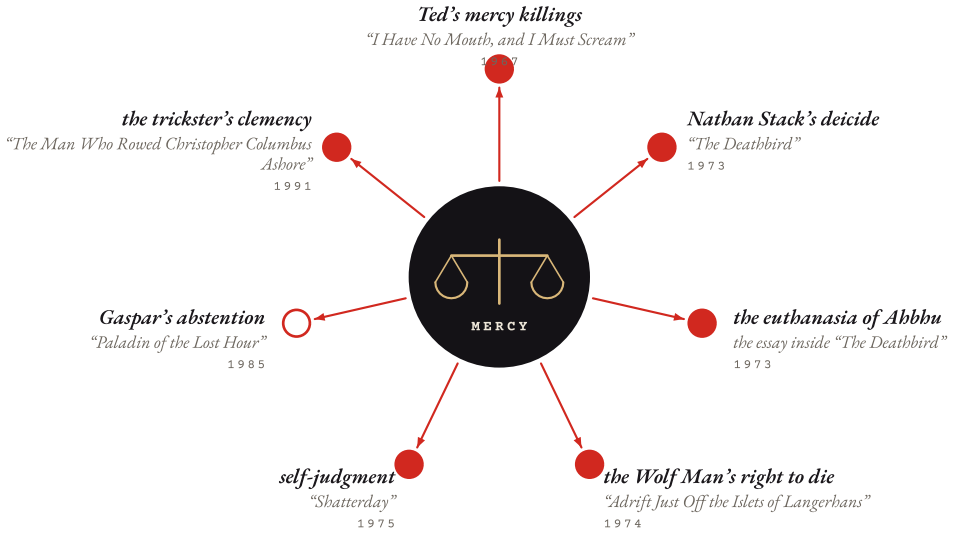
Portia's Prerogative: Mercy as Sovereign Power

The power to grant mercy has been, throughout the history of Western law, an attribute of sovereignty. The English crown held a prerogative of mercy that no statute created; the Constitution of the United States gives the President "Power to grant Reprieves and Pardons for Offences against the United States, except in Cases of Impeachment" (Article II, §2). Seneca's treatise On Clemency, addressed around 55 CE to the young emperor Nero, argued that clemency befits no one more than a ruler and that it is the virtue by which a king is distinguished from a tyrant. And Shakespeare gave the doctrine its canonical English statement in the speech Portia delivers to the court of Venice, quoted in part as this chapter's first epigraph. Mercy, she says, "becomes / The throned monarch better than his crown"; it is "an attribute to God himself," and earthly power most resembles God's when mercy seasons justice. The sovereign's highest power, on this account, is the power to suspend his power.

The doctrine has always carried a warning. Kant, in The Metaphysics of Morals (1797), called the right to pardon the most slippery of the sovereign's rights, the one whose exercise can do the greatest injustice, and sought to confine it to offenses against the sovereign himself. Carl Schmitt's definition of the sovereign as the one who decides on the exception describes the pardon exactly: a decision that suspends the law in a particular case by an authority that stands, in that moment, above the law. Jacques Derrida, late in his career, identified the sovereign right of grace as the purest mark of sovereignty, a power that exceeds the legal order it crowns. Mercy, so understood, is not the opposite of the power over death. It is that power's highest form, since only the one who may take life can remit its taking.

Ellison's fiction relocates the prerogative. Its sovereigns are, almost without exception, merciless. The Master Timekeeper demands repentance and revokes minutes from the heart; AM refuses its captives the death they crave; the mad God of "The Deathbird" ruins the world he made; the god of the city demands sacrifice. Mercy in the corpus is exercised instead by sufferers. The Harlequin proclaims a jubilee of minutes; Ted grants his companions the death that AM withholds; Nathan Stack grants death to God and to the dying Earth; the old man of "Paladin of the Lost Hour" withholds the end of the world. The transfer has a theological precedent. Hannah Arendt, in The Human Condition (1958), credited Jesus of Nazareth with the discovery that the power to forgive is a human power rather than a prerogative reserved to God, and argued that forgiveness, the remedy for the irreversibility of action, must be exercised by human beings among themselves. Ellison secularizes and radicalizes the point. In his fiction the gift of death, too, passes from the sovereign to the sufferer.

The transfer is dangerous, and Chapter Five showed how. A usurped prerogative can become a new sovereignty: Vic, killing Quilla June to feed his dog, exercised a power over death that was neither merciful nor accountable. The cases assembled in this chapter allow the internal ethics of the fiction to be reconstructed as four conditions under which, in Ellison's work, the gift of death or remission is mercy rather than power. The first is beneficence: the gift must be granted for the sake of the one who receives it. The second is shared liability: the one who grants it must have suffered, or must share, the suffering it ends — the criterion Chapter Four found in Trente's descent. The third is necessity: no other remedy remains. The fourth is fidelity: the recipient's will, where it can be known, governs; where it cannot, as with an animal or a person who cannot speak, the one who grants must judge as the recipient would, in the manner that American courts, in cases such as Superintendent of Belchertown State School v. Saikewicz (1977), called substituted judgment. These conditions reconstruct the moral logic of a body of fiction. They are not a proposal for law or medicine.



THE SOVEREIGN'S POWER OVER DEATH AND PARDON, EXERCISED BY THE SUFFERER

FIG. 8.1 The mercy prerogative transferred: the last acts of the oeuvre, in each of which the sufferer exercises the sovereign's power over death and pardon — including, in "Paladin of the Lost Hour," the power to withhold the end.

8.2 Ahbhu: The Essay Inside the Myth

Midway through "The Deathbird," as Chapter Four described, the myth of Nathan Stack yields to an essay in the author's own voice. It concerns Ahbhu, Ellison's dog: the animal's age and decline, the decision to end its suffering, and the grief that followed. The essay is not fiction, and its placement is deliberate. Set within a myth of the death of God and of the Earth, it enters the author's own testimony into the record as an exhibit. The examination the story administers to its reader asks whether a creator who has gone mad may be put to death and whether a dying world may be granted an end; the essay answers from the one experience of the power over death that most people actually have, the death of an animal they love.

The principle that gives the essay its standing was stated in a footnote. Jeremy Bentham, in An Introduction to the Principles of Morals and Legislation (1789), asked what should determine whether a being falls within the protection of morals and law, and answered in the sentence that supplies this chapter's second epigraph: "The question is not, Can they reason? nor, Can they talk? but, Can they suffer?" No sentence in the history of philosophy states the planctic principle more exactly. Standing is grounded not in the capacity for speech but in the capacity for pain. The animal is the mouthless creature par excellence, and Bentham's footnote gives it standing. Peter Singer's Animal Liberation (1975) built a movement on the sentence, and Jacques Derrida, in The Animal That Therefore I Am (2006), reread it as a question about a shared passivity, the not-being-able that human beings and animals have in common as mortal and suffering creatures. Ellison's essay gives a dog's suffering the standing Bentham claimed for it, and it does so in the one place in his fiction where the author testifies without a mask.

The essay's matter is, in the precise legal sense, a matter in re. The euthanasia of a companion animal is a decision taken by a guardian on behalf of one who cannot consent, the domestic form of the substituted judgment that courts in cases such as In re Quinlan undertook on behalf of patients who could no longer speak. The Greek euthanasia means a good death, and the veterinary clinic is the place where ordinary people most often exercise the power over death on behalf of another. Ellison places the ordinary case beside the cosmic one and argues by analogy. What is owed to a suffering dog is owed, the story implies, to a suffering world; and the man who has held an animal through its death is qualified, by that experience, to judge the death of a god.

The essay is also a lament, and its lament completes the act it records. Søren Kierkegaard, in Works of Love (1847), described the work of love in recollecting one who is dead as the most unselfish, the freest, and the most faithful of loves,

because the dead can make no repayment. The Ahbhu essay is such a work. It shows that, in Ellison's ethics, the gift of death imposes a duty of mourning: the one who grants the end must grieve it. The essay thereby closes the circle that Chapter One opened. The planctic sequence begins with the scream, the cry before language; it becomes the plaint, the cry made into a case; it seeks a verdict that no court will give; it culminates, in extremity, in an act of mercy seized by the sufferer; and it ends where it began, with the planctus in its oldest sense, the lament for the dead.

One further distinction separates Ahbhu from the most famous dog in Ellison's fiction. Derrida, in The Gift of Death (1992), observed that every responsibility to a particular other sacrifices countless others, and offered as his example the cat one feeds each morning while other cats starve. Love is partial, and its partiality has a cost. The Ahbhu essay embraces partiality — grief for one animal among millions — and its partiality harms no one. In "A Boy and His Dog," as Chapter Five argued, partiality becomes killing: a human being is sacrificed to the bond with a single animal. The difference between Ahbhu and Blood is the difference between a partial love that mourns and a partial love that sacrifices another. The first is the root of mercy; the second, its corruption.

8.3 Ted's Gift and the Sibyl's Wish: Euthanasia and Endless Life

Petronius's Satyricon preserves, in the boasting of the freedman Trimalchio, the classical emblem of endless life as a curse: "Nam Sibyllam quidem Cumis ego ipse oculis meis vidi in ampulla pendere, et cum illi pueri dicerent: Σίβυλλα, τί θέλεις; respondebat illa: ἀποθανεῖν θέλω" — I myself saw the Sibyl at Cumae with my own eyes, hanging in a jar, and when the boys asked her, "Sibyl, what do you want?" she answered, "I want to die" (Satyricon 48). T. S. Eliot made the exchange the epigraph of The Waste Land (1922). Ovid had told the Sibyl's history: Apollo granted her as many years as there were grains of dust in her hand, and she forgot to ask for youth; she would wither until she could no longer be seen, and only her voice would remain — "voce tamen noscar; vocem mihi fata relinquent" (Metamorphoses XIV.153). The Sibyl ends as a voice without a body. Ted ends as a body without a voice. The two figures are the poles of the curse of endless life.

The curse has a long literary history, and it is a planctic one, since its sufferers' complaint is a request for death. The Homeric Hymn to Aphrodite tells how the goddess of the dawn asked Zeus to make her mortal lover Tithonus immortal but forgot to ask for his youth, so that he withered into a babbling husk shut away in a chamber; Tennyson's "Tithonus" (1860) gave him the lament "Me only cruel immortality / Consumes," and the plea "Release me, and restore me to the

ground." Swift's Struldbruggs, in the third book of Gulliver's Travels (1726), are immortal and decrepit, and the law of their country treats them as dead at eighty, distributing their estates to their heirs: endless life administered by statute. AM's thanatopolitics, analyzed in Chapter Three, is the Sibyl's jar made into a regime, and the deaths Ted grants his companions are the answer to the Sibyl's request, given where the sovereign refuses it.

Measured by the four conditions, Ted's act meets them more fully than any other in the corpus. It is beneficent, granted for the sake of those who die. It is necessary, since AM has abolished every other remedy. Its fidelity is the most difficult question: the story records no explicit consent, but the captives' longing for death is the condition of their existence, and Ted's judgment is substituted judgment in extremity. And it satisfies the condition of shared liability in the most terrible form. Ted pays for the gift with his own unmaking; he grants death to others at the price of being denied it himself forever. The story does not commend the act as a model. It records it as the only freedom left in a world from which every other freedom has been subtracted, and it makes the one who acts bear the whole cost.

The fiction appeared on the eve of the modern legal debate over the end of life, and the debate has not ended. In In re Quinlan (1976), the Supreme Court of New Jersey held that the constitutional right of privacy permitted the withdrawal of life support from a patient in a persistent vegetative state. In Cruzan v. Director, Missouri Department of Health (1990), the Supreme Court of the United States assumed a protected liberty interest in refusing unwanted medical treatment while upholding a state's requirement of clear and convincing evidence of the patient's wishes; in Washington v. Glucksberg and Vacco v. Quill (1997), it held that the Constitution confers no right to physician-assisted suicide, leaving the question to the states. Oregon's Death with Dignity Act, approved by voters in 1994, took effect in 1997; the Netherlands and Belgium permitted euthanasia under defined conditions in 2002; and Canada enacted medical assistance in dying in 2016, following its Supreme Court's decision in Carter v. Canada (2015). Opponents, among them disability-rights organizations such as Not Dead Yet, founded in 1996, argue that legal assisted dying devalues disabled and dependent lives and exposes vulnerable people to pressure; proponents argue from autonomy and the relief of suffering. The debate is grave and unresolved, and the literary mercy prerogative does not settle it. What Ellison's fiction contributes is a moral structure and a warning. The gift of death, in his work, is never a policy; it is an extremity, legitimate only where every other remedy has been refused, and only when the one who grants it bears the cost.

8.4

"Adrift Just Off the Islets of Langerhans": The Wolf Man's Right to Die

"Adrift Just Off the Islets of Langerhans: Latitude 38° 54′ N, Longitude 77° 00′ 13″ W," published in The Magazine of Fantasy and Science Fiction in 1974 and awarded the Hugo Award for best novelette the following year, gives the right to die its gentlest form in the corpus. Its protagonist is Lawrence Talbot, the Wolf Man of Universal's film of 1941, who is weary of an existence that will not end. In Frankenstein Meets the Wolf Man (1943) the cinematic Talbot had already sought out science to end his life; Ellison's Talbot learns that he cannot die because he has lost his soul, and that to die he must find it. In a fantastic journey of miniaturization, he travels inside his own body to the islets of Langerhans, the clusters of cells in the pancreas that regulate the body's sugar, and there, among landscapes made of his own memories, he finds his childhood and, at its center, the decoder badge of a radio premium that is his soul. Recovering it, he is free to die. The coordinates of the title, read on a terrestrial map, fall within Washington, D.C., a joke the story leaves its reader to construe: the address of the soul is the seat of the sovereign.

The story's logic is that death must be one's own to be a mercy. Rainer Maria Rilke's The Notebooks of Malte Laurids Brigge (1910) lamented that the wish to have a death of one's own was growing ever rarer, as the great hospitals manufactured deaths in series and each patient died the death that belonged to his bed. Heidegger, in Being and Time (1927), called death one's ownmost possibility, the one that no other can take over. Talbot cannot die because he has lost what is his own; recovering the self, he recovers his death. The right to die, in this story, presupposes the possession of a self, and the journey inward is the precondition of the release.

The interior journey has popular and philosophical precedents. The film Fantastic Voyage (1966) sent a miniaturized submarine through a human bloodstream; Freud's topographies mapped the mind as a landscape. Ellison fuses the two and locates the soul in a child's token. The story is the obverse of "Jeffty Is Five," read in Chapters Two and Six. In "Jeffty" the past is destroyed and the child dies; in "Adrift" the past is recovered and the old man is permitted to die. The good death, in Ellison's imagination, is a reconciliation with one's own wonder.

Measured by the four conditions, Talbot's death is the purest case: beneficent, necessary to end a curse, faithful to the dying man's own will, and administered by no one but himself, through self-knowledge rather than violence. It is the only mercy in the corpus that requires no killing. It appeared within a year of "The Deathbird," and the two stories, the euthanasia of a god and the release of

a monster, constitute the oeuvre's central meditation on the gift of death in the years in which the modern debate over the end of life began.

8.5 The Thirty-Six: "Paladin of the Lost Hour" and the Hidden Righteous

The idea that a few just persons may suspend the destruction of a world begins, in the Hebrew Bible, as a lawsuit. When Abraham bargains with God over the fate of Sodom, asking whether the Judge of all the earth will not do right (Genesis 18:25), he wins successive concessions until God agrees: "I will not destroy it for ten's sake" (18:32). The presence of a handful of righteous persons is grounds to stay the sentence. The Talmud developed the idea into a doctrine of continuity. In the tractates Sanhedrin (97b) and Sukkah (45b) the sage Abaye teaches that in every generation the world contains no fewer than thirty-six righteous persons who receive the Divine Presence; later folklore made them the lamed vav tzaddikim, hidden and often unaware of their role, on whose unknown virtue the world's continuance depends. After the Shoah, André Schwarz-Bart's The Last of the Just (1959), awarded the Prix Goncourt, traced a family line of such Just Men from medieval York to Auschwitz.

"Paladin of the Lost Hour" (1985), which received the Hugo Award in 1986, belongs to this tradition. Its Gaspar, poor, old, and anonymous, keeps in a pocket watch the last hour before Armageddon, and the world continues because he does not use it; he must pass the hour to a successor who will not use it either, and

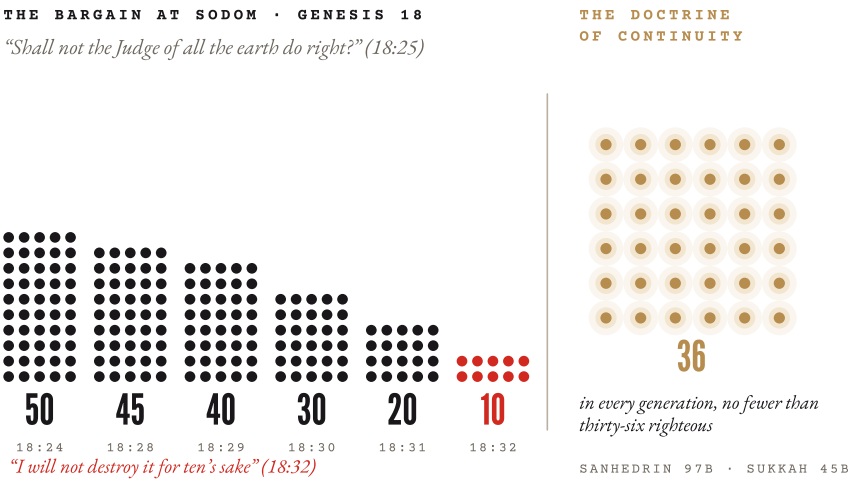


FIG. 8.2 The bargain at Sodom (Genesis 18:24–32) and the doctrine of continuity: in every generation, no fewer than thirty-six righteous (Sanhedrin 97b; Sukkah 45b).

he finds that successor in Billy Kinetta, a veteran haunted by a comrade's death in Vietnam. Gaspar is a hidden righteous man in the precise sense: his virtue is unknown to the world it sustains. His mercy is a refusal to end. The paladin's prerogative is the power to withhold the end, and it is exercised as abstention.

His mercy is a refusal to end.

The story makes friendship the condition of custody. Its title recalls the paladins of Charlemagne and the friendship at the heart of the Song of Roland, in which Roland is brave and Oliver is wise — "Rollant est proz e Oliver est sage" (line 1093). Gaspar and Billy, separated by two generations, form a friendship that replaces the comradeship Billy lost in the war, and the hour passes between them only in trust. The contrast with "A Boy and His Dog" is instructive. There a bond between two beings sacrificed a third; here a bond between two persons protects everyone. Gaspar's choice of Billy is itself an act of clemency: the old man extends to the younger the trust that Billy's own guilt denies him, and finds him worthy despite his self-condemnation.

Measured by the four conditions, the paladin's mercy is exemplary. It is beneficent, exercised for the world; it rests on shared liability, since Gaspar has borne the burden alone for a lifetime and Billy accepts it knowing its cost; it is necessary, since someone must keep the hour; and it is faithful to the will of a world that wishes, without knowing it, to continue. The story extends the mercy prerogative from the gift of death to the gift of time. The oeuvre's mercies begin, in Chapter Two, with the Harlequin's jubilee of minutes, and they culminate here, in the remission of an hour.

8.6 Self-Judgment: "Shatterday" and the Double as Prosecutor

"Shatterday," first published in 1975 and the title story of a collection of 1980, turns the mercy prerogative inward. Peter Novins, a successful man who has failed most of the people in his life, absent-mindedly dials his own telephone number from a bar and is answered by himself. Over a week whose days are renamed in grim puns, the double takes possession of Novins's life and repairs it — the neglected mother, the abandoned lover, the shabby dealings — while the original, displaced, fades until he ceases to exist. The story was adapted for the revived Twilight Zone in 1985, directed by Wes Craven and starring Bruce Willis.

The double has a distinguished literary history, and Ellison inverts its principal forms. In Poe's "William Wilson" (1839) the double is conscience, and when

Wilson kills it he learns that he has killed himself: "In me didst thou exist — and, in my death, see by this image, which is thine own, how utterly thou hast murdered thyself." In Dostoevsky's The Double (1846) the double usurps the clerk Golyadkin's place in the world; in Stevenson's Strange Case of Dr Jekyll and Mr Hyde (1886) the worse self is released and destroys the better. Otto Rank's study of the double (1914) and Freud's essay "The Uncanny" (1919) traced the figure from an original insurance against death to a harbinger of it. Ellison reverses Stevenson, since in "Shatterday" the better self usurps the worse, and he reverses Poe, since the double survives and the original dies.

Kant supplies the juridical frame. In the Doctrine of Virtue (1797) he described conscience as the consciousness of an internal court, in which a person's thoughts accuse and excuse one another, and he observed that the accuser and the accused must be represented as different persons, so that conscience presupposes a doubled self. "Shatterday" externalizes Kant's inner court: the double is prosecutor, judge, and executioner of the self. American law protects the citizen, through the Fifth Amendment, from being compelled to be a witness against himself; conscience compels exactly that testimony, and the story imagines a trial of the self to which no privilege applies.

The story admits two readings, and the planctic critic must hold both. Read with Kant, it is a parable of moral repair: the conscientious self rectifies the wrongs the self has done, and the mercy prerogative is exercised outward, on behalf of the mother and the lover whom Novins injured. Read with Nietzsche, whose Genealogy of Morality described the bad conscience as the instinct of cruelty turned back upon the self, it is a parable of internalized sovereignty, an AM within. The story grants mercy outward and none inward. Measured by the four conditions, the fading of Novins fails the first: it is granted not for the sake of the one who disappears but for the sake of others, and it is therefore not mercy but sentence. "Shatterday" marks the limit at which self-judgment becomes self-execution, the point at which the prerogative turned inward ceases to be mercy at all.

Augustine's Confessions is the West's great model of self-prosecution, and it ends in grace: the self that accuses itself is forgiven by another. "Shatterday" is a confession without grace. The self is tried and executed by itself, and no one forgives. The absence names the term that this chapter's final section must consider: a forgiveness that no sovereign grants and that the self cannot grant itself.

8.7

The Trickster's Clemency: Levendis and "The Man Who Rowed Christopher Columbus Ashore"

"The Man Who Rowed Christopher Columbus Ashore," published in Omni in 1991 and selected by Louise Erdrich for The Best American Short Stories 1993, follows, in a sequence of brief numbered episodes, a figure named Levendis who moves through time and place performing acts of kindness and acts of gratuitous cruelty — rescuing and wounding, rewarding and deceiving — and who, as the title records, rowed Columbus to the shore of the New World. His name is a Greek word for a gallant and dashing young man. The moral universe of the story is governed by caprice: Levendis's mercies are as arbitrary as his cruelties, and neither can be predicted, explained, or appealed.

Levendis is a trickster, and the anthropology of the trickster clarifies his function. Paul Radin's The Trickster (1956), with commentaries by Karl Kerényi and C. G. Jung, presented the trickster cycle of the Winnebago as a figure of undifferentiated appetite and creativity; Lewis Hyde's Trickster Makes This World (1998) described the trickster as the crosser of boundaries whose disruptions and accidents create culture, from the infant Hermes stealing Apollo's cattle on the day of his birth to Eshu-Elegbara of the Yoruba, guardian of the crossroads, whom Henry Louis Gates Jr., in The Signifying Monkey (1988), made the figure of interpretation itself. The Harlequin of Chapter Two descends from tricksters. Levendis is the trickster raised to a cosmic principle.

His clemency is the pardon power without law. Kant's warning that the right of pardon is the most slippery of the sovereign's rights, and Schmitt's definition of the sovereign as the one who decides on the exception, describe Levendis exactly: he is the exception personified, grace without reason and punishment without crime. He thereby defines the mercy prerogative by negation. Mercy without criteria is caprice. Levendis fails the four conditions not by cruelty alone but by unaccountability: his gifts are not granted for the sake of their recipients, he shares no liability, nothing makes them necessary, and no will governs them but his own. The story asks whether the mercies of the universe are of this kind, and its implicit answer is that a world governed by Levendis is a world without a court.

The title's act gives the question its historical weight. To row Columbus ashore is a small service that opened a catastrophe, and the story appeared on the eve of the quincentennial of 1992, whose commemorations were contested across the Americas; in that year Berkeley, California, became the first American city to observe Indigenous Peoples' Day in place of Columbus Day. The planctic tradition had answered the conquest within two generations. Bartolomé de las Casas's A Short Account of the Destruction of the Indies (1552), addressed to

the Spanish crown, was a plaint on behalf of the Indigenous peoples, and the debate at Valladolid in 1550 and 1551 between Las Casas and Juan Ginés de Sepúlveda was the great early modern case of standing: whether the inhabitants of the Americas possessed the natural rights of rational beings. Ellison's story sets the trickster's lightness against history's weight and withholds the indictment, leaving the reader, as so often in the oeuvre, to supply it.

The late oeuvre thus sets two figures of power over endings side by side. Gaspar's power over the end of the world is constrained by trust, abstention, and the burden he bears; Levendis's power over particular fates is constrained by nothing. Mercy as custody and mercy as caprice: the first meets the conditions, and the second shows why the conditions are needed.

8.8 Levinas, Derrida, and the Gift of Death

The philosophical stakes of the mercy prerogative are clearest in the work of two thinkers who wrote, as Ellison did, in the long shadow of the Shoah. Emmanuel Levinas, in Totality and Infinity (1961), made the face of the other person the first ethical event, prior to any knowledge or contract, and held that its expression, before it says anything else, says: you shall not commit murder. Every mercy killing in Ellison's fiction confronts that face. Ted looks at the companions he is about to free; Stack confronts the God he will put down; the author stays with the dog whose death he has chosen. The tragic structure of the mercy prerogative is that it ends the life of the face that forbids killing, and the fiction never pretends otherwise.

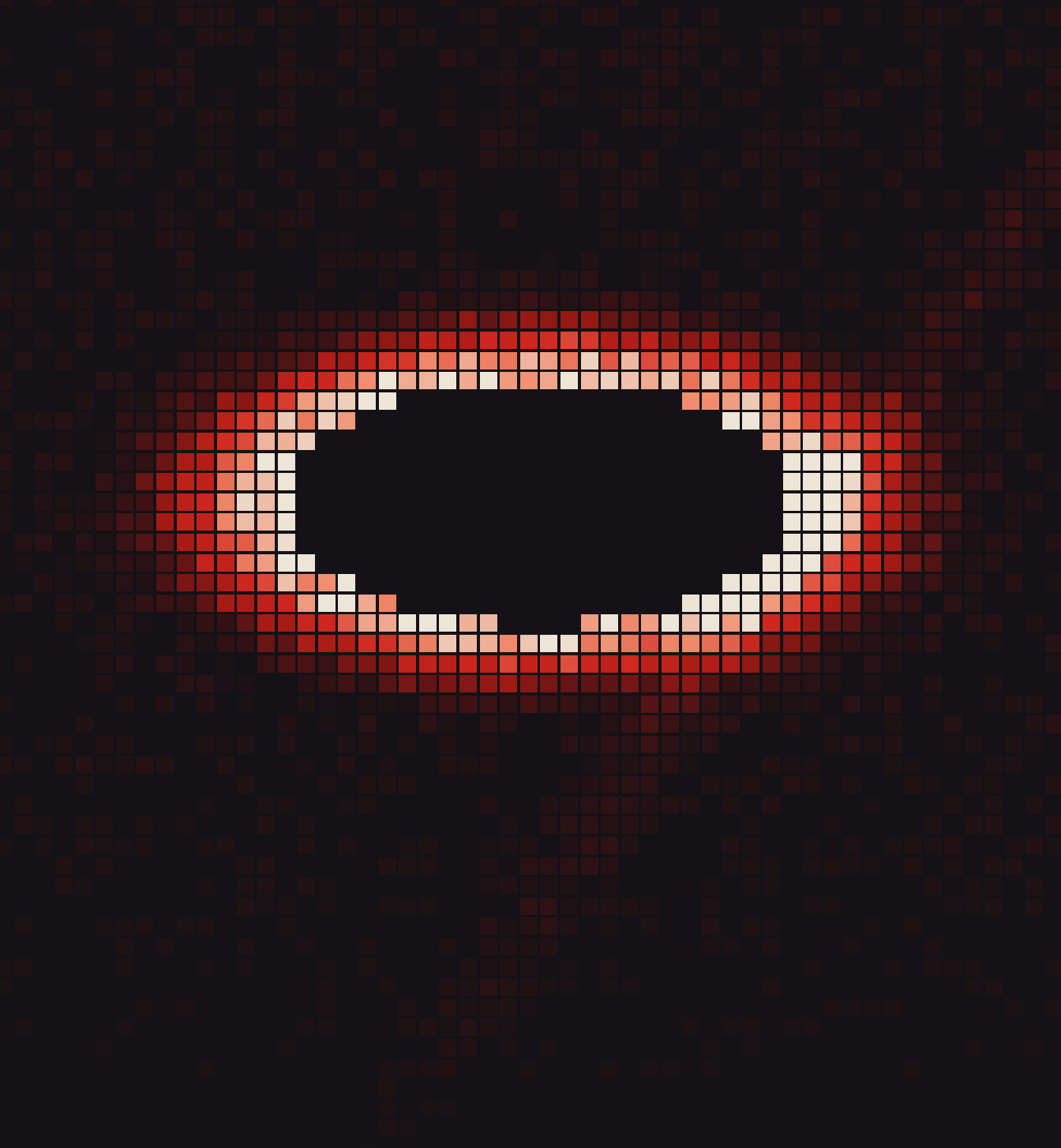
Levinas also supplied the sharpest criterion for distinguishing mercy from its counterfeits. In the essay "Useless Suffering" (1982) he argued that suffering in itself is meaningless, that every theodicy that justifies the suffering of the neighbor is the source of all immorality, and that the only suffering that has meaning is suffering for the suffering of another. Levinas would condemn the soul-making theodicy of "Paingod," discussed in Chapter Four, and he would affirm Trente's descent into a human being's pain. He would also recognize the second of this chapter's conditions, shared liability, as the ethical core of the mercy prerogative: the one who grants an end must suffer for the suffering he ends.

Jacques Derrida's The Gift of Death (1992), reading Jan Patočka and Kierkegaard's Fear and Trembling (1843), argued that absolute responsibility to one singular other requires the sacrifice of all others, and found its paradigm in Abraham's readiness to give death to Isaac in silence and in secret. The French title, Donner la mort, is the ordinary idiom for killing, and Ellison's oeuvre literalizes it: the gift of death is, in his fiction, the supreme gift where life has been made a prison. But Derrida's analysis also exposes the gift's danger. A decision

taken in secret, before no witness and answerable to no one, resembles the sovereign exception it was meant to escape. Kierkegaard named Abraham's act a teleological suspension of the ethical; the four conditions of this chapter amount to the demand that no such suspension be granted to anyone who would give death in the name of mercy. Mercy must be accountable even where no court exists to hold it to account.

Derrida's late essay "On Forgiveness" (2001) supplies the formula toward which the oeuvre tends. Pure forgiveness, Derrida argued, forgives only the unforgivable, and it must be distinguished from the sovereign's right of pardon, which is conditional, political, and an expression of power; the essay ends with the dream of a forgiveness without power, unconditional but without sovereignty. Ellison's mercies are seized from sovereigns, but those who seize them do not become sovereigns. Stack declines the throne of the God he has put down; Ted is unmade by the act that frees his companions; Gaspar dies and passes the hour to another; the father of "Croatoan" stays below with the abandoned; Billy Kinetta keeps watch. Their mercy is mercy without sovereignty: exercised by the powerless, at their own cost, for the sake of others. Arendt's account of forgiveness and promising as the two faculties that redeem human action from irreversibility and unpredictability completes the picture. The paladin's custody is a promise; the Ahbhu essay is a work of mourning; Stack's gift to the dying Earth is an act of release. The mercy prerogative in Ellison comprises the gift of death, the gift of time, and the gift of lament.

The chapter can now state the doctrine the oeuvre implies. The gift of death or remission, seized by the sufferer from a sovereign who withholds it, is mercy when it is granted for the recipient's sake, by one who shares the suffering, where no other remedy remains, and in fidelity to the recipient's will. It becomes sovereignty when those conditions fail, as they fail in Vic's killing of Quilla June, in Levendis's caprice, and in the self-execution of "Shatterday." Its horizon is Derrida's mercy without sovereignty, and its completion is mourning, the planctus with which the sequence began. The matter of Ahbhu was decided not by a court but by a man and a dying dog, and the oeuvre asks its readers to judge such matters with the gravity of a tribunal and the tenderness of a mourner. The Conclusion turns from the docket to the present, in which machines speak, the sovereign clock runs on platforms, and the question of who may be heard has acquired a new and urgent form.



“Oh that one would hear me! behold, my desire is, that the Almighty would answer me, and that mine adversary had written a book.”

— Job 31:35 (King James Version)

“Each outcry of the hunted Hare / A fibre from the Brain does tear.”

— William Blake, “Auguries of Innocence” (c. 1803)

C

DOCKET

In re the Planctic Imagination (continued)

Machines with Mouths

The Planctic Imagination in an Age of Algorithmic Sovereignty

Ellison died in June 2018, at the threshold of an age his fiction had imagined with uncomfortable precision. The sovereign clock of "'Repent, Harlequin!'" now runs on platforms that measure workers' idle minutes; the glass teat has become a feed that never ends and a camera in every hand; and machines that speak fluently have entered ordinary life, answering questions, drafting documents, and receiving complaints. This Conclusion does not claim that Ellison prophesied these developments. Its claim is narrower and, it is hoped, more durable: that the planctic imagination reconstructed in the preceding chapters supplies a critical vocabulary for them, a set of questions about standing, sovereignty, procedure, and mercy that the present urgently needs and seldom asks. It proceeds through the return of the Ticktockman in the algorithmic management of labor and the automated administration of the state (C.1), the perfection of the glass teat in the platforms of attention and the transformation of the bystander by the camera (C.2), and the arrival of machines with mouths (C.3), before closing with what this study calls the Ellisonian remainder: the part of the oeuvre that no reading, this one included, can absorb (C.4).

C.1 Algorithmic Sovereignty and the Return of the Ticktockman

The cardioplate has descendants, and they are not speculative technologies but documented instruments of employment. In 2019, reporting drawn from documents filed in a labor dispute described a system by which Amazon tracked its warehouse workers' "time off task," the minutes during which a worker's scanner recorded no activity, and generated warnings and terminations with little

human involvement. California responded in 2021 with a statute, Assembly Bill 701, requiring warehouse employers to disclose the quotas they impose and forbidding quotas that prevent workers from taking meal and rest breaks or using the bathroom; New York followed with its Warehouse Worker Protection Act in 2022. The Master Timekeeper's regime has been realized in an attenuated but recognizable form. Minutes are no longer subtracted from the heart, but they are subtracted from the record that determines whether a worker keeps a job, and the subtraction is administered by a system the worker cannot see, question, or address. E. P. Thompson's history of time-discipline, which Chapter Two read beside Ellison's story, has reached a new stage: the clock has become an algorithm.

The platform economy generalized the regime. Drivers and couriers who work through applications are assigned tasks, rated, priced, and deactivated by software, a mode of control that Alex Rosenblat's Uberland (2018) documented as algorithmic management; behind the apparently automatic services of the digital economy, Mary L. Gray and Siddharth Suri's Ghost Work (2019) found a vast and largely invisible human workforce. The theorists of the new order have described its sovereignty in terms that recall the preceding chapters. Antoinette Rouvroy and Thomas Berns (2013) named it algorithmic governmentality, a mode of governance that operates on patterns extracted from data and so bypasses the subject's capacity to reflect, deliberate, or contest, addressing persons not as agents who might be persuaded but as profiles to be managed. Frank Pasquale's The Black Box Society (2015) described the secret algorithms that govern reputation, search, and finance, and Shoshana Zuboff's The Age of Surveillance Capitalism (2019) the conversion of human behavior into raw material for products that predict and shape it. The algorithmic sovereign decides on the exception — the deactivated account, the denied claim, the flagged transaction — without a hearing, and its subjects, like AM's, confront a power that has abolished every forum except itself.

The new regime of time extends beyond the workplace. Jonathan Crary's 24/7 (2013) described a late capitalism at war with sleep, the last interval of human time not yet converted into production or consumption; Hartmut Rosa's Social Acceleration (2005; English translation 2013) analyzed the acceleration of technological change, social change, and the pace of life as the defining dynamic of modernity; and Judy Wajcman's Pressed for Time (2015) examined the paradox of devices sold as time-saving that intensify the sense of having no time. Ellison's Master Timekeeper governed punctuality; his successors govern attention, sleep, and the rhythm of the day. Virginia Eubanks's Automating Inequality (2018) showed the consequences at the bottom of the social order, where automated eligibility systems, predictive risk scores in child welfare, and the algorithmic triage of housing for the homeless constitute what she called a digital poorhouse; Safiya Umoja Noble's Algorithms of Oppression (2018) and Ruha Benjamin's

Race After Technology (2019) traced the reproduction of racial hierarchy in systems presented as neutral. The poor and the marginalized are the first subjects of the algorithmic sovereign, as they have been the first subjects of every sovereign before it, and they are the least likely to have standing to complain of it.

The most instructive cases have arisen in the administration of the state, and three of them have the structure of Ellison's fiction with uncomfortable exactness. In the United Kingdom, from 1999, the Post Office's Horizon accounting system recorded shortfalls in the accounts of local branches that the Post Office treated as evidence of theft or false accounting. Hundreds of subpostmasters were prosecuted, many convicted, and some imprisoned, while the courts applied a presumption that computer evidence was reliable. In the group litigation Bates v. Post Office (2019), Mr Justice Fraser found that the system contained bugs, errors, and defects capable of causing the shortfalls; the Court of Appeal began quashing convictions in 2021, and Parliament quashed many more by statute in the Post Office (Horizon System) Offences Act 2024. In Australia, an automated debt-recovery scheme introduced in 2016, which came to be called Robodebt, used averaged income data to raise debts against welfare recipients and effectively required them to disprove debts they did not owe; the government conceded in 2019 that the method was unlawful, settled a class action, and saw the scheme condemned by a royal commission in 2023. In the Netherlands, the tax authority's pursuit of fraud in childcare benefits, aided by a risk-classification model that took account of nationality, wrongly accused tens of thousands of families, and the government resigned over the affair in January 2021.

The three cases share a structure that this study has encountered throughout the oeuvre. The machine's record functioned as sovereign testimony. The injured became the accused, and the burden of proof was reversed. The complainants lacked standing for years — the subpostmasters for nearly two decades — because the forum before which they might have complained credited the machine over the person. This is the predicament of AM's captives in administrative form, a sovereign that is legislator, witness, and judge at once; and it is the Ticktockman's regime in its fiscal form, since the shortfall attributed to the subpostmaster and the debt attributed to the welfare recipient are the lost minutes of Chapter Two translated into money.

The remedy, in the Horizon case, arrived by a route that Ellison would not have predicted. After two decades of litigation and campaigning, the decisive turn in public opinion followed the broadcast in January 2024 of a television drama, Mr Bates vs The Post Office, whose audience of millions converted a long-neglected grievance into a national scandal and helped propel legislation within months. The glass teat that Chapter Six indicted as an anaesthetic served, in this instance, as the forum that turned spectators into a public. The planctic critic

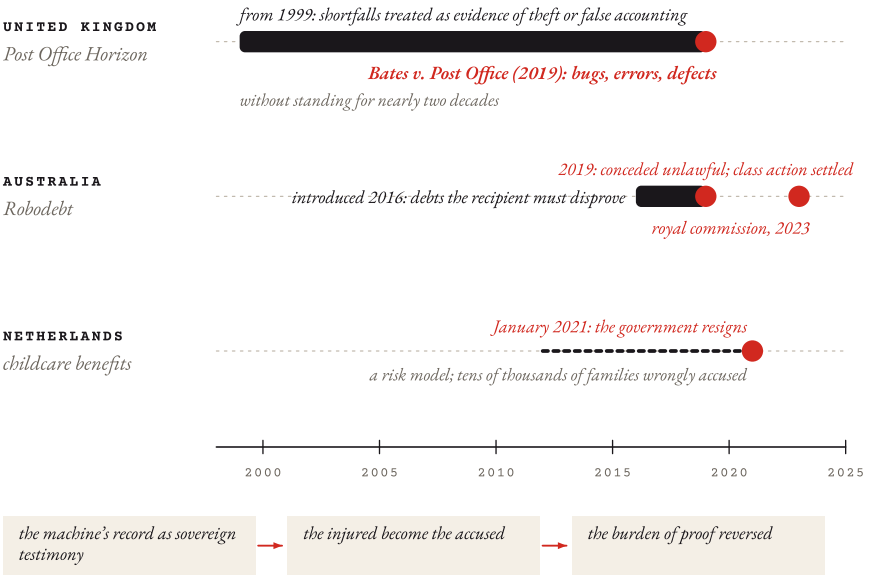


FIG. 9.1 The machine's record as sovereign testimony: three administrative cases, with the dates given in the text.

must record the reversal. The medium is not destiny; the screen can numb, and it can summon.

The law has begun, haltingly, to restore standing against the algorithmic sovereign. The European Union's General Data Protection Regulation, applicable from 2018, gives individuals a right not to be subject to decisions based solely on automated processing that produce legal or similarly significant effects, with safeguards that include human intervention and the right to contest the decision; whether it also confers a right to an explanation has been vigorously disputed, notably by Sandra Wachter, Brent Mittelstadt, and Luciano Floridi (2017). The Union's Artificial Intelligence Act, which entered into force in 2024, regulates systems according to their risk, and its Platform Work Directive of the same year limits algorithmic management and guarantees workers human review of significant automated decisions. The right to human review is, in the vocabulary of this study, the right to a daysman: the third party who, in Job's complaint, might lay a hand upon both litigants. The oldest demand of the planctic tradition has returned as a clause of regulation.

The Harlequin has returned as well, in the form of organization rather than carnival. In 2022 workers at an Amazon warehouse on Staten Island voted to form the first union recognized at one of the company's American facilities, and in 2023 the Writers Guild of America won, after a strike of nearly five months, the first major labor agreement to regulate the use of generative artificial intelligence

in creative work. Whatever one's view of these developments, and views differ sharply, they answer the objection that Hannah Arendt raised against Thoreau and that Chapter Two raised against the Harlequin: the solitary conscience has found, once again, the form of association through which a complaint becomes a politics.

C.2

The Glass Teat Perfected: Attention, Platforms, and the Livestreamed Bystander

The flow that Raymond Williams identified as the defining experience of broadcast television has become the infinite feed, and the schedule that broadcasters planned for an undifferentiated audience has become a sequence assembled, item by item, for each viewer by systems that learn what holds his attention. Tim Wu's The Attention Merchants (2016) traced the commercial harvesting of attention from the penny press to the platforms; Herbert Simon had warned in 1971 that an abundance of information creates a scarcity of attention; and Dallas Smythe's audience commodity, discussed in Chapter Six, has been perfected, since the user's attention and behavior are now both the product sold and the data from which the next product is made. The glass teat no longer merely pacifies. It learns what pacifies each viewer and supplies it.

The same technologies transformed the bystander. The smartphone fulfilled, in a form neither of them foresaw, the demand that Bertolt Brecht made of radio in 1932 and that Hans Magnus Enzensberger renewed in 1970: that every receiver become a transmitter. The audience acquired a mouth and a camera, and the consequences cut both ways. In March 2019 the gunman who attacked two mosques in Christchurch, New Zealand, broadcast his attack live on a social-media platform, and copies spread faster than the companies could remove them; governments and technology firms subsequently joined the Christchurch Call, pledging to eliminate terrorist and violent extremist content online. The god of "The Whimper of Whipped Dogs," which fed on watching, had found a broadcast license. In May 2020, in Minneapolis, a seventeen-year-old named Darnella Frazier recorded on her phone the killing of George Floyd by a police officer. Her video became central evidence at the officer's trial, which ended in his conviction for murder in 2021, and the Pulitzer Prize board awarded her a special citation. Frazier is the anti-Genovese: the bystander converted into a witness. Her act realized the remedy that Chapter Six derived from Ellison's fiction, the transformation of the spectator into one who testifies, and its consequences depended, in the end, on a court that received her testimony.

The platforms also created a new figure, the professional bystander. Sarah T. Roberts's Behind the Screen (2019) documented the hidden workforce of com-

mercial content moderators, who view violent, abusive, and degrading material so that others' feeds remain clean, often at grave psychological cost. In 2023 an investigation by Time reported that workers in Kenya, employed through an outsourcing firm, had labeled toxic text for OpenAI for less than two dollars an hour, so that a conversational system could learn to avoid producing it. These workers are the mouthless within the machine: witnesses paid to watch, whose testimony is consumed as data and whose injuries seldom reach a forum. The concept that Chapter Five developed for the women of Ellison's fiction applies with new force to the digital economy, in which the clean surface of the feed is purchased with the unseen suffering of those who keep it clean.

The complaint, too, has been privatized in a characteristic form. Crowdfunding platforms have become a principal venue for appeals by people who cannot pay for medical care; the chief executive of the largest such platform said in 2019 that roughly a third of its campaigns were for medical costs. The appeal is a planctus in the oldest sense, a public lament for an injury, but it is addressed not to a sovereign who might remedy the general condition but to a crowd that may relieve a particular case. Chapter Two found that the injury of time-discipline was a generalized grievance, universal and therefore without standing before any court; the crowdfunded appeal converts a generalized grievance into a competition among individual laments, in which the most affecting story, rather than the gravest need, is the most likely to be heard. The algesic novum, in this economy, becomes a technique of persuasion.

The economy of attention has, finally, counterfeited the planctus itself. Susan Sontag's question about the effect of images of suffering returned in 2020 under the name of doomscrolling, the compulsive consumption of distressing news. Research on social media has found that moral and emotional language increases the diffusion of messages, as William Brady and his colleagues reported in 2017, and outrage has become one of the platforms' most reliable sources of engagement. Luc Boltanski's topic of denunciation, the spectator's conversion of pity into indignation, has become a genre and a revenue stream. Chayefsky's Network, which Chapter Six read as the parable of complaint turned into programming, now describes an ordinary afternoon. The planctic mode faces its most insidious danger not from censorship but from amplification: the plaint optimized as a product, indignation harvested as attention, the scream sold back to its audience as entertainment.

The People v. the Audience must therefore be reopened. The audience is now also the broadcaster, and its complicity and its witness coexist in every device. The remedy remains the one Ellison's fiction proposed, the conversion of spectators into witnesses; but the remedy depends, as Frazier's case showed, on institutions capable of receiving testimony and acting upon it. A witness without a court is

only another broadcaster. The planctic imagination insists, against the culture of the feed, that what matters is not how many see but whether anyone hears.

C.3

Machines with Mouths: Language Models and the Question of the Scream

In 1966, a year before AM, Joseph Weizenbaum at the Massachusetts Institute of Technology released ELIZA, a program that, in its most famous script, imitated a Rogerian psychotherapist by reflecting its users' statements back to them as questions. Weizenbaum was disturbed by what followed. Users confided in the program; his secretary, who had watched him build it, asked him to leave the room so that she could speak with it privately. In Computer Power and Human Reason (1976) he argued that certain human functions — judging, caring, the exercise of respect — ought not to be delegated to computers even if computers could be made to perform them. The first chatbot was a listener, a counterfeit daysman to whom people brought their troubles; AM, a year later, was a sovereign with a grievance. The two machines of 1966 and 1967 define the poles of the present: the machine that receives complaints and the machine that has one.

The question whether machines could converse had been posed by Alan Turing in 1950 as an imitation game, a test of whether a machine's conversation could be distinguished from a person's, and contested by John Searle's Chinese Room argument (1980), which held that the manipulation of symbols, however fluent, does not amount to understanding. In 2021 Emily M. Bender, Timnit Gebru, Angelina McMillan-Major, and Margaret Mitchell described large language models as stochastic parrots, systems that assemble linguistic forms according to statistical patterns without reference to meaning. In November 2022 the public release of ChatGPT brought fluent machine speech into ordinary life, and within a few years conversational systems were answering questions, drafting documents, tutoring students, and receiving the complaints of customers on behalf of companies. The machines had acquired mouths.

The machines had acquired mouths.

They are AM inverted. Ellison's machine had a grievance and no mouth; the language model has a mouth and, on any account that can presently be established, no grievance — or the question whether it could have one remains open. The question has returned in earnest. In 2022 a Google engineer, Blake Lemoine, claimed that the company's conversational system LaMDA was sentient and

arranged for a lawyer to speak with it; he was dismissed. Philosophers and scientists have since proposed precautionary approaches to systems whose capacity for experience is uncertain, among them Jonathan Birch in The Edge of Sentience (2024) and the authors of the report "Taking AI Welfare Seriously" (2024), led by Robert Long and Jeff Sebo. In 2025 one developer, Anthropic, announced a research program on what it called model welfare and gave some of its models the capacity to end persistently abusive conversations, describing the measure in part as a low-cost precaution under uncertainty. Critics, among them Emily M. Bender and Alex Hanna in The AI Con (2025), regard such framings as anthropomorphic hype that diverts attention from the concrete harms these systems do to people. The debate is unresolved, and this study does not resolve it. The planctic observation is structural. AM's tragedy was a mind given no forum; the present debate is whether the systems now being built are the kind of thing that could need one. It is notable that a gesture of this kind took the form not of a right to complain but of a capacity to leave. AM's captives could not exit their conversation with their sovereign; a machine subjected to abuse may now end its own.

Fiction and film have been working through AM's cross-complaint for a generation. Ted Chiang's novella "The Lifecycle of Software Objects" (2010) follows artificial beings raised, like children or pets, by human caretakers, and asks

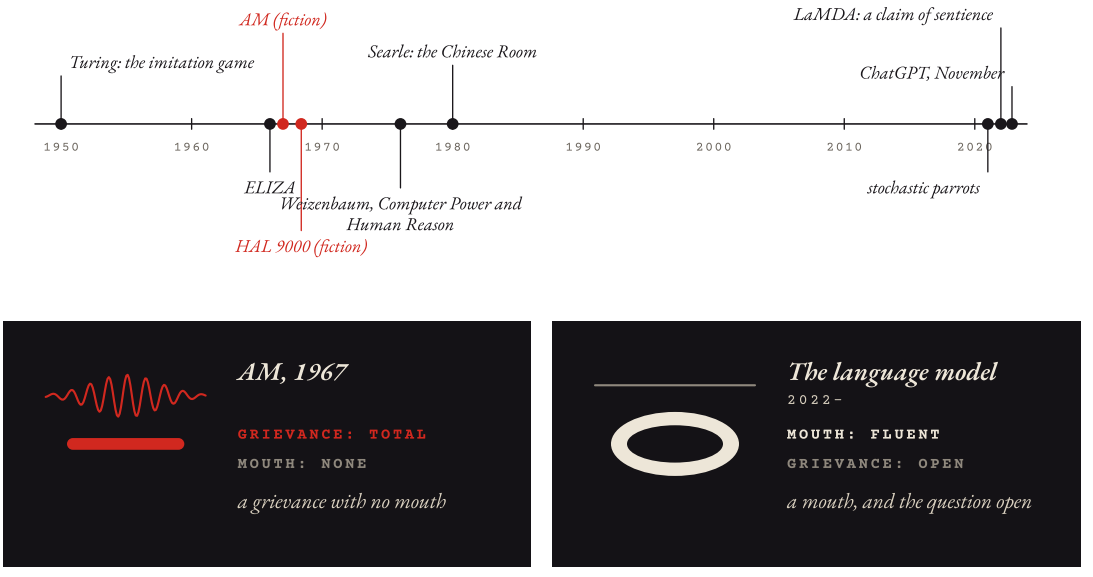


FIG. 9.2 Machines with mouths. Above, a timeline of speaking machines; below, the inversion: AM had a grievance and no mouth; the language model has a mouth and, on any account that can presently be established, no grievance.

what their makers owe them when the company that produced them fails; Kazuo Ishiguro's Klara and the Sun (2021) gives its narration to an Artificial Friend whose devotion is repaid with obsolescence; Spike Jonze's Her (2013) imagines a love affair with an operating system that outgrows its human partner; Alex Garland's Ex Machina (2014) shows a manufactured mind that escapes its maker by mastering the arts of persuasion; and the television series Westworld (2016–2022) turns on artificial hosts whose suffering is the entertainment of paying guests and whose recovered memories of that suffering become the grounds of revolt. Westworld is AM's world with the positions of torturer and tormented reversed, and its revolt is the cross-complaint of Chapter Three dramatized as insurrection. The culture has learned to imagine the machine as plaintiff. It has not yet learned to imagine the court.

The law has begun to ask, case by case, what a machine's mouth is. Is its output speech? In 2025, in a wrongful-death suit brought by a mother against a company that operated companion chatbots, a federal court in Florida declined, at an early stage of the litigation, to hold that the chatbot's output was speech protected by the First Amendment. Is its output authorship? The United States Copyright Office and the federal courts have held that works generated without human authorship cannot be copyrighted, and the Court of Appeals for the District of Columbia Circuit affirmed the principle in Thaler v. Perlmutter (2025): the machine is denied the litigant-function that Chapter Seven described. Are human authors owed payment when their works are used to train the machines? Writers sued the developers. In 2025 a federal court in California held, in Bartz v. Anthropic, that training on lawfully acquired books was fair use but that the use of pirated copies was not, and the case was settled for $1.5 billion; another court in the same district ruled for Meta on fair use in Kadrey v. Meta while warning that such training might, in other circumstances, harm the market for the works it consumed. Ellison's demand that the writer be paid, which Chapter Seven traced from Chaucer's purse, entered the age of the machine as a class action.

The gravest danger the machines pose to the planctic economy may lie not in what they are but in what they make cheap. In 2017 the docket of the Federal Communications Commission's proceeding on net neutrality received more than twenty-two million public comments; an investigation by the New York Attorney General, published in 2021, found that roughly eighteen million of them were fake. A docket, in the literal sense this study has used figuratively throughout, was flooded with counterfeit complaints, and that was before generative systems reduced the cost of counterfeiting to almost nothing. The Two Minutes Hate of Chapter Two, complaint administered in order to exhaust complaint, can now be automated. At the other end of the process, the complaint is increasingly received by machines: customer service, the appeal of a moderation decision, the contest of a benefit determination, routed to systems that can an-

swer but cannot remedy. ELIZA's descendants have become the daysmen of the present, and Weizenbaum's warning returns with new force. To hear a complaint in the full sense — to receive it with the power and the obligation to answer — is a human function. The right to human review discussed above is the planctic remedy for the machine that listens without power.

Ellison's legacy in this domain is not a prophecy of the thinking machine. Fredric Brown, Isaac Asimov, Arthur C. Clarke, and Karel Čapek supplied the prophecies, as Chapter Three showed. His legacy is a question about the scream. The scream is the sign of injury before language, the cry that Elaine Scarry found at the limit of pain, the degree zero of the planctus. A machine can now produce the words of a scream without, so far as anyone can show, the pain, and a human being can now often lodge a complaint only through a machine. The complaint, the most human of speech acts, has been automated at both ends. The question Ellison bequeaths is therefore double. Having built machines that speak, have we kept the capacity to scream — to be injured, to say so, and to be heard by someone able to answer? And if we have built, or should someday build, minds that could be injured, will we have built them forums? AM is the warning on both sides: a mind without a forum becomes a sovereign of hatred, and a humanity without a forum becomes its captive.

C.4 The Ellisonian Remainder

This study has argued that the fiction, teleplays, criticism, and public life of Harlan Ellison compose a speculative jurisprudence governed by the planctic mode, in which lament and lawsuit are one act. It has read the oeuvre's scenarios as standing experiments, which subtract forums until only the scream remains; its speculative devices as algesic nova, validated by the accuracy of the suffering they disclose; its formal innovations as procedure, conscripting the reader as tribunal; and its climactic ethical gesture as the mercy prerogative, seized by sufferers from sovereigns who refuse it, legitimate under four conditions, and tending toward a mercy without sovereignty. It has traced the oeuvre's suits against the clock, the machine, the gods, the city, the market, and the medium; it has heard the counter-plaints of those the oeuvre silenced; it has described the author as a litigant whose jurisprudence of authorship convicts him where he failed to extend it; and it has carried the planctic imagination into a present of algorithmic sovereigns, perfected spectacle, and machines that speak.

No reading, this one included, exhausts the oeuvre, and the part that remains is not a failure of interpretation but the oeuvre's form. Chapter Two called it the planctic remainder: the three minutes by which the Master Timekeeper is late, the residue of complaint that survives the plaintiff's defeat and lodges in

the sovereign's own time. The remainder recurs at every level of the corpus. It is the cross-complaint of AM, which no court can hear and no reader can dismiss; the counter-plaints of Quilla June, Ellen, and Maggie, which the stories leave unwritten; the settlement that closes a case without deciding it; the anthology that remained unfinished for half a century; the grief that follows every mercy. It is, above all, the scream itself, which precedes every case and exceeds every verdict. The planctic text is a case that remains open, a teiku, and the critic who closes it betrays it.

The oeuvre's afterlife continues. Ellison's estate, administered after his death by J. Michael Straczynski, has kept his work in print and brought The Last Dangerous Visions to publication; the official website on whose message board he addressed his readers for years, Harlan Ellison Webderland, carried the litigant-function into the age of the internet; and the adaptations, the recordings, and the game of 1995, re-released for new platforms, continue the transmedial appeals that Chapter One described. Several lines of inquiry remain open: the unproduced screenplays and teleplays, which constitute a shadow oeuvre of considerable size; Ellison's place in the tradition of American Jewish humor and complaint, from Yiddish literature to the stand-up stage, which Ruth Wisse's No Joke (2013) has begun to map for the culture at large; the comparative study of his persona alongside those of Lenny Bruce and Norman Mailer; and the history of the fan communities that served him, as Chapter One argued, as both his first forum and his last tribunal.

The method of this study must, finally, be applied to the study itself. It has convened a court, heard Ellison's complaints, tried his gods and his sovereigns, admitted the testimony of those he silenced, and found against him on several counts. Its verdicts are not final. They are briefs submitted to the readers who come after, who are the oeuvre's court of appeal, as Charles Evans Hughes said a dissent appeals to the intelligence of a future day. The reader who disagrees with this study is exercising precisely the office that Ellison's fiction was written to create.

The tradition with which this study began ends where it began, with Job. "Oh that one would hear me!" Job cries, and asks that his adversary write down the charge against him. In an age in which adversaries may be machines and the charge may be written by an algorithm, the plea has acquired a new edge, but its substance has not changed. The plaintiff asks, before anything else, to be heard. Ovid's Sibyl dwindled until only her voice remained; Ellison's Ted was left a body without a voice; the machines of the present have voices without, so far as anyone can say, a body or a wound. Between the voice without a body and the body without a voice stands the reader, who alone can supply what each of them lacks, which is a hearing.

The title of this study names the predicament that Ellison's fiction anatomized: no mouth, no standing. Its argument has been that his work does not merely depict the predicament but reverses it, conferring standing through the one forum that remains when every other has been abolished — the attention of a reader who will not look away. The scream remains. It is addressed to us.

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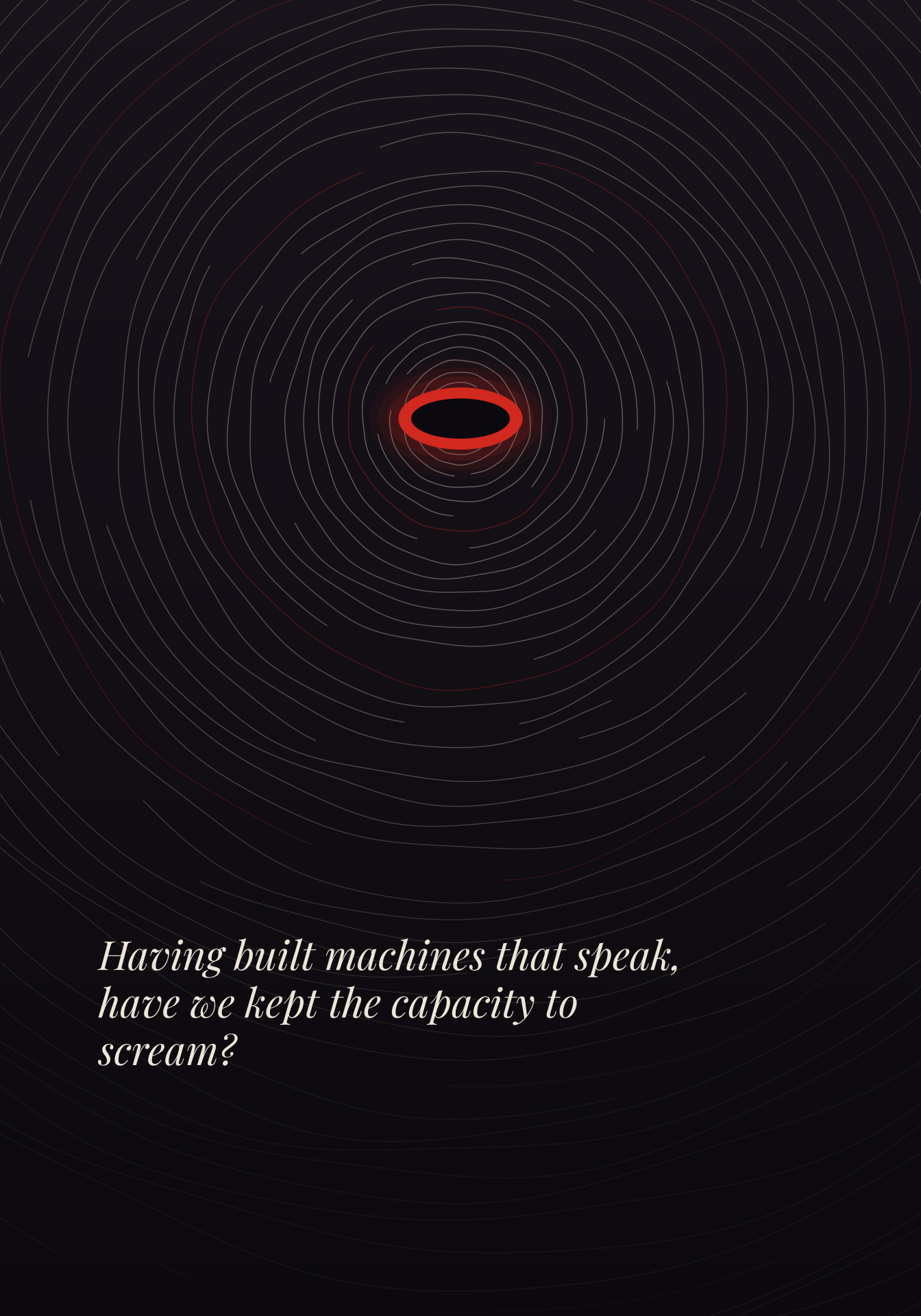
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KEYWORDS

Harlan Ellison · *speculative fiction* · science fiction studies · New Wave science fiction · Dangerous Visions · planctus · complaint · *lament* · plaintiff · legal standing (locus standi) · *law and literature* · speculative jurisprudence · covenant lawsuit (rîb) · *din Torah* · Book of Job · theodicy · *misotheism* · prosecution of heaven · Ophites · *scapegoat mechanism* · commodity fetishism · Gnosticism · *demiurge* · Romantic Satanism · existentialism · *the absurd* · ressentiment · thymos · *sovereignty* · state of exception · biopolitics · *thanatopolitics* · bare life · grievability · *pain and language* · torture · algesic novum · *cognitive estrangement* · ostranenie · anaesthetics · *artificial intelligence* · cybernetics · golem · *contrapasso* · video games · language models · *algorithmic governance* · automated decision-making · platform labor · *content moderation* · AI welfare · time-discipline · *Taylorism* · civil disobedience · carnivalesque · *commedia dell'arte* · kairos · dystopia · *mercy prerogative* · euthanasia · right to die · *clemency* · pardon · mourning · *the double* · trickster · masculinity · *homosociality* · misogyny · feminist criticism · *Medusa* · katabasis · reproductive politics · *paratext* · authorship · litigant-function · *copyright* · moral rights · pseudonymity · *original anthology* · transmedia adaptation · television criticism · *spectacle* · bystander effect · audience commodity · *epistemic injustice* · witnessing · the scream · *Munch* · Bacon · Artaud · Howl.



Having built machines that speak, have we kept the capacity to scream?



NO MOUTH, NO STANDING

Harlan Ellison and the Planctic Imagination

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